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CITY OF BERKELEY

BERKELEY CITY COUNCIL SPECIAL and REGULAR MEETINGS

January 27, 2026

WEBVTT

1
00:00:09.310 --> 00:00:18.280
Boardroom: Thank you. I called to order the special meeting of the Berkeley City Council. Today is Tuesday, January 27, 2026. Clerk, can you please call the roll?

2
00:00:19.040 --> 00:00:19.810
Boardroom: Okay.

3
00:00:19.920 --> 00:00:24.309
Boardroom: Councilmember Kastarwani is currently absent. Councilmember Taplin.

4
00:00:24.610 --> 00:00:28.559
Boardroom: It's currently absent. Councilmember Bartlett is currently absent.

5
00:00:28.680 --> 00:00:30.740
Boardroom: Councilmember Tregam? Passes.

6
00:00:30.910 --> 00:00:31.750
Boardroom: O'Keefe?

7
00:00:33.170 --> 00:00:35.569
Boardroom: Present. Blackaby? Here.

8
00:00:36.160 --> 00:00:41.369
Boardroom: Bert? I am present. Well, I guess… okay.

9
00:00:41.490 --> 00:00:43.200
Boardroom: Here?

10
00:00:44.070 --> 00:00:45.810
Boardroom: Here. And Mayor Ishii.

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11
00:00:46.320 --> 00:00:46.660
Adena Ishii: Here.

12
00:00:47.490 --> 00:00:52.190
Boardroom: And Councilmember Taplin is also… present.

13
00:00:53.370 --> 00:00:54.310
Boardroom: Okay.

14
00:00:57.550 --> 00:01:01.420
Boardroom: I'm going to… Move over there.

15
00:01:01.990 --> 00:01:16.919
Boardroom: Thank you. We have one item on our special agenda today. It's the 2026 City Council Referral Prioritization Process Using Rewaited Range Voting, RRV, and…

16
00:01:17.350 --> 00:01:21.250
Boardroom: I'm gonna pass it off to staff to present this item.

17
00:01:22.560 --> 00:01:23.420
Boardroom: Okay.

18
00:01:25.690 --> 00:01:30.819
Boardroom: Thank you, Vice Mayor. My name is Mark Newmanville, I'm the City Clerk for the City of Berkeley.

19
00:01:30.990 --> 00:01:33.140
Boardroom: And I'm gonna bring up a short

20
00:01:33.310 --> 00:01:39.990
Boardroom: presentation on the RRV prioritization process, and bear with me just one moment.

21
00:02:01.710 --> 00:02:02.590
Boardroom: Okay.

22
00:02:04.240 --> 00:02:10.789
Boardroom: RRV, City Council… prioritization process.

23

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00:02:14.960 --> 00:02:16.840
Boardroom: Doing two jobs at once, sorry.

24
00:02:22.240 --> 00:02:23.050
Boardroom: Okay.

25
00:02:24.850 --> 00:02:35.260
Boardroom: So, today's presentation, will have a brief, review of what, re-weighted range voting is, and how the RRV process works.

26
00:02:35.620 --> 00:02:47.459
Boardroom: We can then discuss a little bit about the items marked for removal, and I'll summarize also what actions are up for the City Council to take at today's meeting.

27
00:02:49.110 --> 00:02:53.770
Boardroom: So, how does re-weighted… range voting work.

28
00:02:53.990 --> 00:03:01.540
Boardroom: There's a list of referrals. Each council member rates every referral on a scale of 0 to 5.

29
00:03:01.670 --> 00:03:06.670
Boardroom: 0 being the least amount of support, and 5 being the most amount of support.

30
00:03:08.250 --> 00:03:16.449
Boardroom: There's no limit to repeat scores, or how many or how few referrals a council member assigns a score to.

31
00:03:16.950 --> 00:03:21.839
Boardroom: After the meeting today, the scores are all tallied up.

32
00:03:22.680 --> 00:03:30.150
Boardroom: For all the referrals, and the referral with the highest total score Becomes the first priority.

33
00:03:31.060 --> 00:03:34.700
Boardroom: Then, for all of the remaining referrals on the list.

34
00:03:35.120 --> 00:03:39.370
Boardroom: The scores are re-weighted based on a formula.

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35
00:03:39.950 --> 00:03:47.829
Boardroom: And that's affected by how much influence each council member has used up to that point.

36
00:03:50.430 --> 00:04:03.630
Boardroom: And this guarantees sort of a equal influence, over the long run, and gives more, voice to… to minority opinions. That's the… how the system was designed to work, and that's… that's how it works.

37
00:04:05.820 --> 00:04:13.140
Boardroom: So, our current process… from start to finish, as the Council adopts a referral on the City Council agenda.

38
00:04:13.480 --> 00:04:21.660
Boardroom: then that… is categorized by the city manager, either long-term, short-term, or urgent.

39
00:04:22.820 --> 00:04:29.330
Boardroom: The long-term referrals are added to the RRV list to be prioritized by the Council.

40
00:04:29.780 --> 00:04:34.010
Boardroom: The short-term referrals, work is started on those right away.

41
00:04:35.190 --> 00:04:44.149
Boardroom: Annually, the City Council assigns the scores to the long-term referrals on the RRV list, the process that we're doing right now.

42
00:04:44.620 --> 00:04:49.920
Boardroom: And staff generally starts to address the referrals in the order of council priority.

43
00:04:50.060 --> 00:05:01.470
Boardroom: Of course, some departments are overrepresented in the results, so the city manager and those departments have some discretion as to how many referrals they can take on all at once.

44
00:05:02.410 --> 00:05:04.780
Boardroom: Completed referrals are reported back

45
00:05:05.100 --> 00:05:10.919

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Boardroom: to the City Council through an item on the agenda, or also often through an off-agenda memo.

46
00:05:12.860 --> 00:05:22.380
Boardroom: So the data that we have in the item itself in Attachment 1… Is the raw scores assigned

47
00:05:22.520 --> 00:05:26.840
Boardroom: To each referral by the mayor and all the council members.

48
00:05:28.290 --> 00:05:32.520
Boardroom: Where no rating was assigned, the default score is zero.

49
00:05:32.770 --> 00:05:43.460
Boardroom: And the list in the agenda packet is sorted by meeting date, from the most recent date back to the oldest date.

50
00:05:44.890 --> 00:05:46.750
Boardroom: In Attachment 2,

51
00:05:46.850 --> 00:05:55.000
Boardroom: Are the referrals that were marked for referral, marked for removal, during the scoring process?

52
00:05:55.190 --> 00:06:03.020
Boardroom: So, during the scoring process, any council member could mark Any referral for removal?

53
00:06:03.320 --> 00:06:07.090
Boardroom: To sort of nominate it to be removed from the list.

54
00:06:07.340 --> 00:06:14.300
Boardroom: And then that list of, of nominated referrals is brought here before a city council.

55
00:06:14.410 --> 00:06:17.759
Boardroom: For the Council to decide which ones should be removed.

56
00:06:18.930 --> 00:06:22.150
Boardroom: A couple of notes, just some summary notes, in the…

57

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00:06:23.290 --> 00:06:29.029
Boardroom: In the packet, the list of referrals, there were 53 items on the referral list.

58
00:06:29.140 --> 00:06:32.020
Boardroom: 8 of those were marked for referral

59
00:06:32.650 --> 00:06:41.669
Boardroom: for removal by, council members. And just as a side note, there were, 10 referrals that were not marked for removal

60
00:06:42.240 --> 00:06:48.810
Boardroom: That received a total score of less than 5, and also had no single score higher than a 3.

61
00:06:49.190 --> 00:06:54.079
Boardroom: So the action for this meeting

62
00:06:54.830 --> 00:06:59.699
Boardroom: Is to review the list of the referrals marked for removal.

63
00:07:00.070 --> 00:07:09.029
Boardroom: Here in open session, the Council can add more items to be removed, or also take items off of the removal list.

64
00:07:09.990 --> 00:07:12.970
Boardroom: The Council will need to vote on which

65
00:07:13.120 --> 00:07:26.409
Boardroom: items should be removed from the list of 53 referrals, and you can do that all in one motion. You don't have to vote on them individually, though you can if there's some, disagreement.

66
00:07:26.680 --> 00:07:32.239
Boardroom: And then, the Council will also direct staff to run the RRV algorithm.

67
00:07:32.390 --> 00:07:34.890
Boardroom: And I will do so after this meeting.

68
00:07:35.220 --> 00:07:45.049

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Boardroom: This week, and then the final prioritized list will be presented back to the City Council, at a special meeting on February 10th.

69
00:07:46.200 --> 00:07:53.090
Boardroom: So that concludes the presentation. Of course, if there's any questions, happy to answer those.

70
00:07:58.580 --> 00:08:05.130
Boardroom: Thank you so much. Are there any comments or questions for staff on this item?

71
00:08:08.000 --> 00:08:09.730
Boardroom: We'll start with Councilmember Humbert.

72
00:08:16.520 --> 00:08:18.239
Boardroom: Thank you, Madam Acting Mayor.

73
00:08:18.820 --> 00:08:25.469
Boardroom: Just a quick question, that 10 referrals not marked for removal, but which…

74
00:08:25.860 --> 00:08:30.619
Boardroom: Got really low scores and no single score higher than a 3.

75
00:08:30.890 --> 00:08:48.090
Boardroom: Can we vote on removing those, here today? Yes, yes. The council could add new items, to the list of those to be removed, and also take items off of the list to be removed as well. So, yes. Okay, thank you. That's all I have.

76
00:08:49.990 --> 00:08:51.250
Boardroom: Councilmember Taplin?

77
00:08:56.430 --> 00:08:58.969
Boardroom: Are there any other questions for staff?

78
00:08:59.480 --> 00:09:00.789
Boardroom: Just questions for right now.

79
00:09:00.960 --> 00:09:06.339

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Boardroom: I have a quick question. What happens if there are multiple referrals that are tied in first?

80
00:09:06.440 --> 00:09:07.799
Boardroom: In raw scores.

81
00:09:11.240 --> 00:09:12.430
Boardroom: That's a good question.

82
00:09:12.800 --> 00:09:16.859
Boardroom: That's never happened. It has happened. Has happened? Oh, okay.

83
00:09:17.020 --> 00:09:19.910
Boardroom: It's happening now, I mean. Oh, it's happening now.

84
00:09:20.470 --> 00:09:26.840
Boardroom: Well… I suppose we'd have to… Figure out…

85
00:09:27.920 --> 00:09:30.630
Boardroom: Some way to break the tie.

86
00:09:31.590 --> 00:09:34.450
Boardroom: Because I'm not sure how the…

87
00:09:34.950 --> 00:09:38.380
Boardroom: algorithm would respond to a tie vote.

88
00:09:40.520 --> 00:09:41.880
Boardroom: Okay, thank you.

89
00:09:43.120 --> 00:09:53.389
Boardroom: Okay, if there are no more questions, let's do public comment. I don't see any public commenters in person, are there… is there anyone online?

90
00:09:54.690 --> 00:09:57.639
Boardroom: There's nobody online who's raised their hand.

91
00:09:57.970 --> 00:09:58.770
Boardroom: to speak.

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92
00:10:00.380 --> 00:10:01.090
Boardroom: Okay.

93
00:10:01.190 --> 00:10:02.020
Boardroom: Thank you.

94
00:10:03.020 --> 00:10:07.140
Boardroom: Council colleagues, are there any comments on this item?

95
00:10:10.880 --> 00:10:14.359
Boardroom: Councilmember Humbert, you're, you're still… Oh, I'm still on, I'm sorry.

96
00:10:14.500 --> 00:10:18.020
Boardroom: Okay. Councilmember Blackbee? Yeah, thanks, Acting Mayor.

97
00:10:18.080 --> 00:10:35.769
Boardroom: I think my main comment, kind of responding to Councilmember Humbert's question, in terms of items removal, I support, I think, removing most of the items, I believe all the items marked for removal, and I think there were some items, for example, that I scored a zero, it looked like everybody else scored a zero, partially for the reason that

98
00:10:35.770 --> 00:10:46.829
Boardroom: We're not yet in the window when those, like, you know, there's a 2028 ballot measure consideration, or looking back in 3 years after middle housing's been in effect, so…

99
00:10:46.910 --> 00:10:49.149
Boardroom: If we do go a little further, then…

100
00:10:49.380 --> 00:10:55.170
Boardroom: reviewing the items that aren't already marked for removal. I just caution us to be careful that we don't

101
00:10:55.480 --> 00:11:03.379
Boardroom: inadvertently removed some of those that I think some of us just put zeros on because we're not yet in the window to review them. So that's my only comment.

102
00:11:04.500 --> 00:11:06.409

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Boardroom: Thank you. Councilmember Taplin?

103
00:11:08.450 --> 00:11:14.210
Boardroom: Yes, thank you, Madam Acting Mayor. I had a sort of process question.

104
00:11:14.500 --> 00:11:17.120
Boardroom: For the City Manager,

105
00:11:17.430 --> 00:11:24.039
Boardroom: One of the items, the Vision Zero Rapid Response referral includes the direction to incorporate

106
00:11:24.280 --> 00:11:30.020
Boardroom: Oak Dot's neighborhood traffic calming, guidelines into…

107
00:11:30.230 --> 00:11:39.190
Boardroom: the city, bike plan. Given that the bike plan update is underway, I was wondering if you could confirm whether that particular direction has already been acted on.

108
00:11:41.240 --> 00:11:54.139
Boardroom: I'd actually like Public Works Director Davis to weigh in on that. They haven't been, to my knowledge, but I'm not 100% sure, and I would say if they… oh, he's here, so why don't I just let Director Davis speak to that, and then…

109
00:11:54.760 --> 00:11:55.930
Boardroom: I can add more.

110
00:11:57.040 --> 00:11:57.790
Terrance Davis: our thing.

111
00:11:58.050 --> 00:12:02.100
Terrance Davis: So Councilmember Taplan, those…

112
00:12:02.160 --> 00:12:21.710
Terrance Davis: have been included in the existing draft, so the draft 2025 plan is currently under its final, review, and those recommendations, from Oakland and those standards have been included and incorporated along with all of the other stakeholder and community feedback received. So,

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113
00:12:21.950 --> 00:12:29.179
Terrance Davis: once that final plan is brought forward to Council, I think, at that point in time, there'll be additional opportunity to comment on

114
00:12:29.330 --> 00:12:37.919
Terrance Davis: The draft plan, and if there's any final recommendations or direction Council has at that point in time. So, but short answer, yes, they've been incorporated.

115
00:12:38.670 --> 00:12:39.860
Boardroom: Wonderful, thank you very much.

116
00:12:41.300 --> 00:12:47.290
Boardroom: Thank you. Let's do Councilmember Humbert, and then Kesarwani, and then we'll do Mayor Ishii, who's online.

117
00:12:48.820 --> 00:12:49.870
Boardroom: Councillor Hamburg.

118
00:12:51.720 --> 00:12:56.499
Boardroom: Maybe I'll defer to Councilmember Cassarwani, because she may be addressing one of the items on the…

119
00:12:57.030 --> 00:13:03.399
Boardroom: the, the list for removal that she and Councilmember Taplin sponsored that I had a question about. I don't know.

120
00:13:03.740 --> 00:13:04.700
Boardroom: Yes, yes, I am.

121
00:13:06.780 --> 00:13:08.129
Boardroom: Councilmember Cassarwani?

122
00:13:08.900 --> 00:13:19.740
Boardroom: Thank you very much, Madam Acting Mayor. I, I did want to say that I was, fine with removing all of the items that were

123
00:13:20.270 --> 00:13:29.109
Boardroom: tagged for removal, except for one, and that is the one, it has the code 04053. This is about

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124
00:13:29.120 --> 00:13:43.990
Boardroom: giving, residents who live in West Berkeley, within 2 blocks of commercial corridors the opportunity to opt into the residential preferential parking program. Right now, you know, I don't know if everyone is aware, there's an RPP eligibility map

125
00:13:44.320 --> 00:14:00.759
Boardroom: And it's mostly eastern neighborhoods. And when you go into West Berkeley, even if you want to have RPP on your block, according to the map, you know, many, many streets and blocks and neighborhoods are not eligible. And so this is something our Public Works Department

126
00:14:00.880 --> 00:14:12.979
Boardroom: had brought to the Council, and I know we have a lot of referrals to Public Works, and so it makes it difficult, but I think this is an equity issue, and it's,

127
00:14:13.360 --> 00:14:22.010
Boardroom: it's a way for people to sort of be able to have some agency with parking on their block, so I would ask that that one be restored.

128
00:14:22.970 --> 00:14:40.750
Boardroom: But I'm eager to listen to hear from my colleagues on, other items that maybe were not tagged for removal, that we would want to remove based on low scores, and, any other items that we would want to bring back from the removal list. But that was the one I wanted to advocate for. And did I answer your question, Councilmember Humbert?

129
00:14:41.520 --> 00:14:47.240
Boardroom: Yes, you did, and in fact, I join you in wanting to keep that on. Okay, thank you very much.

130
00:14:48.570 --> 00:14:52.799
Boardroom: Thank you, Councilmember. Let's go to Mayor Ishii, and then Councilmember Trego.

131
00:14:54.350 --> 00:15:00.800
Adena Ishii: Yes, I just wanted to make sure that we had a good understanding of the 10 that are…

132
00:15:00.970 --> 00:15:06.859
Adena Ishii: were not marked for removal, but had lower than 3, was it? I just…

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133
00:15:07.490 --> 00:15:10.050
Adena Ishii: Want to make sure we all know which ones those are.

134
00:15:10.270 --> 00:15:12.310
Adena Ishii: Was it 3? Is that right?

135
00:15:12.870 --> 00:15:14.230
Adena Ishii: Mr. City Clerk?

136
00:15:14.880 --> 00:15:17.509
Boardroom: There were actually 10…

137
00:15:17.510 --> 00:15:18.970
Adena Ishii: Total that fit that.

138
00:15:19.080 --> 00:15:20.350
Boardroom: criteria.

139
00:15:21.200 --> 00:15:27.369
Adena Ishii: I'm sorry, and you… but you said that had scores below 3, or something like that? I just want to make sure I understood.

140
00:15:27.370 --> 00:15:34.400
Boardroom: They had, the total score was less than 5, so 4 or less.

141
00:15:34.550 --> 00:15:37.749
Boardroom: And no single score from a council member.

142
00:15:37.880 --> 00:15:40.219
Boardroom: That was higher than 3.

143
00:15:43.060 --> 00:15:44.460
Boardroom: So that… yes.

144
00:15:46.150 --> 00:15:50.249
Adena Ishii: Because I might recommend that we… that folks review

145
00:15:50.780 --> 00:15:57.950
Adena Ishii: The list to make sure that there isn't anything on there that they maybe put as a 3, that they would still want to keep.

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146
00:15:58.650 --> 00:16:02.599
Boardroom: And I'm happy to review those, with the Council as well.

147
00:16:04.030 --> 00:16:06.959
Adena Ishii: Although, I do think that it's a great…

148
00:16:07.170 --> 00:16:13.970
Adena Ishii: Idea to remove, some items that, that, you know, we haven't moved forward on in many, many years.

149
00:16:18.320 --> 00:16:25.009
Boardroom: Thank you, Mayor. Yeah, I think it would be helpful to go over those. Let's go to Councilmember Treykop, and then… and then go over those.

150
00:16:26.670 --> 00:16:28.920
Boardroom: Yeah, thank you,

151
00:16:29.040 --> 00:16:38.809
Boardroom: So, first of all, and I'll fess up, I might have been the one to recommend the RPP one for removal, but I,

152
00:16:38.970 --> 00:16:52.070
Boardroom: I appreciate the explanation, and I would, support undoing that recommendation, now that I have a better understanding of what this is, because I was thinking of it globally.

153
00:16:52.100 --> 00:17:03.520
Boardroom: as the RPP program itself, being up for review to ensure that it is a… funded,

154
00:17:03.720 --> 00:17:07.490
Boardroom: Program not operating under a deficit.

155
00:17:07.640 --> 00:17:21.940
Boardroom: So that, that makes sense. And then my, I, I wanted to associate myself with, others' desire to better understand what these other, 10,

156
00:17:22.210 --> 00:17:32.870
Boardroom: R, for example, there was an item, I think, ending 3994,

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157
00:17:33.040 --> 00:17:52.659
Boardroom: expansion of paid parking, and I think we're actually discussing that, later today during the regular agenda, and then there was one more, I think, parking in the marina, and I would like to better understand what is already, being,

158
00:17:52.710 --> 00:17:57.979
Boardroom: done, by staff right now, or may have already been considered by Council.

159
00:17:59.730 --> 00:18:01.080
Boardroom: Thank you, Councilmember.

160
00:18:01.520 --> 00:18:09.060
Boardroom: Mr. City Clerk, do you think… do you have the list of those you were mentioning? Yes, and then I think we can also…

161
00:18:09.170 --> 00:18:11.400
Boardroom: Sort of follow along in the,

162
00:18:12.150 --> 00:18:14.730
Boardroom: In the agenda packet as well.

163
00:18:15.750 --> 00:18:18.769
Boardroom: So… I'll share the screen.

164
00:18:20.110 --> 00:18:26.510
Boardroom: Okay, so in the agenda packet, the…

165
00:18:29.140 --> 00:18:35.890
Boardroom: The list of referrals that were scored starts, you know, on page 3 of the item.

166
00:18:36.490 --> 00:18:46.279
Boardroom: And I'll just… match that up with the list here, so… There's two demands.

167
00:18:46.630 --> 00:18:52.729
Boardroom: Here, both have the… The companion report.

168

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00:18:53.860 --> 00:19:04.909
Boardroom: affordable housing for artists, and probably the easiest thing to do is go by the meeting date, because that's how the list is sorted. So this was the December 2nd, 2025 meeting date.

169
00:19:05.460 --> 00:19:12.730
Boardroom: You have demand that ends in 4242, And 4240.

170
00:19:13.260 --> 00:19:25.469
Boardroom: So the first one, the one that ends in 4242, this is Companion Report Affordable Housing for Artists. The recommendation is to implement strategies from the Berkeley Social Housing Study.

171
00:19:25.650 --> 00:19:30.969
Boardroom: This referral Received a total score of 3.

172
00:19:31.280 --> 00:19:36.390
Boardroom: There was one council member who scored that a 3, the rest were… were 0s.

173
00:19:37.660 --> 00:19:54.319
Boardroom: So I don't know if you want me to go through the list, or if you want to address them one at a time? I think it'd be helpful to go through the list. Okay. Thank you. The next is the companion report, Affordable Housing for Artists. This recommendation is to place an affordable housing bond measure on the 2028 ballot.

174
00:19:54.870 --> 00:19:59.059
Boardroom: That's from the same meeting, December 2nd, 2025.

175
00:19:59.300 --> 00:20:07.240
Boardroom: This item, this referral had one council member who scored it a 2, and the rest were… were 0.

176
00:20:08.980 --> 00:20:16.890
Boardroom: The next one is the demand on some… it's from, September 30th, 2025.

177
00:20:18.170 --> 00:20:23.099
Boardroom: And that is… number 4222?

178
00:20:24.630 --> 00:20:31.279
Boardroom: This is to refer the item to the… City Attorney…

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179
00:20:32.270 --> 00:20:37.870
Boardroom: With direction per memorandum to City Staff and City Council addressing applicable…

180
00:20:38.110 --> 00:20:43.580
Boardroom: Legal documents related to due process, pending investigations, and other related matters.

181
00:20:44.150 --> 00:20:49.150
Boardroom: This is regarding, the, Police Accountability Board.

182
00:20:49.400 --> 00:20:53.339
Boardroom: This item received a 2…

183
00:20:53.490 --> 00:21:00.569
Boardroom: From one council member, a 1 from another council member, and all zeros from the rest for a total score of 3.

184
00:21:03.520 --> 00:21:09.460
Boardroom: Next is November 21st, 2023.

185
00:21:15.920 --> 00:21:20.549
Boardroom: And, this is the demand that ends in 4135.

186
00:21:23.790 --> 00:21:26.339
Boardroom: Let me just scroll… Keep up.

187
00:21:31.780 --> 00:21:35.579
Boardroom: And this one is regarding Southside Zoning amendments.

188
00:21:36.740 --> 00:21:49.099
Boardroom: And this is to refer to the City Manager to develop requirements for new residential construction, that all bedrooms contain windows, consider window requirements for habitable space.

189
00:21:49.590 --> 00:21:56.980
Boardroom: And this one… Again, it's from 11-21-2023.

190
00:21:57.510 --> 00:22:03.059

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Boardroom: This has a total score of 4. One council member gave it a 3, another one gave it a 1.

191
00:22:08.290 --> 00:22:13.189
Boardroom: The next referral is from July 11th, 2023.

192
00:22:17.480 --> 00:22:20.819
Boardroom: And this is number 4111.

193
00:22:22.010 --> 00:22:28.439
Boardroom: This is to conduct a study on the city's history of discriminatory actions in housing policies and programs.

194
00:22:29.280 --> 00:22:34.299
Boardroom: This item… Received a score of 2.

195
00:22:34.470 --> 00:22:37.450
Boardroom: From a single council member, and the rest were zeros.

196
00:22:40.900 --> 00:22:44.980
Boardroom: Next one is from June 27th, 2023.

197
00:22:46.360 --> 00:22:49.100
Boardroom: Number 4110.

198
00:22:49.610 --> 00:23:01.360
Boardroom: Adopting a temporary exemption from the collection of taxes under BMC 9.04136, the tax rate for non-medical and medical cannabis businesses.

199
00:23:01.770 --> 00:23:06.039
Boardroom: This item received a score of 2.

200
00:23:06.280 --> 00:23:08.380
Boardroom: From two different council members.

201
00:23:08.660 --> 00:23:10.289
Boardroom: For a total score of 4.

202
00:23:14.960 --> 00:23:21.820
Boardroom: Next is a referral from… June… 6th, 2023.

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203
00:23:22.360 --> 00:23:24.860
Boardroom: Bird-safe building requirements.

204
00:23:25.570 --> 00:23:31.549
Boardroom: And this was a, a, I think a referral of a subset of the item.

205
00:23:33.300 --> 00:23:39.409
Boardroom: to refer to the City Manager to provide a council… the City Council report on the Bird Safe Building requirements.

206
00:23:39.570 --> 00:23:46.539
Boardroom: No sooner than 3 years after effective date of the ordinance that adopted the the bird safe requirements.

207
00:23:46.780 --> 00:23:50.689
Boardroom: This item received a score of 1.

208
00:23:51.000 --> 00:23:56.159
Boardroom: From a single council member, and all the rest were zeros, for a total score of 1.

209
00:23:58.690 --> 00:24:05.180
Boardroom: Next is a referral from November 3rd… 2022?

210
00:24:09.220 --> 00:24:12.130
Boardroom: This is… Referral

211
00:24:12.980 --> 00:24:22.859
Boardroom: to conduct an automatic traffic calming review for the area immediately surrounding the project at 1201 to 1205 San Pablo Avenue.

212
00:24:23.960 --> 00:24:32.159
Boardroom: And this one received a score of 2 from a single council member, and the rest were zeros.

213
00:24:34.950 --> 00:24:41.130
Boardroom: Next, there's another referral from the same meeting.

214
00:24:41.310 --> 00:24:44.020
Boardroom: This one is 4059.

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215
00:24:44.150 --> 00:24:48.090
Boardroom: Budget referral, no right on red signs.

216
00:24:48.800 --> 00:24:53.330
Boardroom: And this was to refer the city manager to develop policy recommendations for consider…

217
00:24:53.450 --> 00:24:58.290
Boardroom: For consideration, that would expand limitations On right turns on red.

218
00:24:58.760 --> 00:25:05.430
Boardroom: This one received a score of 2 from a council… 1 council member, and a score of 1.

219
00:25:05.630 --> 00:25:08.749
Boardroom: From another council member for a total score of 3.

220
00:25:10.180 --> 00:25:18.840
Boardroom: And… The last one on this list is from… May 30th, 2017.

221
00:25:19.800 --> 00:25:21.550
Boardroom: In the before times.

222
00:25:24.100 --> 00:25:25.420
Boardroom: Let's scroll down quite… oop.

223
00:25:25.760 --> 00:25:26.470
Boardroom: Let's see…

224
00:25:30.450 --> 00:25:33.309
Boardroom: This is the one ending in 4188.

225
00:25:34.930 --> 00:25:43.629
Boardroom: This one, the recommendation is, refer a city density bonus policy for the Telegraph Avenue Commercial District to the Planning Commission.

226
00:25:44.110 --> 00:25:51.960

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Boardroom: to generate in-lieu fees that could be used to build housing for the homeless and extremely low residents… oh, I'm sorry, and extremely low-income residents.

227
00:25:52.360 --> 00:25:55.339
Boardroom: This one received a score of 1.

228
00:25:55.580 --> 00:25:59.139
Boardroom: From a single council member, and all zeros from the rest.

229
00:26:00.380 --> 00:26:07.279
Boardroom: So that's the list of, of the 10 that, that were identified as, scoring low that, we're not…

230
00:26:07.610 --> 00:26:14.589
Boardroom: placed on the removal list, when the Council did its scoring, but are for your consideration at this time.

231
00:26:17.100 --> 00:26:22.669
Boardroom: Great, thank you so much, Mr. City Clerk. Are there any Council comments? Councilmember Cassarwani?

232
00:26:23.720 --> 00:26:40.540
Boardroom: You know, for the… thank you, Mr. City Clerk, for that… for that list. You know, for the purposes of moving things along, I was, going to make a motion, we can modify it, but, so I'd like to make a motion to remove all the items on the removal list, except…

233
00:26:40.590 --> 00:26:49.300
Boardroom: the one related to RPP for West Berkeley, and to add all the items, the 10 items that you just

234
00:26:49.550 --> 00:26:52.000
Boardroom: listed, Mr. City Clerk.

235
00:26:52.150 --> 00:27:00.280
Boardroom: So, so that would be the new list for removal. But, you know, interested to hear from my colleagues if we want to preserve anything.

236
00:27:00.490 --> 00:27:07.130
Boardroom: Or add further for removal. So that's the motion. Do you need a second? I'd second. Okay, thank you.

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237
00:27:07.390 --> 00:27:21.470
Boardroom: And if I may, I wanted to explain the thing about the traffic calming at 1201 to 1205 San Pablo Avenue. That is a… there was a housing development proposal for that empty parcel, if you were

238
00:27:21.470 --> 00:27:39.769
Boardroom: on San Pablo Avenue, I think it's a Christmas tree lot at times, you know, over the holidays, but the project is stalled, so there's no construction going on, so I think given that, you know, so we have sort of, like, a lot of items that are sort of weird like that, like something about a bond next year, something for traffic calming for a project that's stalled, so…

239
00:27:40.120 --> 00:27:42.640
Boardroom: you know, I, I think that,

240
00:27:43.370 --> 00:27:48.830
Boardroom: I mean, we may want to be cautious on those, because they may… there may be a need to do those things.

241
00:27:48.960 --> 00:28:05.939
Boardroom: But I think at this point, you know, I think these projects are stalled for quite a while, and someone can always bring back a traffic calming referral, so I… so that was the explanation for that. But I'm fine to add it to the removal list. Yes, and certainly any item that's removed from this list,

242
00:28:06.370 --> 00:28:14.560
Boardroom: today can be reintroduced, in a modified format, or when it's more timely, or anything like that. This just would remove it off the list.

243
00:28:14.690 --> 00:28:15.570
Boardroom: For now.

244
00:28:18.470 --> 00:28:19.910
Boardroom: Thank you, Councilmember.

245
00:28:21.240 --> 00:28:22.979
Boardroom: Let's go to Councilmember Trega.

246
00:28:24.510 --> 00:28:29.129
Boardroom: Yeah, thank you. So some of these are,

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247
00:28:30.350 --> 00:28:37.509
Boardroom: probably we've moved on, I… I had a question about…

248
00:28:38.360 --> 00:28:47.729
Boardroom: the board safe building requirements for 106. This looks like the only remaining part of the referral appears to be to…

249
00:28:48.150 --> 00:28:56.349
Boardroom: bring something back no sooner than 3 years after the effective date of an ordinance, which, I guess.

250
00:28:56.550 --> 00:29:01.749
Boardroom: This would be the year that it would be 3 years after the implementation date.

251
00:29:01.970 --> 00:29:14.190
Boardroom: And that doesn't really sound like a referral to me in the traditional sense, that's just something… like, it is on the referral list, but I'm wondering if there's some…

252
00:29:14.480 --> 00:29:16.960
Boardroom: alternative mechanism.

253
00:29:17.100 --> 00:29:19.270
Boardroom: That this… for which this could be treated.

254
00:29:23.670 --> 00:29:26.059
Boardroom: I think that's a question for city staff.

255
00:29:26.630 --> 00:29:27.440
Boardroom: It is.

256
00:29:28.540 --> 00:29:29.830
Boardroom: Mr. City Manager?

257
00:29:30.200 --> 00:29:42.430
Boardroom: So your question is, how might we track that if it got removed from this list? Is that what you're saying? Yeah, and I believe this was one of several where I had a question, I think,

258

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00:29:42.720 --> 00:29:44.709
Boardroom: Some of them were, like.

259
00:29:45.510 --> 00:29:59.929
Boardroom: consider placing a bond in 2028. Well, we can just have that discussion in 2028, but something where maybe X number of years after something was passed, just asking for…

260
00:30:00.090 --> 00:30:03.389
Boardroom: Some kind of effectiveness report,

261
00:30:03.720 --> 00:30:10.610
Boardroom: Do these currently get tracked in some way, or is this the only way to keep…

262
00:30:10.950 --> 00:30:11.909
Boardroom: track of them.

263
00:30:12.100 --> 00:30:15.740
Boardroom: I don't… Director Klein, I don't know if you have an opinion on this one.

264
00:30:16.680 --> 00:30:32.330
Jordan Klein: Yeah, I mean, I recall this, this action being attached to the adoption of the Bird Safe Glass Ordinance that essentially asked staff to re-evaluate the policy after 3 years, and as you noted, we're getting up to that 3-year anniversary.

265
00:30:32.460 --> 00:30:44.089
Jordan Klein: I see this as a… this would be a policy project. I don't think it would be a huge policy project, but it would be a policy project. It would require staff time from our land use policy team to

266
00:30:44.090 --> 00:30:53.480
Jordan Klein: to research and evaluate the policy, talk with the Planning Commission. I think we'd likely want to look at, you know, talk to the development community.

267
00:30:53.480 --> 00:31:08.439
Jordan Klein: do an analysis of how the availability of BirdSafe class has changed, analyze how it's impacting project feasibility, and then so that we could advise Planning Commission and City Council on any potential changes to the policy.

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268
00:31:08.440 --> 00:31:13.770
Jordan Klein: If the referral's taken off the list, we wouldn't pursue that project. We would just let the existing policy

269
00:31:13.780 --> 00:31:18.840
Jordan Klein: Go on unless we have some reason to initiate

270
00:31:19.390 --> 00:31:22.699
Jordan Klein: Work on it, or whether it's referred again in the future.

271
00:31:23.440 --> 00:31:26.259
Boardroom: Okay, great. Thank you so much. So, I…

272
00:31:26.490 --> 00:31:34.069
Boardroom: I, generally feel comfortable with that motion. I do want to hear some of them were specific to…

273
00:31:34.240 --> 00:31:47.120
Boardroom: other council districts that are not mine, so, I, I would support if, a colleague wants to fight for something, but generally, I'm comfortable with the motion on the table.

274
00:31:48.420 --> 00:31:54.229
Boardroom: Thank you, Councilmember. Let's go to Mayor Ishii, and then Councilmember Taplin, and then Councilmember Blackby.

275
00:31:55.000 --> 00:32:14.749
Adena Ishii: Yeah, I totally agree with folks that there are times, there are some items here that might be more appropriate at a different time, and so, of course, you know, I think that we need to have an affordable housing bond for 2028, and also, we don't need to leave that on the ROV right now. That's something that I know we will be following up with

276
00:32:14.850 --> 00:32:21.039
Adena Ishii: far before the election itself. And then the other thing I wanted to just mention that

277
00:32:21.330 --> 00:32:37.009
Adena Ishii: I'm okay with leaving it on the list to remove it right now, but the no right on red signs one, the 4059, I just wanted to say that I still think that that makes sense to look into, how we could implement something like that in our city. But I agree that

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278
00:32:37.010 --> 00:32:44.880
Adena Ishii: that for right now, given our current situation, that it may not make sense to have that continue to stay on the RV, and we can come back to it later, so…

279
00:32:44.910 --> 00:32:48.879
Adena Ishii: Thanks, everyone, and thanks for your work to help clean up our list.

280
00:32:50.680 --> 00:32:51.550
Boardroom: Thank you, Mayor.

281
00:32:52.450 --> 00:32:54.000
Boardroom: Councilmember Taplin?

282
00:32:54.240 --> 00:32:57.120
Boardroom: Thank you, I…

283
00:32:57.500 --> 00:33:02.470
Boardroom: Just have a short question. The staff report says that the list would not include

284
00:33:02.880 --> 00:33:08.769
Boardroom: budget referrals, but a number of the items, included our budget referrals, and I was wondering.

285
00:33:09.270 --> 00:33:13.909
Boardroom: Is that because some of the, some of them are, like, budget referrals slash policy direction?

286
00:33:15.400 --> 00:33:21.789
Boardroom: Y-yeah, typically… Usually, you know, a budget referral is just a budget referral.

287
00:33:21.980 --> 00:33:28.720
Boardroom: And that goes on the budget referral list. For the… for items, you know, that have

288
00:33:28.980 --> 00:33:33.030
Boardroom: A, you know, a, a… policy…

289

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00:33:33.530 --> 00:33:40.730
Boardroom: A proposed policy, or some new program or project, and then include the budget referral.

290
00:33:40.860 --> 00:33:42.689
Boardroom: Within the item.

291
00:33:42.810 --> 00:33:50.670
Boardroom: you know, we've put those on this list for the Council to decide if they want to do the new policy and program first, and then…

292
00:33:50.920 --> 00:34:07.630
Boardroom: And then it would… then the budget referral would follow. But, as you know, there's lots of just straight budget referrals that are submitted throughout the year, and those go on a list that the Budget Office keeps and is considered during the budget review process.

293
00:34:08.639 --> 00:34:15.080
Boardroom: Thank you very much. And then, thinking ahead, do we foresee…

294
00:34:16.610 --> 00:34:25.659
Boardroom: That there might be a scenario where an item is prioritized, but… But does not have… The necessary budgetary

295
00:34:26.100 --> 00:34:27.969
Boardroom: Allocation forward to move forward.

296
00:34:28.710 --> 00:34:40.349
Boardroom: I mean, I'll speak to that a little bit. Part of the reason why we moved this process up in the year is to make… is to get a list of prioritized referrals for you to consider when we go through the budget process.

297
00:34:42.000 --> 00:34:43.029
Boardroom: Wonderful, thank you.

298
00:34:43.790 --> 00:34:49.679
Boardroom: Thank you, Councilmember. Councilmember Blackaby, and then Councilmember Humbert. Just for clarification on the motion, so…

299
00:34:49.860 --> 00:34:59.990
Boardroom: Would 4203 or 4054 be on the new remove list? Just want to make sure. 4203… 4203 was the middle housing…

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300
00:35:00.300 --> 00:35:01.620
Boardroom: 3-year study.

301
00:35:02.440 --> 00:35:04.119
Boardroom: I don't think that was included.

302
00:35:04.660 --> 00:35:09.720
Boardroom: Great, and then 4054 was…

303
00:35:14.130 --> 00:35:29.509
Boardroom: Autonomous vehicles. I don't… I don't have that one, no. Great, okay, I just want to make sure… okay, so those remain. Then the only suggestion I had was maybe to go ahead and keep the 2028 Affordable Housing Bond Investigation, which is a 2028 item.

304
00:35:29.710 --> 00:35:32.740
Boardroom: To keep that on the list, just so we don't lose it.

305
00:35:32.930 --> 00:35:34.729
Boardroom: again, because I intentionally

306
00:35:35.140 --> 00:35:39.099
Boardroom: marked it low, because I… it wasn't… we didn't have to take action on it now.

307
00:35:39.340 --> 00:35:44.289
Boardroom: So that was my only thought, was just, you know, keep it on the list for future ranking, because…

308
00:35:44.470 --> 00:35:48.829
Boardroom: We're not kind of in the window for, evaluating it yet, and just didn't want to…

309
00:35:49.010 --> 00:36:00.589
Boardroom: lose that for the future. I know it's not a big deal, but that was just kind of my… So, is that a formal request to restore? So it'll be a friendly amendment to restore that one and not delete it. Okay, I'm fine with that. Let's keep, the 2028…

310
00:36:00.590 --> 00:36:09.410

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Boardroom: affordable housing bond item. It's still a zero, it doesn't get ranked right now, but it's on the list for future ranking. Okay, so that means we're only gonna remove 9 of the 10.

311
00:36:09.480 --> 00:36:12.680
Boardroom: That the city clerk, just read off.

312
00:36:12.930 --> 00:36:17.220
Boardroom: And Councilmember Humbert agrees. Okay, sounds good.

313
00:36:17.580 --> 00:36:18.710
Boardroom: Thank you, that's it.

314
00:36:18.890 --> 00:36:20.860
Boardroom: Thank you, Councilmember. Councilmember Humbert?

315
00:36:22.150 --> 00:36:27.730
Boardroom: Yeah, I'd like to add an item to the list, looking at page 10 of

316
00:36:27.880 --> 00:36:33.269
Boardroom: 31, and it's item… 04197, which is Topacopa.

317
00:36:33.550 --> 00:36:37.110
Boardroom: It's got all zeros, one five.

318
00:36:37.220 --> 00:36:44.580
Boardroom: But the remainder are zeros, and, you know, it's something maybe we come back to in the future, but it requires funding.

319
00:36:45.580 --> 00:36:51.120
Boardroom: significant funding for any kind of a TOPA or COPA program to function, and…

320
00:36:51.430 --> 00:36:56.329
Boardroom: Given our current budget, situation, I… there's no funding for it.

321
00:36:58.320 --> 00:37:06.989
Boardroom: And I would recommend… I would want to add as a friendly amendment that we remove that as well. All zeros, but one 5, so it's got a total score of 5.

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322
00:37:08.480 --> 00:37:09.560
Boardroom: So,

323
00:37:10.290 --> 00:37:23.519
Boardroom: Well, I kind of want to check in with Councilmember Tregru, because he feels very differently. Because I feel like this should be a unanimous process. Yeah, I'm sorry I can't support that, but I appreciate the suggestion.

324
00:37:23.560 --> 00:37:32.719
Boardroom: Okay. Okay, so, Councilmember Humber, are you still okay seconding my motion? Yeah, I am. I'll withdraw that friendly amendment. Yeah, I think, I…

325
00:37:33.250 --> 00:37:38.199
Boardroom: it's not gonna be ranked highly, right? Based on where it's at, so I think we can leave it.

326
00:37:38.940 --> 00:37:44.880
Boardroom: Okay, thank you, alright. I had a couple comments to make,

327
00:37:45.260 --> 00:37:59.089
Boardroom: I worry that if we remove items that we agree on from the list, even if they're ranked low, that they'll kind of be lost in the ether. And so there's… there's one that I would really like to bring back from

328
00:37:59.090 --> 00:38:07.150
Boardroom: As a friendly amendment, which is the No Right on Red budget referral, I think that that should stay on the list, even if it's ranked low, so that.

329
00:38:07.800 --> 00:38:08.900
Adena Ishii: I had a really hard time.

330
00:38:08.900 --> 00:38:09.980
Boardroom: of priorities.

331
00:38:10.250 --> 00:38:11.470
Adena Ishii: Giving things up.

332

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00:38:12.410 --> 00:38:13.270
Adena Ishii: That's funny.

333
00:38:13.270 --> 00:38:15.219
Boardroom: Thank you, thanks, Julie.

334
00:38:17.520 --> 00:38:20.420
Adena Ishii: Sorry, y'all.

335
00:38:20.630 --> 00:38:22.540
Adena Ishii: Muting worlds.

336
00:38:22.540 --> 00:38:37.430
Boardroom: I also… That's a friendly amendment. Yeah, I have one, I have one more. The… referring to the city attorney to prepare a memorandum addressing, the PAB, ODPA…

337
00:38:37.870 --> 00:38:40.080
Boardroom: discussions, I think that…

338
00:38:40.740 --> 00:38:50.899
Boardroom: that's still, important to keep on there, even if it wasn't ranked highly, so that it's… it's still tracked. Those are the two main ones that I would like to keep. I also… yeah, those are the… those are the two.

339
00:38:51.620 --> 00:38:57.069
Boardroom: Okay, Madam Acting Mayor, I just, I just want to go back and just…

340
00:38:57.270 --> 00:39:04.300
Boardroom: check that ODPA item. Okay, so it's 04222, correct? So this is… Correct, yeah.

341
00:39:06.620 --> 00:39:11.920
Boardroom: Okay. Does anyone have any further context for this referral?

342
00:39:12.260 --> 00:39:19.049
Boardroom: So it was since September of 2025? I believe that was with, Councilmember Blackaby's.

343
00:39:19.840 --> 00:39:21.580

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Boardroom: Referral that was connected?

344
00:39:22.190 --> 00:39:23.380
Boardroom: Okay.

345
00:39:23.890 --> 00:39:36.189
Boardroom: It was, this is the report for the city attorney to prepare a memo to city staff and council addressing the applicable legal doctrines related to due process, pending investigations, and other related matters. I'm just, I'm just trying to refresh of…

346
00:39:36.970 --> 00:39:40.780
Boardroom: What it is we're wanting here, or what issue we're trying to address.

347
00:39:41.230 --> 00:39:44.520
Boardroom: It was on, it was on a previous,

348
00:39:44.740 --> 00:39:53.400
Boardroom: PAB item. Okay. And I think it had to… it was on the, bike… invest… bike…

349
00:39:53.510 --> 00:40:06.899
Boardroom: bike unit investigation. Oh, okay. Yeah, that's fine. Let's, let's, if Councilmember Hubbard is amenable, I think we can restore these, too. No right on red will be restored.

350
00:40:07.380 --> 00:40:15.640
Boardroom: and this referral related to PAD and ODPA, 04222…

351
00:40:15.800 --> 00:40:19.510
Boardroom: Mr. City Clerk, that one will also be restored. Okay, yeah, I'm… I'm…

352
00:40:19.630 --> 00:40:28.679
Boardroom: fine with the first one, and grudgingly okay with the second one. Yeah. And I also, I agree with Councilmember Trekup on,

353
00:40:29.180 --> 00:40:39.410
Boardroom: Copa Topa, I also don't want that to be lost in the ether, even if it's not possible to happen right now. Okay, and then we… yeah, so that is… that was never on the 10, and it's not going to be. So, okay.

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354
00:40:39.520 --> 00:40:44.660
Boardroom: I think we have… A reasonable…

355
00:40:45.050 --> 00:40:49.470
Boardroom: proposal now. Okay, great. If there are no more comments…

356
00:40:49.880 --> 00:40:51.960
Boardroom: Can we call the roll?

357
00:40:52.440 --> 00:41:02.239
Boardroom: Okay, so again, this is to… on the initial list of 8, removing all of those minus the RPP for West Berkeley, that will stay.

358
00:41:02.530 --> 00:41:11.549
Boardroom: And on the additional list of 10, we are keeping… 4240 Affordable Housing Bond.

359
00:41:12.000 --> 00:41:14.799
Boardroom: 4059, right turn on red.

360
00:41:14.990 --> 00:41:20.569
Boardroom: And 4222… Police Accountability Board. And then this…

361
00:41:21.330 --> 00:41:31.489
Boardroom: Motion, if you'd like, could also direct the city staff to run the algorithm and return with the results on, February 10th.

362
00:41:32.320 --> 00:41:34.960
Boardroom: Yes, that's part of the motion. Great, thank you.

363
00:41:35.420 --> 00:41:41.230
Boardroom: And then… Just before we vote, madam Vice Mayor,

364
00:41:41.750 --> 00:41:46.850
Boardroom: with regards to the TIE scores, Oh…

365
00:41:47.280 --> 00:41:57.929
Boardroom: I might have to consult the originator of the RRV program to determine how best, to address that. I'm sure we can find a way

366

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00:41:58.060 --> 00:42:02.010
Boardroom: Within the system to… To make that work.

367
00:42:02.180 --> 00:42:03.860
Boardroom: Sounds good. Thank you so much.

368
00:42:04.140 --> 00:42:09.189
Boardroom: Okay, so on the motion, Councilmember Kesarwani? Yes.

369
00:42:09.570 --> 00:42:13.430
Boardroom: Kaplan? Yes. Bartlett? Yes. Dragub? Aye.

370
00:42:13.710 --> 00:42:15.120
Boardroom: O'Keefe? Yes.

371
00:42:15.250 --> 00:42:18.680
Boardroom: Blackaby? Yes. Vice Mayor Lunapara? Yes.

372
00:42:18.830 --> 00:42:21.750
Boardroom: Councilmember Humbert? Yes. And Mayor Ishii?

373
00:42:21.750 --> 00:42:22.490
Adena Ishii: Yes.

374
00:42:23.180 --> 00:42:24.730
Boardroom: Okay, motion carries.

375
00:42:25.740 --> 00:42:27.820
Boardroom: Thank you so much.

376
00:42:28.240 --> 00:42:37.890
Boardroom: I will adjourn the meeting, and we'll be back for our regular… oh, is there something I'm missing? Motion to adjourn. Motion… okay, thank you. Is there a motion to adjourn the meeting? Thank you.

377
00:42:38.220 --> 00:42:39.160
Adena Ishii: Second…

378
00:42:40.940 --> 00:42:44.780
Boardroom: Okay, to adjourn the meeting, Councilmember Kesarwani? Yes.

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379
00:42:45.050 --> 00:42:54.129
Boardroom: Taplin? Yes. Bartlett? Yes. Trageum? Aye. O'Keefe? Yes. Blackaby? Yes. Vice Mayor Lunapara? Yes.

380
00:42:54.300 --> 00:42:56.850
Boardroom: Councilmember Humbert? Yes. And Mayor Ishii?

381
00:42:57.310 --> 00:42:58.060
Adena Ishii: Yes.

382
00:42:58.650 --> 00:43:04.969
Boardroom: Okay, we're adjourned. Great. We'll be back for a regular City Council meeting at 6 p.m. Thank you.

383
00:43:05.700 --> 00:43:06.689
Adena Ishii: Thank you!

384
00:43:07.440 --> 00:43:09.190
Adena Ishii: Enjoy your break, everyone.

385
00:43:15.400 --> 00:43:16.350
Boardroom: No, it should be fine.

386
00:43:16.800 --> 00:43:18.530
Boardroom: There you go. Thank you.

387
00:43:19.200 --> 00:43:27.389
Boardroom: Good evening, everyone. I'm gonna call to order the Berkeley City Council meeting. Today is Tuesday, January 27th, 2026. Clerk, can you please take the roll?

388
00:43:27.560 --> 00:43:30.500
Boardroom: Okay. Councilmember Kesarwani?

389
00:43:30.950 --> 00:43:36.309
Boardroom: Here. Taplin? Present. Bartlett? Here. Tregeb? Present.

390
00:43:36.480 --> 00:43:38.010
Boardroom: O'Keefe? Yes.

391

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00:43:39.820 --> 00:43:45.720
Boardroom: Blackaby? Here. Vice Mayor Lunapara? Here. Councilmember Humbert? Here. And Mayor Ishii?

392
00:43:46.060 --> 00:43:46.810
Adena Ishii: Here.

393
00:43:47.240 --> 00:43:48.500
Boardroom: Okay, all present.

394
00:43:48.920 --> 00:44:03.850
Boardroom: Great, thank you so much. We have an urgent item tonight on the agenda. The resolution is called Demanding an End to ICE and CBP Searches on Minneapolis and Across the Country, Immediate DHS Leadership Changes and Necessary Guardrails for Any Future Funding Bill for DHS.

395
00:44:03.850 --> 00:44:11.829
Boardroom: It falls under immediate action required, and there is a need to take immediate action, and the need for action came to the attention of the local agency

396
00:44:11.830 --> 00:44:31.140
Boardroom: subsequent to the agenda for this meeting being posted. Councilmember Blackaby, would you like to introduce the item? Yeah, thanks, and I can talk about it if we accept it more during the consent calendar, but, a couple of facts here. Obviously, we've all been, reacting, to the horrific events, that we've seen transpire in Minneapolis, and…

397
00:44:31.220 --> 00:44:38.959
Boardroom: a couple of the murders of Renee Goode and Alex Peretti happened, after, our last agenda deadline.

398
00:44:39.120 --> 00:44:46.890
Boardroom: And Congress is scheduled to vote on increased ICE funding this week, so we felt, in consultation with the mayor and my co-sponsors, that this is a…

399
00:44:47.010 --> 00:44:54.800
Boardroom: An important time for us to speak out, and be heard, and so we wanted to submit this as an immediate action item for tonight's agenda.

400
00:44:56.950 --> 00:45:04.139

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Boardroom: So I would move that we do add it to the consent calendar for the two-thirds vote, and also add,

401
00:45:04.600 --> 00:45:07.350
Boardroom: Councilmember Taplin is a co-sponsor. Second.

402
00:45:08.960 --> 00:45:14.210
Boardroom: Thank you. Can we call the roll? Okay, Councilmember Kessnerwani? Yes.

403
00:45:14.470 --> 00:45:26.570
Boardroom: Taplin? Yes. Bartlett? Yes. Dragum? Aye. O'Keefe? Yes. Blackaby? Yes. Vice Mayor Lunapara? Yes. Councilmember Humbert? Yes. And Mayor Ishii?

404
00:45:26.930 --> 00:45:27.720
Adena Ishii: Yes.

405
00:45:28.080 --> 00:45:31.750
Boardroom: Okay, the item has been added to the consent calendar for tonight's agenda.

406
00:45:33.350 --> 00:45:38.759
Boardroom: Great, thank you so much. I'd also like to turn it over to Mayor Ishii for…

407
00:45:39.060 --> 00:45:40.859
Boardroom: Some comments that she would like to make?

408
00:45:41.930 --> 00:45:55.340
Adena Ishii: Thank you. In that same vein, I wanted to add some comments. So, in the last several weeks, of course, we've been closely monitoring the events unfolding in Minnesota, where the President has sent a surge of ICE agents to cause chaos.

409
00:45:55.340 --> 00:46:10.820
Adena Ishii: as punishment for state and local policies that support the immigrant community. As the first sanctuary city in the country, the City of Berkeley stands in solidarity with Minnesota and the Twin Cities, and will do everything it can to support them in protecting their communities against this unprecedented federal intrusion.

410
00:46:10.820 --> 00:46:32.759

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Adena Ishii: In that vein, I'm pleased to announce that Berkeley will be signing on to an amicus brief from local governments across the country in support of Minnesota and the Twin Cities. The brief argues that the Minnesota federal court should halt the President's ICE invasion, dubbed Operation Metro Surge, immediately because it violates the Tenth Amendment of the U.S. Constitution and has caused immense harm to the local community in Minnesota.

411
00:46:32.760 --> 00:46:42.220
Adena Ishii: The brief also highlights the harms that similar ICE invasions have caused, and will continue to cause, to public safety and local law enforcement throughout the country if the court does not act.

412
00:46:42.220 --> 00:46:47.140
Adena Ishii: Through this action, as well as the sanctuary Ordinance of the city enshrined into law last year.

413
00:46:47.350 --> 00:46:54.910
Adena Ishii: Berkeley continues its long-standing commitment to supporting all of its residents and fostering a relationship of trust between the city and its immigrant community.

414
00:46:54.910 --> 00:47:08.429
Adena Ishii: And I might add that, the Berkeley City Council has given our city attorney authority to join amicus briefs that are related to this topic, and that's how we were able to move forward with that, just in case folks are wondering.

415
00:47:11.220 --> 00:47:20.559
Boardroom: Thank you so much, Mayor. We're gonna start with ceremonial matters. Councilmember, we have, 3 adjournments in memory, and we'll also be,

416
00:47:20.740 --> 00:47:36.900
Boardroom: talking about the Holocaust Remembrance Day, which is today. So, first, we'll go to Councilmember Blackby, who has an adjournment in memory for Martin Marty Loebert. Councilmember? Thank you, Acting Mayor. I know Marty's wife, Joanne, and former Councilmember Wozniak are also here to share some comments.

417
00:47:37.120 --> 00:47:42.209
Boardroom: So, you know, we're asking the Council tonight to adjourn in memory of Marty Lorber.

418
00:47:42.320 --> 00:47:46.049

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Boardroom: Marty passed away on November 3rd, 2025.

419
00:47:46.260 --> 00:47:52.399
Boardroom: For nearly 50 years, he made his home in Berkeley, and became an extraordinary presence in the life of our city.

420
00:47:52.620 --> 00:47:56.010
Boardroom: Marty was interesting, fun, and deeply caring.

421
00:47:56.150 --> 00:48:01.930
Boardroom: He was genuinely curious about people and their lives, and he had a rare gift for connection.

422
00:48:02.130 --> 00:48:08.960
Boardroom: An uber schmoozer, in the best sense of the word, Marty could talk to anyone about anything, at any time.

423
00:48:09.250 --> 00:48:17.130
Boardroom: If you ran into him on a walk, you knew you would be late for your next appointment, but the conversation, the laughter, and the human connection would always be worth it.

424
00:48:17.950 --> 00:48:25.849
Boardroom: Though Marty was brilliant. He was accepted to MIT at the age of 16 and to medical school in Broome. He wore his intellect lightly.

425
00:48:26.140 --> 00:48:33.729
Boardroom: He communicated with warmth and ease, putting people at comfort from the first moment he met them. He was, above all, a wonderful neighbor.

426
00:48:34.110 --> 00:48:50.469
Boardroom: Marty served the community in countless ways, a primary care internist for 34 years, medical director for numerous convalescent facilities. He chaired the Berkeley Commission on Aging, served as a history docent at the Oakland Museum of California, and was past president of the Hillside Neighborhood Association.

427
00:48:50.640 --> 00:49:00.899
Boardroom: He volunteered with Meals on Wheels and was a steadfast advocate for Berkeley's Lawn Bowling Club, helping to protect it from development and strengthen its sense of community alongside his wife, Joanne, who's with us here.

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428
00:49:01.650 --> 00:49:18.539
Boardroom: Marty also played a crucial role in the long and complex consultations among neighbors, the city, and the school board regarding the future of Hillside School. It was Marty who conducted the neighborhood survey, largely through his own tireless door-to-door efforts, establishing what funding the community could bring to the transition.

429
00:49:18.720 --> 00:49:26.339
Boardroom: He was endlessly generous with his time, often offering health advice or an informal second opinion to neighbors who sought his counsel.

430
00:49:26.970 --> 00:49:44.949
Boardroom: On a personal note, I can say, during some of the long days and nights of my campaign in 2024, and more recently as a council member, whenever I ran into Marty in the neighborhood, he was always quick with a smile, with words of friendly encouragement, and a pick-me-up that always really got me going. And I will always miss that.

431
00:49:45.370 --> 00:49:54.459
Boardroom: The last email I ever received from him, addressed to Susan Wengraf and me just a few weeks before he died, was quintessentially Marty, and so I wanted to share a little of that with you.

432
00:49:55.760 --> 00:50:01.039
Boardroom: Hi to both of you. Sorry I missed last night's fire safety meeting, however close it was to home.

433
00:50:01.480 --> 00:50:09.450
Boardroom: I have been waylaid by an onset of widespread pancreatic cancer and blood clots. Darn, exclamation point, exclamation point.

434
00:50:09.830 --> 00:50:18.929
Boardroom: I wanted again to say to each of you how pleased I've been of your major efforts over time to promote the core bases of the Fire Safety Council that I nurtured in the Hillside Association for so long.

435
00:50:19.370 --> 00:50:30.399
Boardroom: I'm so proud of your energies, even if I won't be around to see the end effects. Please personally pass on to Chief Sprague my similar salute and respect for his ongoing principal impact on these developments.

436
00:50:30.520 --> 00:50:33.740

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Boardroom: Keep up the good fight. Hugs from me, Marty.

437
00:50:34.870 --> 00:50:39.039
Boardroom: Marty Larber was a spectacular neighbor and a true asset to Berkeley.

438
00:50:39.270 --> 00:50:45.240
Boardroom: His passing is a profound loss to our city, and his kindness, service, and presence will be deeply missed.

439
00:50:46.010 --> 00:50:47.260
Boardroom: An honor of Marty.

440
00:50:49.420 --> 00:50:52.550
Boardroom: Councilmember Wozniak, or Joanne, did you have something to say?

441
00:50:52.680 --> 00:50:54.040
Boardroom: Thank you, Councilmember.

442
00:51:04.140 --> 00:51:09.479
Boardroom: Well, I just want to thank you all for recognizing Marty. He was a spectacular man.

443
00:51:09.710 --> 00:51:21.829
Boardroom: And, I was… it was my privilege to be with him for so many years, and I appreciate the recognition that you're giving him. He'd be smiling if he were here today. Thank you.

444
00:51:21.970 --> 00:51:24.699
Boardroom: And Gordon is our dear friend.

445
00:51:25.840 --> 00:51:29.910
Boardroom: Yes, I want to thank the Mayor and Council for honoring Marty Lorber.

446
00:51:30.360 --> 00:51:34.290
Boardroom: I just… I want to amplify a couple things that were said. I met Marty

447
00:51:34.680 --> 00:51:37.740
Boardroom: Probably 40 years ago, when my son was in,

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448
00:51:38.070 --> 00:51:49.230
Boardroom: soccer league. He was a soccer aficion. He knew everything about soccer, okay? He was also into others, but he was very interested, and he was a referee, and refereed many, many games, and that's where I first met him, and…

449
00:51:49.450 --> 00:51:54.789
Boardroom: I was somewhat in awe of… soccer was alien to me. I grew up with baseball and football.

450
00:51:55.310 --> 00:51:58.160
Boardroom: But then, you know, about…

451
00:51:58.340 --> 00:52:00.100
Boardroom: 20 or so years later, when he…

452
00:52:00.350 --> 00:52:05.770
Boardroom: married Joanne, which… who was a very good friend of my wife's, Evie, we…

453
00:52:05.900 --> 00:52:10.630
Boardroom: were part of… we started meeting and having dinner and lunch. He was a… found out he was an amazing cook.

454
00:52:10.810 --> 00:52:14.019
Boardroom: Found, as you said, he got into… you know.

455
00:52:14.330 --> 00:52:21.980
Boardroom: MIT out of high school, and I… after I graduated from college, I applied to MIT, and they turned me down.

456
00:52:22.190 --> 00:52:34.340
Boardroom: I had to come to Cal, which was a great school, too, but marty was really a Renaissance man. He took… he audited classes at Cal all the time, he went to OLLI classes, and he…

457
00:52:34.790 --> 00:52:41.819
Boardroom: if you didn't know it, he would look it up and come back and you could discuss it, but he didn't, as Brent said, he didn't wear his…

458
00:52:41.850 --> 00:52:56.269

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Boardroom: I mean, he was a really lots and lots of stuff, but he didn't overwhelm you with it. He liked to engage what you brought to the table, but he just knew an amazing amount of things. And the last thing I sort of want to say, other than taking credit for appointing to the Aging Commission.

459
00:52:57.790 --> 00:53:01.530
Boardroom: Which I think he didn't… I mean, he got, like, he got appointed…

460
00:53:01.820 --> 00:53:13.219
Boardroom: you know, chair of the commission on the first meeting, I mean, that's almost unheard of, okay? You usually have to… you have to be there for a year or more, and you start as vice chair, and you work your way up, and he was… he was made chair immediately.

461
00:53:13.500 --> 00:53:15.139
Boardroom: So the last thing I want to tell you is…

462
00:53:15.290 --> 00:53:19.480
Boardroom: At some point after I retired, we were talking about…

463
00:53:19.930 --> 00:53:27.660
Boardroom: film and literature and about murder mysteries, and somehow it came out of that, why don't we teach a nollie class on poison, okay?

464
00:53:27.990 --> 00:53:32.460
Boardroom: We call it the Elements of Murder, how poison was basically used in

465
00:53:32.880 --> 00:53:38.539
Boardroom: History and films, and politics, and movies, and… Murder Mysteries, and…

466
00:53:38.820 --> 00:53:55.289
Boardroom: he had all the medical knowledge of why things killed you, and I could fill something in on the chemistry, and it was a lot of fun, okay? He could do anything. He was an amazing person, and as you also heard, he was a really good citizen. He took his… you know, he tried to contribute to make things better, and so…

467
00:53:55.580 --> 00:53:58.949
Boardroom: We'll miss him greatly, and I thank you again for honoring him.

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468
00:54:05.750 --> 00:54:10.749
Boardroom: Thank you so much, former Councilmember Wozniak, and thank you, Councilmember Blackaby.

469
00:54:10.950 --> 00:54:16.810
Boardroom: Councilmember Tregup has asked that we also adjourn in memory of Barbara Lubin. Councilmember Traja, would you like to…

470
00:54:17.090 --> 00:54:18.360
Boardroom: Share what you prepared.

471
00:54:19.970 --> 00:54:22.119
Boardroom: Thank you, Madam Acting Mayor.

472
00:54:25.940 --> 00:54:30.670
Boardroom: I would like us to adjourn this meeting in memory of Parker Lubin.

473
00:54:31.170 --> 00:54:37.500
Boardroom: passed away on December 13th, 2025, surrounded by her husband, Howard Levine.

474
00:54:37.660 --> 00:54:40.619
Boardroom: Her 4 adult children and 7 grandchildren.

475
00:54:40.810 --> 00:54:45.539
Boardroom: Born in Philadelphia, Barbara was a lifelong activist for social justice.

476
00:54:45.860 --> 00:54:55.890
Boardroom: She served as a draft counselor during the Vietnam War, and despite being a high school dropout, actively engaged with the anti-war and civil rights movements.

477
00:54:56.340 --> 00:55:07.000
Boardroom: After giving birth to her son, Charlie in 1969, who was born with Down syndrome, Barbara chose to raise him at home, defying medical advice to institutionalize him.

478
00:55:07.280 --> 00:55:13.190

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Boardroom: This decision shaped her lifelong advocacy for children with developmental disabilities.

479
00:55:14.010 --> 00:55:29.610
Boardroom: After moving to Berkeley in 1973, she fought for inclusive education, successfully challenging the school district and helping create the Model School, a fully integrated school for children of all abilities.

480
00:55:30.020 --> 00:55:42.480
Boardroom: She also defended Charlie's social inclusion, founding the Elmwood Preservation Alliance to save a beloved local soda fountain, and advocating for commercial rent control to protect small businesses.

481
00:55:42.930 --> 00:55:45.560
Boardroom: Barbarous activism extended globally.

482
00:55:46.150 --> 00:55:47.050
Boardroom: in the…

483
00:55:47.220 --> 00:55:58.620
Boardroom: 1980s, she supported Central American refugees and opposed U.S. intervention in Latin America, spending time in Santa Rita Women's Prison for Civil Disobedience.

484
00:55:58.820 --> 00:56:03.779
Boardroom: She co-founded the Middle East Children's Alliance, or Mecca.

485
00:56:04.020 --> 00:56:15.450
Boardroom: For over 3 decades, MECA supported clean water programs, playgrounds, youth media, and child psychology centers, always responding to the needs of local communities.

486
00:56:16.180 --> 00:56:24.500
Boardroom: Barbara lived by the principle That what was good for her children, especially Charlie, was good for all children.

487
00:56:24.760 --> 00:56:44.569
Boardroom: Fearless, witty, and unwavering in her convictions, she built solidarity across boundaries of nationality, ethnicity, and religion, leaving a profound legacy in Mecca, in Berkeley, and in the lives of everyone she touched. And I believe we have, Howard here.

488

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00:56:44.910 --> 00:56:48.410
Boardroom: Yes, if you would like to come up and say a few words.

489
00:56:53.820 --> 00:56:55.060
Boardroom: Thank you, Councilmember.

490
00:56:56.040 --> 00:56:56.790
Boardroom: Go ahead.

491
00:56:57.520 --> 00:57:02.300
Boardroom: Hi, my name is Howard Levine, and I was Barbara Luzman's husband and partner for almost 40 years.

492
00:57:02.410 --> 00:57:13.389
Boardroom: On behalf of her children, Christy, Liz, Charlie, and Alex, and her grandchildren, Sochi, Rio, Rosa, Tess, Isabel, Eob, and Solomon, I want to thank the Mayor and the City Council members for honoring Barbara tonight.

493
00:57:13.630 --> 00:57:26.829
Boardroom: There are so many words to describe Barbara. Leader, organizer, visionary, activist, champion, hero, inspiration. She was angry, outraged, outrageous, passionate, compassionate, loving, sarcastic, and hilarious.

494
00:57:27.010 --> 00:57:30.070
Boardroom: But all these words are still inadequate to contain who she was.

495
00:57:30.330 --> 00:57:36.070
Boardroom: Barbara was a high school dropout who lectured at Harvard Medical School and was elected to the Berkeley Board of Education.

496
00:57:36.880 --> 00:57:45.630
Boardroom: As a school board member, Barbara fought to make sure that every student in Berkeley had the same right to an excellent, diverse, and accessible education, no matter where they lived or what challenges they faced.

497
00:57:46.130 --> 00:58:01.299
Boardroom: Barbara was a stay-at-home mom who, when fighting for her Down syndrome Charlie right to a mainstream education, found she had to protect Aussies, a soda fountain Charlie went to each day to give Barbara

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some needed respite. That meant taking on some of Berkeley's biggest commercial real estate developers.

498
00:58:01.520 --> 00:58:04.039
Boardroom: She beat them and helped bring commercial rent control overk.

499
00:58:04.350 --> 00:58:08.220
Boardroom: to Berkeley and helping preserve the character of neighborhoods like the Elmwood.

500
00:58:08.640 --> 00:58:11.040
Boardroom: Until the state outlawed it a few years later.

501
00:58:11.470 --> 00:58:21.690
Boardroom: Barbara was a Jewish grandmother who became one of the loudest, fiercest, and most evictive voices for justice in Palestine, in this country, and internationally. As her school board term was ending.

502
00:58:21.880 --> 00:58:34.369
Boardroom: In 1986, the first Palestinian Intifada was just beginning, and Barbara joined one of the first delegation of elected officials and activists to visit occupied Palestine and see firsthand the brutality of the occupation.

503
00:58:34.600 --> 00:58:51.129
Boardroom: Her entire worldview as a U.S. taxpayer and supporter of Israel was undone, and she was determined to do something about it. In 1988, she co-founded the Middle East Children's Alliance. This was at a time when Palestine was not talked about in polite circles, and couldn't even be discussed in progressive areas.

504
00:58:51.210 --> 00:59:00.530
Boardroom: Barbara helped change all that, and now no progressive agenda is complete if Palestine isn't included. She inspired hundreds and probably thousands of people to become activists for Palestine.

505
00:59:00.670 --> 00:59:02.409
Boardroom: I'm proud to say I was the first.

506
00:59:02.740 --> 00:59:07.969
Boardroom: Since its founding, the Middle East Trends Alliance has delivered millions of dollars worth of aid to the West Bank and Gaza Strip.

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507
00:59:08.170 --> 00:59:13.359
Boardroom: Provided academic scholarships to hundreds of students and supported projects all over the area.

508
00:59:13.630 --> 00:59:31.650
Boardroom: Barbara felt a special connection to the people of Gaza and traveled there several times a year for nearly 30 years. She got to know the people and established many programs that provided an infrastructure for all organizations all over the world to provide life-saving aid during the bombing of Gaza in 2018, and again during the current and ongoing slaughter.

509
00:59:32.120 --> 00:59:35.240
Boardroom: In these dark times, we need many more barbalubins.

510
00:59:35.350 --> 00:59:38.749
Boardroom: But really, there was only ever one. Thanks again for this honor.

511
00:59:46.840 --> 00:59:49.890
Boardroom: Thank you so much, and thank you again, Councilmember.

512
00:59:50.150 --> 00:59:57.419
Boardroom: Councilmember Kesarwani has also suggested an adjournment in memory, as well, for Renee Nicole Good and Alex Pretty.

513
00:59:57.440 --> 01:00:12.459
Boardroom: Would you like to present, Councilmember? Yes, thank you very much, Madam Vice Mayor. So, I would like to move that the City Council also adjourn tonight's meeting in memory of Renee Nicole Good and Alex Jeffrey Pretty, two residents of Minneapolis, Minnesota.

514
01:00:12.490 --> 01:00:19.010
Boardroom: Who, as we all know, their lives were tragically cut short by federal immigration agents earlier this month.

515
01:00:19.120 --> 01:00:28.599
Boardroom: Renee Nicole Goode was age 37. She was a devoted mother of three, a prize-winning poet, and a self-described writer, mother and wife.

516
01:00:28.620 --> 01:00:47.860

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Boardroom: Remembered by her family as a kind-hearted soul and an amazing human being, Renee was killed by an ICE agent on January 7th, just blocks from her home. She had recently moved to Minneapolis to start a new chapter, where she was known for her compassion, her love of singing, and her dedication to her children.

517
01:00:48.530 --> 01:01:06.540
Boardroom: Alex Jeffrey Pretty, also age 37, was a registered nurse in the intensive care unit at the Minneapolis VA Health Care System. Alex spent his career caring for our nation's veterans and was described by colleagues as a gentle soul who always looked for ways to help others.

518
01:01:06.650 --> 01:01:15.829
Boardroom: On January 24th, while acting as a peaceful observer and attempting to assist a bystander, he was fatally shot by federal agents.

519
01:01:15.920 --> 01:01:27.709
Boardroom: Alex died as he lived, taking care of people and standing up for the dignity of his neighbors. The deaths of Renee and Alex have sparked nationwide mourning and calls for accountability.

520
01:01:27.710 --> 01:01:37.609
Boardroom: As we adjourn tonight, we honor their commitment to community, their roles as caregivers and creators, and their ultimate sacrifice in the name of witnessing and protecting others.

521
01:01:37.620 --> 01:01:52.059
Boardroom: We extend our deepest condolences to their families, their friends, and the community of Minneapolis. May their memories be a blessing and an inspiration to all who strive for justice and peace here in Berkeley and throughout the country.

522
01:01:52.060 --> 01:01:59.549
Boardroom: And I just ask that we, just have a moment of silence as we adjourn in memory of Renee Goode and Alex Pretty.

523
01:02:10.640 --> 01:02:11.550
Boardroom: Thank you.

524
01:02:12.910 --> 01:02:14.659
Boardroom: Thank you so much, Councilmember.

525
01:02:15.520 --> 01:02:34.030

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Boardroom: Today, January 27th, is also International Holocaust Remembrance Day, and it marks the 81st anniversary of the liberation of Auschwitz in January 1945. Councilmember Humbert would like to read an acknowledgement and reflection of the day from Albany Mayor McQuard. So I'll hand it over to him. Yes, thank you, Madam Acting Mayor.

526
01:02:34.510 --> 01:02:44.660
Boardroom: And this is a statement written by the mayor of Albany, Peggy McQuaid, but I don't think it can be improved upon, so I would like to…

527
01:02:44.860 --> 01:02:48.450
Boardroom: To read it, in, in, in this context.

528
01:02:48.600 --> 01:02:56.639
Boardroom: Each year, on January 27th, communities around the world observe International Holocaust Remembrance Day.

529
01:02:56.750 --> 01:03:03.830
Boardroom: Commemorating the liberation of Auschwitz-Birkenau, the largest Nazi concentration and extermination camp.

530
01:03:04.260 --> 01:03:09.640
Boardroom: January 27th, 2026 marks the 81st anniversary of that liberation.

531
01:03:10.030 --> 01:03:15.009
Boardroom: This is the time for our community to pause and reflect on one of the darkest chapters in human history.

532
01:03:15.120 --> 01:03:23.739
Boardroom: On this day, designated by the United Nations General Assembly, we remember the 6 million Jews systematically murdered by the Nazi regime.

533
01:03:23.910 --> 01:03:37.569
Boardroom: Along with millions of other innocent victims, including people with disabilities, political dissidents, Roma people, LGBTQ individuals, and others who were targeted for persecution and extermination.

534
01:03:38.280 --> 01:03:47.299
Boardroom: As a community, we recognize that remembrance is not only about honoring the past, but about shaping the future through education, reflection, and moral action.

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535
01:03:47.480 --> 01:04:04.420
Boardroom: Learning about the Holocaust by sharing survivor stories, teaching historical truth, and confronting misinformation helps ensure the future generations, that future generations understand the consequences of hatred and the importance of standing up for one another.

536
01:04:04.540 --> 01:04:21.300
Boardroom: Grounded in these lessons, we reaffirm our shared values of human dignity, inclusion, compassion, and mutual respect, and we stand united against anti-Semitism and all forms of hatred and discrimination here in our community and beyond. Thank you.

537
01:04:23.200 --> 01:04:25.090
Boardroom: Thank you so much, Councilmember.

538
01:04:25.990 --> 01:04:37.010
Boardroom: We are now moving on to City Manager comments. City Manager, do you have any comments tonight? Yes, thank you, Acting Mayor. I have, two things on the agenda I want to make comments about. The first…

539
01:04:37.200 --> 01:04:44.450
Boardroom: is item number 6, which is an option agreement with TSA Holding Group, LLC for 199 Seawall Drive.

540
01:04:44.620 --> 01:04:51.060
Boardroom: There's been some questions about this, and I just want to clarify on the record that, that the city does intend to

541
01:04:51.300 --> 01:04:55.880
Boardroom: To follow its labor peace policy ordinance, and I'll read part of the…

542
01:04:56.230 --> 01:04:58.730
Boardroom: relevant part of that right here, which is 2.01.

543
01:04:59.020 --> 01:05:00.420
Boardroom: is Section 2.

544
01:05:00.620 --> 01:05:14.390
Boardroom: 102.030A, which provides that the city shall not execute a hospitality operations lease or substantial amendment providing for the use, development, or operation of a hospitality operation

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545
01:05:14.390 --> 01:05:21.860
Boardroom: within the marina zone, in which the city has a proprietary interest unless and until the project applicant, developer, or owner

546
01:05:22.260 --> 01:05:41.060
Boardroom: and any operator or manager of the hospitality operation has provided evidence that it has entered into a labor peace agreement covering the hospitality… I just… if you're gonna have conversations, please step outside so we can hear our city manager. Sorry about that. Thank you. That's okay. Just covering the hospitality operations.

547
01:05:41.090 --> 01:05:51.229
Boardroom: pursue it. So, essentially, the city, through this ordinance, is required to have a labor peace agreement prior to executing a lease.

548
01:05:51.340 --> 01:05:54.800
Boardroom: And intends to follow that. I've had conversations with

549
01:05:55.090 --> 01:06:05.210
Boardroom: principals both from Unite here and from TSA Holdings, and everyone is aware of and understanding and agreeable to that fact that the city has to follow that ordinance.

550
01:06:05.340 --> 01:06:11.319
Boardroom: Secondly, I'm requesting that item 20 be removed from tonight's agenda.

551
01:06:11.750 --> 01:06:17.080
Boardroom: That item is an appeal of the Zoning board's adjustment,

552
01:06:17.800 --> 01:06:27.730
Boardroom: Zoning Adjustment Board's decision to approve a use permit for 2109 Virginia. We didn't notice that properly, so it cannot… that item cannot be heard today, and we've…

553
01:06:28.000 --> 01:06:33.319
Boardroom: requested that agenda and rules that it go to the February 10th meeting, but I just wanted to say that on the record as well.

554
01:06:33.960 --> 01:06:52.530
Boardroom: And that's all. Thank you. Thank you so much, Mr. City Manager. If you would like to comment on item 20 tonight, you may do so

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during the public comment on the consent calendar, but we will not be holding a public hearing for that item this evening. If you would like to participate in that, the public hearing for that item, you may do so on February 10th.

555
01:06:53.440 --> 01:06:59.909
Boardroom: Now we will go on to public comment on non-agenda matters. Do we have, in-person comments?

556
01:07:29.970 --> 01:07:34.029
Boardroom: We just have, 4 cards for in-person commenters.

557
01:07:34.210 --> 01:07:37.649
Boardroom: We have Andrea Pritchett, Russell Bates.

558
01:07:37.980 --> 01:07:42.820
Boardroom: Michael Johnson, and, former Councilmember Cheryl Davila.

559
01:07:43.200 --> 01:07:46.490
Boardroom: So you guys come up in any… Thank you. …order.

560
01:07:47.560 --> 01:07:58.430
Boardroom: If your name was called, please, please come line up. Public comment on non-agenda matters, I believe, is 1 minute.

561
01:07:58.580 --> 01:08:10.679
Boardroom: Per person. Yeah, so, I'll just ask if there is anybody who is participating in the meeting remotely through Zoom that would like to speak on non-agenda public comment.

562
01:08:11.350 --> 01:08:15.009
Boardroom: If you would, please raise your hand now.

563
01:08:16.689 --> 01:08:24.819
Boardroom: Anybody participating on Zoom that would like to give comments on items not on the agenda, please use the raise hand function now.

564
01:08:28.680 --> 01:08:34.330
Boardroom: There's no raised hands, so we have 4 cards, so we can do 2 minutes. Okay, we can do 2 minutes each. Thanks.

565
01:08:35.279 --> 01:08:36.140

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Boardroom: Go ahead.

566
01:08:36.430 --> 01:08:41.360
Boardroom: Alright, it's ironic to me that, there's a sentence of people

567
01:08:42.149 --> 01:08:44.969
Boardroom: Murdered just because they were who they are.

568
01:08:45.090 --> 01:08:57.740
Boardroom: are now perpetuating the genocide against the people of Gaza and Palestine, going on over 2 years now. I'd like to propose that the Berkeley City Council, at some point.

569
01:08:57.979 --> 01:09:07.609
Boardroom: Acknowledge that by having the Gaza Genocide Remembrance Day, so that will not be forgotten. And… the rightful.

570
01:09:08.970 --> 01:09:12.019
Boardroom: people who belong in Palestine 48,

571
01:09:12.200 --> 01:09:16.249
Boardroom: We'll eventually, hopefully, design this free, and be able to deal with

572
01:09:16.710 --> 01:09:21.600
Boardroom: their situation, by themselves, their way. Long live Palestine. Thank you.

573
01:09:22.850 --> 01:09:24.240
Boardroom: Thank you for your comment.

574
01:09:24.880 --> 01:09:25.910
Boardroom: Next speaker.

575
01:09:30.430 --> 01:09:31.319
Boardroom: Scary.

576
01:09:31.520 --> 01:09:33.189
Boardroom: Very pea puppy over there.

577
01:09:34.550 --> 01:09:38.349

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Boardroom: So, my name is Andrea Pritchett, and I'm here tonight because

578
01:09:38.859 --> 01:09:45.110
Boardroom: I'm really concerned. I filed a police, accountability complaint on June 4th.

579
01:09:45.710 --> 01:09:50.249
Boardroom: I tried to bear witness, as the council member mentioned.

580
01:09:50.430 --> 01:10:00.510
Boardroom: How crucial it is to bear witness when we see state power unjustly being used… Against the innocent.

581
01:10:01.660 --> 01:10:03.970
Boardroom: I have waited 7 months Once!

582
01:10:04.150 --> 01:10:09.430
Boardroom: For the PAB to be able to produce relevant documents.

583
01:10:09.810 --> 01:10:15.529
Boardroom: I am waiting for the Chief to release the relevant documents in that case.

584
01:10:16.590 --> 01:10:19.589
Boardroom: And I find it, to be honest, it's kind of rich.

585
01:10:20.550 --> 01:10:25.090
Boardroom: That, that you guys can… can… your hearts are broken as they should be.

586
01:10:25.290 --> 01:10:31.450
Boardroom: About what happened to Alex, and what happened to Renee, but let's remember that they were trying to bear witness.

587
01:10:32.100 --> 01:10:33.550
Boardroom: to injustice.

588
01:10:34.700 --> 01:10:38.180
Boardroom: Our police in our town Threaten.

589
01:10:38.430 --> 01:10:39.610

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Boardroom: to arrest.

590
01:10:39.870 --> 01:10:46.329
Boardroom: They push. They put hands on. They put up barriers to our observation.

591
01:10:46.870 --> 01:10:51.350
Boardroom: And after all these months, I've gotten no satisfaction.

592
01:10:52.170 --> 01:10:55.049
Boardroom: Nobody has come to me and said, here's what we're gonna do about it.

593
01:10:55.840 --> 01:10:58.950
Boardroom: Nobody… have any of you looked at the video?

594
01:11:00.460 --> 01:11:03.069
Boardroom: Why have you concerned yourself with…

595
01:11:03.380 --> 01:11:06.850
Boardroom: police department, because what I see Is that…

596
01:11:07.110 --> 01:11:12.069
Boardroom: We are, instead of opening and transparent and working with the community.

597
01:11:12.410 --> 01:11:18.230
Boardroom: Every measure that this council has supported Is in the opposite direction.

598
01:11:18.670 --> 01:11:38.179
Boardroom: It takes us… we can't listen to scanner codes anymore. We… we're being subjected to mass surveillance. We are… we are re… trying to reintroduce tear gas. You're seeking to opt out of council review of agreements with those agencies that are perpetrating these crimes!

599
01:11:40.140 --> 01:11:42.699
Boardroom: I have more to say later. Thank you.

600
01:11:45.060 --> 01:11:46.950
Boardroom: Next… next commenter?

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601
01:11:50.780 --> 01:11:51.760
Boardroom: Go ahead.

602
01:11:52.290 --> 01:12:02.169
Boardroom: I'm Michael Johnson. I just want to introduce myself. I'm candidate for Superior Court Judge. This is not a campaign speech or anything like that, so…

603
01:12:03.830 --> 01:12:16.309
Boardroom: But I just, you know, wanted to get out into the community and let you know who I am and what I stand for. I had a moment to go around the community before the meeting tonight, and I asked people this weird question. I said.

604
01:12:16.340 --> 01:12:28.669
Boardroom: Do you know anything about judges? What do you think about the court? Other than the explicatives they gave me, they just said, you know, they want fairness, they want access, they want to be seen and respected and heard.

605
01:12:28.670 --> 01:12:39.390
Boardroom: And so, in my 30 years as an attorney, and my 5 years, as a pro tem judge, I give that. And so, I'm gonna be out in the community until the June 2nd election.

606
01:12:39.400 --> 01:12:53.349
Boardroom: just letting people know about my campaign, about me, and the values and things that I hold dear, and the values and things that people, hold dear in the community. So thank you for this opportunity, and if you have any questions, I'll be outside.

607
01:12:53.800 --> 01:12:55.970
Boardroom: Thank you. Thank you for your comment.

608
01:12:57.260 --> 01:13:01.499
Boardroom: We have one more, commenter, former Councilmember Davila.

609
01:13:06.180 --> 01:13:07.060
Boardroom: Go ahead.

610
01:13:07.440 --> 01:13:14.190
Boardroom: Free Palestine, so, you do a remembrance of the Holocaust? Lovely.

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611
01:13:14.290 --> 01:13:20.690
Boardroom: But, you know, there's a Holocaust going on right now that none of you have tried to stop.

612
01:13:21.430 --> 01:13:27.229
Boardroom: And can you pay attention? Can you look up? Can you listen? Act like you're doing your job?

613
01:13:27.610 --> 01:13:33.919
Boardroom: Because… People are dying every day in Palestine.

614
01:13:34.040 --> 01:13:35.380
Boardroom: Continued.

615
01:13:35.880 --> 01:13:40.820
Boardroom: I'm glad to see that you have your kefiyah again, because nothing's changed.

616
01:13:41.250 --> 01:13:45.670
Boardroom: And you… I haven't stopped wearing mine because nothing's changed.

617
01:13:45.940 --> 01:14:04.789
Boardroom: People are still dying, people are still starving. It's not real, isn't letting anything in to help people. They're going through really bad storms, rains, really cold temperatures. Babies are dying, freezing to death, Mayor.

618
01:14:04.810 --> 01:14:06.350
Boardroom: and Council.

619
01:14:06.840 --> 01:14:08.359
Boardroom: Freezing to death.

620
01:14:10.010 --> 01:14:11.540
Boardroom: Can you imagine?

621
01:14:11.800 --> 01:14:12.970
Boardroom: I can't.

622

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01:14:13.270 --> 01:14:15.100
Boardroom: I have a home I live in.

623
01:14:15.380 --> 01:14:17.600
Boardroom: an apartment, anyway, in Berkeley.

624
01:14:17.890 --> 01:14:21.369
Boardroom: But… People are dying.

625
01:14:22.280 --> 01:14:26.150
Boardroom: And you guys don't care, can't even look up.

626
01:14:26.640 --> 01:14:29.610
Boardroom: Not my representative in District 2.

627
01:14:29.930 --> 01:14:33.900
Boardroom: It's just really sad.

628
01:14:34.150 --> 01:14:40.530
Boardroom: That y'all don't give a crap about dying babies, dying people, and we're a sanctuary city.

629
01:14:40.760 --> 01:14:43.510
Boardroom: What are you gonna do when ICE comes here?

630
01:14:43.690 --> 01:14:48.640
Boardroom: Because, you know… it's… I don't… I hope it doesn't happen, but…

631
01:14:48.920 --> 01:14:57.039
Boardroom: We need to prepare for that. And tear gas isn't the way, council members who brought that forward. You know who you are.

632
01:14:58.330 --> 01:15:03.309
Boardroom: It's bear, it's meant for bears, animals, not people.

633
01:15:04.140 --> 01:15:07.130
Boardroom: And publicly, I want to thank

634
01:15:07.320 --> 01:15:15.560

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Boardroom: the council member who gave me the shovel at the African American Holistic Resource Center. Thank you. Councilmember for your comments.

635
01:15:17.350 --> 01:15:24.109
Boardroom: Just to double-check if there's anyone online who would like to give a Don Agenda public comment.

636
01:15:29.360 --> 01:15:34.740
Boardroom: Yes, there's two hands raised. First is, Alana Auerbach. Thank you.

637
01:15:35.550 --> 01:15:36.450
Boardroom: Go ahead.

638
01:15:38.260 --> 01:15:46.619
Elana Auerbach: Hi, good evening, everyone. This is Elon Auerbach, and I wanted you to know what our flock cameras are doing.

639
01:15:46.690 --> 01:15:56.409
Elana Auerbach: It was the day before Thanksgiving. I came back, I was walking, to my car from the dojo, on University, and I saw

640
01:15:56.470 --> 01:16:13.820
Elana Auerbach: Oh, I think it was 4 or 5 police SUVs. They pulled over one car, they were parked on Berkeley Way, and two young 20-something people were handcuffed, each of them, you know, a young man, a young woman, taken to two different cars.

641
01:16:14.310 --> 01:16:21.800
Elana Auerbach: I'm recording, I'm, you know, wondering if they've been told their rights. Then one of the cops goes and looks in their,

642
01:16:22.300 --> 01:16:44.959
Elana Auerbach: suitcases that were in the trunk of the car, and he told me that he had gotten permission from the driver of the car. And so, and the driver of the car had given him permission to search the car. But no, our Berkeley police would not search the car. They followed this young couple around Berkeley for an hour, because it was…

643
01:16:44.960 --> 01:16:49.789
Elana Auerbach: marked on flock by a San Jose police officer. So they…

644

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01:16:49.790 --> 01:16:57.510
Elana Auerbach: impounded the car on a Wednesday. These two young people, 20-something-year-olds, live in their car.

645
01:16:58.040 --> 01:17:01.189
Elana Auerbach: They do DoorDash to support themselves.

646
01:17:01.340 --> 01:17:15.269
Elana Auerbach: Now, they are… have no car, they have no home, they have no way to make money. That… that officer did not come up to Berkeley until Monday. Do you know how much money? It was over $1,200!

647
01:17:16.560 --> 01:17:25.340
Elana Auerbach: How many… why didn't they just search the car for a firearm? There was no firearm in that car. The San Jose police officer caused

648
01:17:25.610 --> 01:17:42.509
Elana Auerbach: undue harm to these young people, thanks to Flock. That was totally unnecessary. How many more of these incidents are happening when somebody like me is not watching to be a safety net for young people whose homes get taken away by our police department?

649
01:17:42.510 --> 01:17:44.540
Boardroom: Thank you, your time is done. Thank you for your comment.

650
01:17:46.850 --> 01:17:52.770
Boardroom: Next comment, Jim. And last speaker's phone number ending in 000.

651
01:17:54.200 --> 01:17:55.180
Boardroom: Go ahead.

652
01:17:57.170 --> 01:18:15.609
1510****000: Hi, good evening. So, my assistant Roy has handed you some paper today, and please read it carefully. We are going to file a complaint with the State Zero Attorney Office, as we did against Eric Gene a few… couple of years ago. The way the City of Berkeley treated our business… treated the residents of Berkeley is shameful.

653
01:18:15.750 --> 01:18:19.050
1510****000: As what's happening in Washington, D.C, this is monstrous.

654

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01:18:19.300 --> 01:18:27.070
1510****000: The German, during the fascists, they had a say. They came to my neighbor, nobody spoke, and did you come away? They came to my brother, nobody spoke.

655
01:18:27.070 --> 01:18:45.819
1510****000: And they came to me, nobody was left to speak for me. This is what's happening. This is a fascist. This man is a Russian Trojan horse, destroying everything. Every country in the world have free education, except America. Every country in the world have great healthcare, except America. These are a bunch of animals.

656
01:18:45.940 --> 01:18:59.040
1510****000: And that's insulting animals. Taking over this country, fascist, garbage, bloody, what they did to this poor… this innocent man in Minnesota, and the woman, is unforgivable.

657
01:18:59.180 --> 01:19:12.450
1510****000: It is unforgivable! Wake up, everybody, they're going to come after you. You are naked, each and every on you. No matter what color, or greed, or race, or anything. They're going to come after all of you, to take you away, take your money away. Have a good night.

658
01:19:15.300 --> 01:19:26.439
Boardroom: Thank you for your comment. I think that concludes non-agenda public comment. Thank you so much. We're gonna move on to the consent calendar now. First, before we take comments, I'd…

659
01:19:26.650 --> 01:19:37.219
Boardroom: I'd like to move item 22, Creating Accessible Routes for Riders, Equity in the environment, car-free budget referral to fund limiting cars on Telegraph Avenue to the consent calendar. Are there any objections?

660
01:19:39.820 --> 01:19:49.189
Boardroom: Great. Then, item 22 moves to consent. Thank you so much. Councilmembers, are there any comments on the consent calendar?

661
01:19:53.760 --> 01:19:55.080
Boardroom: Who wants to start?

662
01:19:57.120 --> 01:19:59.090
Boardroom: Councilmember Blackaby?

663

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01:19:59.510 --> 01:20:03.829
Boardroom: Alright, I'm number 31, according to this, so… that's right, that's okay.

664
01:20:03.900 --> 01:20:12.280
Boardroom: Just two comments. First on item 1, I just wanted to thank, the City Manager, Public Works, and the City Attorney's Office.

665
01:20:12.350 --> 01:20:26.100
Boardroom: for their really important and quick work. This is an item that many of us might just sort of flip through very quickly on an agenda, but this was a really important issue in our district, affecting several residents in an unstable hillside.

666
01:20:26.260 --> 01:20:42.660
Boardroom: And so, kind of upon learning about the situation, city staff really leapt into action and are moving quickly to address it, so I just wanted to thank, staff, for all their work on this. It's really important to residents there, and I appreciate, we really appreciate the efforts.

667
01:20:43.810 --> 01:20:59.450
Boardroom: And then the second, I… since we agendized the resolution, the ICE resolution tonight, I know we did… it wasn't in the packet. I did want to spend just a couple of minutes, to run through it, especially for people who are online who might not have a physical copy,

668
01:20:59.500 --> 01:21:13.280
Boardroom: So, on the resolution, first of all, I just wanted to thank the Mayor, and Julie Sinai from her team, thank Councilmember Lunapara, thank, Lori McWhorter from my team for all their work to put this together.

669
01:21:13.280 --> 01:21:19.809
Boardroom: Was really kind of a group collaborative effort, to put something together that we thought, we hoped, and I hope you'll agree.

670
01:21:19.810 --> 01:21:32.989
Boardroom: kind of responds to the moment that we find ourselves in, because again, what we're seeing in Minneapolis, what we've seen in Chicago, what we've seen in LA, we very well know, could happen here, or to other communities near us.

671
01:21:32.990 --> 01:21:47.030
Boardroom: And it was important to us to sort of, to kind of plant a flag about it and ask for relief and demand changes. And so this was our

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effort to, provide a vehicle where we could speak with one voice about that.

672
01:21:47.120 --> 01:22:02.999
Boardroom: So very briefly, to highlight what we say in this resolution, it's demanding an end to the ICEBP surges in Minneapolis across the country. It's demanding immediate DHS leadership changes and demanding necessary guardrails for any future funding bill for DHS.

673
01:22:03.000 --> 01:22:12.629
Boardroom: So on the first page, again, we just recite, the egregious actions, the horrific assaults that we have seen in recent weeks.

674
01:22:12.640 --> 01:22:24.949
Boardroom: We highlight, in particular, the fact that 10 individuals have died since September, including Renee Goode, Alex Pretty, Keith Porter Jr, and Silverio Villegas Gonzalez.

675
01:22:25.160 --> 01:22:32.550
Boardroom: In addition, at least 9 children have been detained, including 1 toddler, particularly cruel and inhumane.

676
01:22:32.920 --> 01:22:42.690
Boardroom: And the conditions of immigration detention facilities where people are being housed while they're being detained, being completely substandard and inadequate.

677
01:22:42.990 --> 01:22:50.579
Boardroom: Overall, since President Trump has taken office, 37 people that we know of so far have died.

678
01:22:50.810 --> 01:22:54.620
Boardroom: Including many deaths that we know have been preventable.

679
01:22:55.280 --> 01:23:11.269
Boardroom: So, the resolve clauses are what we are asking for in the resolution. The first is that we wanted to pledge our support and stand with the people of Minnesota, including Governor Walz, Lieutenant Governor, the mayors, the City Councils, and all the people of Minnesota who are

680
01:23:11.800 --> 01:23:19.190

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Boardroom: again, doing what I think the people of Berkeley would be doing if we faced the same situation, which is peacefully protesting this lawless surge.

681
01:23:19.710 --> 01:23:28.519
Boardroom: We're calling for an immediate end to Operation Metro Surge, and demanding that no future surges be initiated in any other city across the country.

682
01:23:28.660 --> 01:23:39.819
Boardroom: We're calling for the resignation of Secretary Noem, and failing that for impeachment of the Secretary, calling for the firing of, Gregory Bovino and Stephen Miller.

683
01:23:39.940 --> 01:23:42.250
Boardroom: And calling for,

684
01:23:42.470 --> 01:23:50.920
Boardroom: that the officers who are responsible for these deaths be held accountable for their actions by the states, if not by the United States Department of Justice.

685
01:23:51.210 --> 01:24:00.219
Boardroom: And then the big piece of this really is calling on Congress, then, to put in the guardrails for future action. It's really the power of the purse where this needs to happen.

686
01:24:00.320 --> 01:24:14.520
Boardroom: Ending the lawlessness, requiring masks, ending detention abuses, and we're calling on Congress not to provide any additional funding for DHS without these guardrails and until the leadership changes have taken place.

687
01:24:15.020 --> 01:24:18.299
Boardroom: We're calling on Congress to restructure DHS,

688
01:24:18.420 --> 01:24:30.309
Boardroom: to fundamentally rebuild from ground up, to abolish ICE in the process, and to start over, because what we have is clearly not working, and is working to the detriment of people in this country.

689
01:24:30.760 --> 01:24:37.310
Boardroom: And then lastly, we're asking that the governor here, and the attorney general here, help us prepare in this state

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690
01:24:37.630 --> 01:24:40.389
Boardroom: For what we hope doesn't happen, but we know could happen.

691
01:24:40.590 --> 01:24:53.199
Boardroom: And conducting additional training for the troops, for CHP and National Guard that we know will be called in to protect peaceful protesters here in California, so to prepare for that eventuality, hopefully don't need it.

692
01:24:53.590 --> 01:25:02.689
Boardroom: And also to prepare, as the Mayor said earlier, legal action to halt any future threatened federal funding cuts to sanctuary city jurisdictions like ours.

693
01:25:02.980 --> 01:25:09.440
Boardroom: And then we wanted to send a copy of this resolution to our entire congressional delegation, as well as leadership in Minnesota.

694
01:25:09.550 --> 01:25:24.240
Boardroom: And our, State Senator and our assembly member. So, again, I appreciate all the work that went into this, and, appreciate the support of my colleagues, and we'll be proud if we, move this forward tonight. Thank you.

695
01:25:26.150 --> 01:25:30.469
Boardroom: Thank you so much, Councilmember Blackaby, Councilmember Bartlett, and then Councilmember Humbert.

696
01:25:31.020 --> 01:25:39.819
Boardroom: Thank you, Madam Acting Mayor, and and thank you, Councillor Blackby, for your work there. Really, wonderful, positioning for us to take. Thank you.

697
01:25:39.940 --> 01:25:55.590
Boardroom: On a more local, lighter note, I just want to recognize, one of our dear, dear constituents here. Item number 11 is Urban Ore, contract renewal. Mary Lou is in the house, I see. Urban Ore is a place that makes,

698
01:25:55.950 --> 01:26:12.300
Boardroom: That makes, makes gold from lead, if you will. And, there was… we worked together on the Zero Waste Commission way back in the other decade. It's my first commission. And, great work. Congratulate you. You

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do great work for the community. Your labor turns are good. You serve the city well, year after year. Thank you.

699
01:26:14.370 --> 01:26:16.569
Boardroom: Thank you, Councilmember. Councilmember Humbert?

700
01:26:17.530 --> 01:26:26.519
Boardroom: Yes, thank you, Madam Acting Mayor. And first, I want to thank Council Member Blackaby and the co-sponsors, for bringing this urgency item.

701
01:26:26.770 --> 01:26:36.710
Boardroom: It's a really incredibly compelling document. I also want to ask, and want to thank everybody who pitched in, and worked on this on such an accelerated basis.

702
01:26:36.810 --> 01:26:52.619
Boardroom: It's just a critically important thing, and and I read it, and as I read it, I was very moved by it, and I don't know if there's any room for one more co-sponsor? Councilmember Blackaby, or… I think Councilmember Taplin saved it, yeah. Thank you.

703
01:26:52.820 --> 01:26:58.160
Boardroom: Anyway, it's a, it's an incredible, compelling document, and I really appreciate it.

704
01:26:58.730 --> 01:27:09.190
Boardroom: With respect to item… other items on the consent calendar, item number 5, which is…

705
01:27:09.220 --> 01:27:23.580
Boardroom: a contract for converting the Santa Fe track bed to a park. I just want to say I'm really excited about the prospect of a new park for Berkeley. Can't wait to go down there and see it in process and see it when it's done.

706
01:27:23.850 --> 01:27:30.090
Boardroom: And now that we have transferred… Wait a second…

707
01:27:30.310 --> 01:27:40.209
Boardroom: Oh, item number 17, I refer to the city manager to include in the community survey a poll question about increasing sales tax in the city of Berkeley.

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708
01:27:40.330 --> 01:27:49.529
Boardroom: I thank Councilmember Cassarwani for bringing this. I'm pleased to support it. Surrounding cities have increased their sales taxes the extra half percent.

709
01:27:49.550 --> 01:28:07.610
Boardroom: to 10.75, and given our dire budget circumstances, we should follow suit. I think, as I understand it, it may mean maybe $5 million in increased revenues for the general fund. It's certainly, certainly polling our constituents about this makes sense. And…

710
01:28:07.730 --> 01:28:12.650
Boardroom: I'm… Okay, we're the action calendar, except number 22.

711
01:28:12.820 --> 01:28:19.349
Boardroom: Has moved to… consent, and I have comments that I want to…

712
01:28:19.740 --> 01:28:25.440
Boardroom: make about that, if now's the appropriate time. Yes, now's the right time.

713
01:28:26.220 --> 01:28:34.539
Boardroom: I'm grateful to be added by Vice Mayor Lunapara as a co-sponsor on this item. I've gotten a number of emails. This is the item for…

714
01:28:37.080 --> 01:28:45.570
Boardroom: creating accessible routes for riders, equity, and the environment, car-free budget referral to fund limiting cars on Telegraph Avenue.

715
01:28:45.680 --> 01:29:01.919
Boardroom: I'm grateful, as I said, to be added as a co-sponsor. I've gotten a number of emails from constituents strongly in support of pedestrianizing telegraph from Dwight to Bancroft, something that councils, apparently since time immemorial, have been considering.

716
01:29:01.970 --> 01:29:13.380
Boardroom: Vice, Vice Mayor Lunapar's excellent staff found evidence of discussion as early as 1968, I think? Was it earlier? Or is that the earliest? A long time ago.

717
01:29:14.080 --> 01:29:32.790

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Boardroom: It makes all the sense in the world. We can see just how culturally and economically vibrant pedestrian corridors leading up to major universities are in other cities, including Charlottesville, Virginia, the University of Virginia, and Boulder, Colorado, the Pearl Street Mall leading up to the University of Colorado campus.

718
01:29:32.890 --> 01:29:46.350
Boardroom: I think this should be a perfect project for funding from our LRDP settlement with the University, and funds from Measure FF. Thank you again, Vice Mayor, for bringing this item, and, I certainly support it. Thanks.

719
01:29:46.500 --> 01:29:52.330
Boardroom: Thank you so much, Councilmember. I'm gonna go to Mayor Ishii, and then Councilmember O'Keefe.

720
01:29:53.620 --> 01:29:56.350
Adena Ishii: Thank you very much,

721
01:29:56.450 --> 01:30:20.199
Adena Ishii: I've got some comments here. I want to start by thanking Councilmember Blackaby for, and his staff for working on this item so quickly. I am in DC at the U.S. Conference of Mayors, and actually meeting with our representatives here. We met with Congresswoman Simon's office today and, let them know about some of the work that we're doing here, including this

722
01:30:20.200 --> 01:30:42.740
Adena Ishii: resolution and the amicus brief that we've signed on to. I also really want to thank School Board Member Jen Korn, who sent us the, draft that we were working off of, so thank you, school board member. Also excited about, item number 5 moving forward for the Santa Fe Track bed to park conversion remediation, demolition Perimeter fencing Project.

723
01:30:42.740 --> 01:30:50.750
Adena Ishii: It's been a long time coming, and it's great to see the progress. I'm pleased to work… to support item 11, which is the contract with Urban Ore.

724
01:30:50.750 --> 01:31:03.839
Adena Ishii: now that they settled their contract with the workers, really appreciate that we were able to move that forward. For item 16, I want to thank Councilmember Lunapara and Councilmember Humbert… Vice Mayor Lunapara and Councilmember Humbert for agreeing to serve on the newly organized

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725
01:31:03.840 --> 01:31:21.280
Adena Ishii: AC Transit Joint Interagency Liaison Committee consisting of Berkeley and Emeryville. And, just to briefly comment on Car Free Telegraph, very excited to, also be added on this item as well, and in support, of course.

726
01:31:21.330 --> 01:31:29.469
Adena Ishii: as a supporter, I do just… I think there are some folks there to speak, and I want to thank you all for being there to speak and support.

727
01:31:29.720 --> 01:31:36.479
Adena Ishii: And, and yeah, I'm looking forward to reporting back from the U.S. Conference of Mayors. Thanks very much.

728
01:31:37.810 --> 01:31:40.769
Boardroom: Thank you so much, Mayor. Councilmember O'Keefe?

729
01:31:41.750 --> 01:31:43.790
Boardroom: Thank you, Vice Mayor.

730
01:31:43.960 --> 01:31:53.200
Boardroom: I originally didn't have anything to say about the consent calendar, but, now that, was it item 22? Was moved to it, I do have something to say, which is,

731
01:31:53.820 --> 01:32:04.379
Boardroom: I wanted to, really be clear about my support for it, because I was made such a fuss about the last time we talked about the treatment of traffic on Telegraph.

732
01:32:04.420 --> 01:32:22.269
Boardroom: And while I still feel that way, I want to make clear that I think that Telegraph is a very different street north and south of Dwight, and I think north of Dwight, I think this makes perfect sense. I think it's an amazing, improvement to that area. Every time I find myself driving on Telegraph, on that part of Telegraph, I wonder…

733
01:32:22.500 --> 01:32:37.920
Boardroom: why I'm there. It feels very unsafe and very unnatural, and I think it would be really transformative for that area to be, you know, essentially pedestrian, pedestrian only. So, I just wanted to be explicit about my support, and I'm glad it's on the consent calendar. I'm happy to support it.

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734
01:32:39.490 --> 01:32:46.289
Boardroom: Thank you so much for your support, Councilmember. There are no other… Oh, Councilmember Traum?

735
01:32:47.580 --> 01:32:53.700
Boardroom: Sorry, the parliamentarian is on the slips. Thank you.

736
01:32:54.380 --> 01:33:07.770
Boardroom: Acting Madam, or Madam Acting Mayor, I, I first wanted to, thank, you and your team for the excellent work on item 22.

737
01:33:08.320 --> 01:33:09.450
Boardroom: Carfree.

738
01:33:09.660 --> 01:33:16.110
Boardroom: And I am excited to support it, and it was,

739
01:33:16.850 --> 01:33:21.619
Boardroom: I really appreciated the report, in, just…

740
01:33:21.840 --> 01:33:29.630
Boardroom: how long it has actually been to get to this point. So, hopefully this is one of the last,

741
01:33:29.910 --> 01:33:38.649
Boardroom: Blocks to navigate before we get all the way there to that vision of a, a telegraph for all.

742
01:33:38.760 --> 01:33:41.860
Boardroom: I,

743
01:33:42.120 --> 01:33:57.390
Boardroom: I wanted to just also say, a few words of appreciation to Councilmember Blackaby and the Mayor and all the co-sponsors on the urgency item.

744
01:33:58.140 --> 01:34:09.799
Boardroom: There are truly no words to describe the depth of depravity that has been normalized by the cruel policies unleashed by this federal administration.

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745
01:34:13.640 --> 01:34:19.560
Boardroom: If you want to… have… A very long cry.

746
01:34:20.390 --> 01:34:25.659
Boardroom: watch the video of the send-off of, Alex Preti in…

747
01:34:25.860 --> 01:34:30.180
Boardroom: Where he is being saluted by ICU nurses.

748
01:34:31.690 --> 01:34:38.580
Boardroom: But… I also want to thank The members of this community.

749
01:34:39.100 --> 01:34:41.950
Boardroom: for… their solidarity.

750
01:34:42.380 --> 01:34:45.780
Boardroom: And on Saturday, this has been…

751
01:34:46.030 --> 01:34:53.239
Boardroom: when I got the news of yet another extralegal killing in Minnesota,

752
01:34:53.550 --> 01:34:58.590
Boardroom: Frankly, I just wanted to lock myself in and, stay in bed.

753
01:34:58.730 --> 01:35:08.369
Boardroom: And it was a constituent in my district, Wendy, who invited me to actually not do that, but to come out to Civic Center Park.

754
01:35:08.510 --> 01:35:11.559
Boardroom: And stage a spontaneous protest.

755
01:35:12.040 --> 01:35:13.159
Boardroom: And we did.

756
01:35:13.290 --> 01:35:22.489
Boardroom: And we were joined by more and more folks, just, we saw a former state senator walking by, and she joined us for a few minutes.

757
01:35:22.620 --> 01:35:31.860

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Boardroom: A lady was driving by, driving down from Placer County, and she joined us for the entire hour that we were there.

758
01:35:32.030 --> 01:35:43.300
Boardroom: And then the next day, the nurses at Oakland Children's staged, a rally that was, I saw probably hundreds of people there.

759
01:35:43.420 --> 01:35:48.829
Boardroom: I know that… the community here.

760
01:35:49.040 --> 01:35:52.480
Boardroom: Is not braving sub-zero weather.

761
01:35:52.710 --> 01:35:56.909
Boardroom: And, these, agents.

762
01:35:57.680 --> 01:35:59.869
Boardroom: In, in neighborhoods.

763
01:36:00.050 --> 01:36:12.010
Boardroom: To the extent that Minnesotas are… But… I want to just express My, statement of solidarity.

764
01:36:12.320 --> 01:36:18.259
Boardroom: and the community's statement of solidarity with the good people of Minnesota.

765
01:36:19.530 --> 01:36:22.610
Boardroom: The arc of the moral universe is long.

766
01:36:22.780 --> 01:36:25.110
Boardroom: But it ever bends towards justice.

767
01:36:27.750 --> 01:36:29.909
Boardroom: Thank you so much, Councilmember.

768
01:36:31.300 --> 01:36:40.619
Boardroom: I have a couple comments I want to give. I first, I want to thank Councilmember Blackaby and co-sponsors and their staff for the partnership on this urgency item.

769

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01:36:40.740 --> 01:36:42.580
Boardroom: I feel…

770
01:36:42.900 --> 01:36:51.960
Boardroom: privileged to serve on a body that is boldly standing up and saying that ICE must be abolished. And I want to remind our community that for over a year.

771
01:36:51.960 --> 01:37:03.559
Boardroom: We as a city have been preparing for increased immigration enforcement in Berkeley in collaboration with our partner organizations, and I have faith that our government and our residents are prepared to rise up and non-violently resist

772
01:37:03.560 --> 01:37:17.890
Boardroom: if and when the Trump administration ramps up their attacks on our neighbors. For those who want to learn more about how to support, each other, reach out to the members of the Berkeley Immigration Collaborative, the Social Justice Collaborative, Multicultural Institute, East Bay Sanctuary Covenant.

773
01:37:17.890 --> 01:37:27.009
Boardroom: East Bay Community Law Center, and Oasis Legal Services. I also want to encourage people to join me at the Rally for Justice for Victims of ICE Terror at Sproul Plaza at UC Berkeley tomorrow at 2 p.m.

774
01:37:27.990 --> 01:37:37.290
Boardroom: I also want to thank the Mayor for, adding myself and Councilmember Taplin to the AC Transit, liaison Committee.

775
01:37:37.940 --> 01:37:49.519
Boardroom: For item 22, I first want to add Mayor Ishii, Councilmember Humber, and Councilmember Blackaby. Thank you, for your co-sponsorship and my colleagues for your support.

776
01:37:49.780 --> 01:37:59.060
Boardroom: I'm really excited about this referral. It's been really a long time in the making, and if you read, all of the details of the referral, you can see a lot of the research that we've done.

777
01:37:59.500 --> 01:38:01.240
Boardroom: from information

778
01:38:01.680 --> 01:38:14.859

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Boardroom: As far as held in the UC Berkeley Library, this project was first introduced in 1963, and has been identified as a priority, in a handful of items since then across iterations of councils and varying

779
01:38:15.060 --> 01:38:31.499
Boardroom: political landscapes. As the item highlights, District 7 has the highest concentration of collision injuries compared to other districts, has the highest rate of residents who walk, bike, and take public transit, and households who do not own cars, and has the highest rate of new housing development and population growth.

780
01:38:31.700 --> 01:38:46.720
Boardroom: During my campaign in 2024, traffic violence in Southside was one of the biggest concerns among District 7 residents. And while Southside Complete Streets has made a huge difference in the lives of residents, visitors, and students, Telegraph Avenue remains a high-injury, deadly corridor.

781
01:38:48.130 --> 01:39:05.050
Boardroom: District 7 is uniquely positioned to become a citywide model for pedestrian, bicycle, and transit center design. Given the city's considerable investment in new street safety infrastructure through Measure FF and the concurrent safety upgrades in the area, this is a prime moment to request the long-overdue funding to move this project forward.

782
01:39:05.480 --> 01:39:12.919
Boardroom: The budget is also a top concern of mine, and I know of our Council as well, so I wanted to be cognizant of this when requesting such a large sum of money.

783
01:39:12.950 --> 01:39:27.689
Boardroom: This item requests $0 from the general fund. It instead requests funding from special funds with restricted uses, the most prominent being LRDP, which is restricted from UC Berkeley settlement to be used within a mile of main campus boundaries.

784
01:39:28.630 --> 01:39:34.329
Boardroom: For future phases, I hope that the project can leverage county, state, and federal transportation funds as needed.

785
01:39:34.430 --> 01:39:50.479
Boardroom: I also want to give a huge thank you to Director Davis, to Deputy Director Amiri, and their work for collaborating on this budget referral. Your work is greatly appreciated. I just want to note that in

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terms of process, this is just the budget component of former Councilmember Robinson's referral, which was passed in 2022.

786
01:39:50.480 --> 01:39:58.950
Boardroom: This work also could not have been done without him, so I want to thank him, his staff, and the countless advocates for keeping this 60-year-long project alive.

787
01:39:59.660 --> 01:40:09.950
Boardroom: I also want to thank, on item 11, I want to thank the workers of Urban Ore for showing us such a powerful example of labor organizing, and I'm happy that this contract can finally move forward.

788
01:40:10.280 --> 01:40:11.200
Boardroom: Thank you.

789
01:40:11.540 --> 01:40:18.029
Boardroom: If there are no more comments from council members, we can go on to public comment on the consent calendar.

790
01:40:18.080 --> 01:40:35.790
Boardroom: I would like to remind everyone that the consent calendar, public comment period, is the public's opportunity to speak on item 20, as well, if you would like to tonight, as well as item 22. So please come up if you have a comment on the item, and if you're online, please raise your hand.

791
01:40:36.640 --> 01:40:44.890
Boardroom: We're gonna have, one minute per speaker, given the amount of speakers that would like to comment. I want to speak on the ICE item.

792
01:40:46.120 --> 01:41:00.249
Boardroom: When Renee Goode was shot, I believe the ICE agent that shot her is an 8-year employee, and when Alex Pretty was murdered, he was murdered by a border agent of 10 years.

793
01:41:00.490 --> 01:41:05.600
Boardroom: This is really disturbing, because it makes you wonder

794
01:41:05.920 --> 01:41:14.519
Boardroom: how many people have crossed the border from Mexico, from Central American countries, but there were no cameras there?

795

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01:41:14.940 --> 01:41:20.829
Boardroom: How many people weren't American citizens who have been

796
01:41:21.100 --> 01:41:40.259
Boardroom: murdered, and this didn't happen overnight. Their personalities didn't change overnight, and so I'm not confident that even if Christy Noem was gone, or Gregory Bovina was gone, and Stephen Miller were all gone, that we would have…

797
01:41:40.550 --> 01:41:45.670
Boardroom: not have this going on. We are going to have a lot of repair to do. Thank you.

798
01:41:45.900 --> 01:41:47.200
Boardroom: Thank you for your comment.

799
01:41:47.540 --> 01:41:48.859
Boardroom: Next speaker, please.

800
01:41:53.550 --> 01:41:54.350
Boardroom: Go ahead.

801
01:41:55.390 --> 01:41:57.439
Boardroom: Hello, I'm Mary Lou Van Deventter.

802
01:41:57.590 --> 01:42:01.370
Boardroom: From Urban Ore. I'm the General Manager right now.

803
01:42:01.530 --> 01:42:05.620
Boardroom: And, co-owner with my husband, Daniel Knapp.

804
01:42:05.820 --> 01:42:10.230
Boardroom: who, Dr. Daniel Knapp, who is the, founder, really.

805
01:42:10.430 --> 01:42:14.829
Boardroom: And I want to thank you very much, Councilmember Bartlett, I appreciate it.

806
01:42:15.500 --> 01:42:22.210
Boardroom: And, thought… Your work was very good when you were on the commission.

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807
01:42:22.770 --> 01:42:27.879
Boardroom: I wanted to say… As you consider our contract tonight.

808
01:42:28.180 --> 01:42:41.250
Boardroom: that, urban ore was called into existence by the city's 1976 Solid Waste Management Plan, when the City of Berkeley was running its own landfill, which is now Cesar Chavez Park.

809
01:42:41.490 --> 01:42:48.349
Boardroom: There was a nonprofit who tried to do this and failed, and we arose from its ashes, and we have succeeded.

810
01:42:48.620 --> 01:42:55.300
Boardroom: So we've been going since, October 1980. We incorporated in July 1981.

811
01:42:55.670 --> 01:42:59.870
Boardroom: And I wanted you to know that we've always been true to our promise.

812
01:43:00.000 --> 01:43:03.150
Boardroom: to pay a living wage… Sir, you… everyone has one minute.

813
01:43:03.310 --> 01:43:05.269
Boardroom: But thank you so much for your comments.

814
01:43:06.850 --> 01:43:08.620
Boardroom: Thanks. Next speaker, please.

815
01:43:13.570 --> 01:43:22.959
Boardroom: Hello, Council. My name is Bryce Nesbitt. I've been here before, but not for a while. I actually drive more on telegraph these days because of how my work ends up.

816
01:43:23.160 --> 01:43:26.049
Boardroom: But every time I do, just like Shoshana O'Keefe said.

817
01:43:26.290 --> 01:43:31.790
Boardroom: I want… I don't… that's not the right place to be, with a car, really.

818

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01:43:32.100 --> 01:43:34.570
Boardroom: But I do have a challenge for you.

819
01:43:34.680 --> 01:43:35.900
Boardroom: as counsel.

820
01:43:36.030 --> 01:43:37.279
Boardroom: And it'll be hard for you.

821
01:43:37.540 --> 01:43:45.300
Boardroom: You'll be thinking of this as a bike or pedestrian or kind of greeny activity, but there's a lot of businesses along that corridor.

822
01:43:45.710 --> 01:43:49.979
Boardroom: And I challenge you to think of this as a business-first move.

823
01:43:50.980 --> 01:44:00.790
Boardroom: Because that quarter only makes sense in the context of those businesses being vibrant, being able to get their deliveries, being able to operate their business.

824
01:44:01.050 --> 01:44:03.520
Boardroom: And I think that'll be hard for you as a council.

825
01:44:04.830 --> 01:44:12.570
Boardroom: Other things in the city have not been particularly friendly to local businesses, including the corridors plan.

826
01:44:13.030 --> 01:44:14.809
Boardroom: But let's be super positive.

827
01:44:14.960 --> 01:44:17.170
Boardroom: Thank you. Thank you for your comments.

828
01:44:18.030 --> 01:44:19.939
Boardroom: Thank you. Next speaker, please.

829
01:44:22.830 --> 01:44:23.629
Boardroom: Go ahead.

830
01:44:23.970 --> 01:44:42.220

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Boardroom: Hi, my name is Sonia Carabell, I'm with Unite Here Local 2. We represent hotel and restaurant workers around the Bay Area, including at the Doubletree, Berkeley, the Residence Inn, and formerly at His Lordships. And, we sent some concerns about the option agreement with TSL… TSA Holdings that's here in front of you tonight.

831
01:44:42.220 --> 01:44:57.710
Boardroom: Relating to worker retention and to labor peace, but we have discussed with the City Manager, and as he said, we are comfortable moving forward with this tonight, and we really appreciate, both, Vice Mayor Luna Parra's office and the City Manager for working with us on this. Thank you.

832
01:44:58.550 --> 01:44:59.739
Boardroom: Thank you so much.

833
01:45:00.220 --> 01:45:01.470
Boardroom: Next comment, please.

834
01:45:05.200 --> 01:45:23.539
Boardroom: Good evening, Council. My name is Leila Hamidi. I'm a UC Berkeley student, a member of Telegraph for People, and a former volunteer for the Measure FF campaign, and I'd like to thank, Vice Mayor Lena Parra and her staff for introducing item 22 to the agenda, and urge the Council to pass it on consent. As we all know, pedestrianizing Telegraph north of Dwight is a long interview…

835
01:45:23.540 --> 01:45:30.780
Boardroom: Overdue intervention that will improve safety, livability, and environmental conditions for everyone who lives, works, and visits in the Southside.

836
01:45:30.780 --> 01:45:55.429
Boardroom: District 7 was where I was lucky enough to experience life in a dense, urban, walkable environment for the first time, and I'm so proud to know that I was part of a movement, to give other future UC Berkeley students, the opportunity to experience the full potential of telegraph as we know it, so I'm very grateful, to everyone on this council who supports this measure and allocating this money, especially in a tight budget year, and I hope that this momentum will be carried towards researching and investing

837
01:45:55.430 --> 01:45:58.630
Boardroom: in, safe, green corridors across Berkeley. Thank you.

838

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01:45:59.180 --> 01:46:00.880
Boardroom: Thank you so much for your comment.

839
01:46:01.760 --> 01:46:02.890
Boardroom: Next commenter.

840
01:46:04.260 --> 01:46:05.050
Boardroom: Go ahead.

841
01:46:05.210 --> 01:46:14.329
Boardroom: Good evening, Council. My name is Jacob Dadman, and I'm here representing the Sierra Club, Northern Alameda County Group, and we are here to speak in support of the car-free telegraph option.

842
01:46:14.460 --> 01:46:25.579
Boardroom: By limiting or removing cars on Telegraph, the City of Berkeley can create new public green space on the south side, reduce car dependency, and improve the lives of the tens of thousands of people who use Telegraph every day.

843
01:46:25.630 --> 01:46:40.130
Boardroom: By installing mature trees, water-permeable surfaces, and amenities like benches and tables, Telegraph can become a welcoming, vibrant plaza that increases climate resilience and brings significant economic benefits to nearby businesses.

844
01:46:40.130 --> 01:46:46.950
Boardroom: This vision aligns with the Sierra Club's goals to reduce car dependency and increase green space in urban areas.

845
01:46:47.540 --> 01:46:54.960
Boardroom: Pedestrianizing Telegraph is a decades-old dream that increases safety, sustainability, and joy in the heart of the Southside.

846
01:46:55.220 --> 01:46:58.190
Boardroom: With the right leadership and a thoughtful planning process.

847
01:46:58.340 --> 01:47:00.399
Boardroom: We can make that dream a reality.

848
01:47:00.620 --> 01:47:05.709
Boardroom: We thank you for making Berkeley a more resilient and sustainable city for generations to come.

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849
01:47:06.210 --> 01:47:07.949
Boardroom: Thank you so much, right on time.

850
01:47:08.680 --> 01:47:09.950
Boardroom: Next commenter.

851
01:47:12.930 --> 01:47:25.019
Boardroom: Go ahead. Hello, my name is Shane, and I'm the president of Telegraph for People, and I've lived in Southside for 2 years. Every day, I push through crowded Telegraph sidewalks, pausing as I cross intersections larger than my entire apartment to wonder what else the space could be used for.

852
01:47:25.020 --> 01:47:38.759
Boardroom: I've also noticed little joys on these sidewalks. Chess games, live music, conversations with friends, inspiring murals. I've also felt my skin jump as I try to dodge cars on my bike, wondering if one will honor my crosswalk, shouting over the traffic nestled between trash cans and one lane of walking room.

853
01:47:38.770 --> 01:47:49.690
Boardroom: In the last few months, it's also been increasingly obvious that the dangers we've long brought attention to are not just theoretical. Incidents of traffic violence have happened on our neighbor streets, a block from where I live.

854
01:47:49.760 --> 01:48:06.590
Boardroom: These are real people, our community members, not just theoretical or statistics. I hold these very heavy in my heart. A car-free telegraph is the key to vibrancy and safety in our community. This has been a generational project, and I'm excited to see it move to the next phase for a hopeful future where the street serves us rather than cars. Thank you.

855
01:48:07.430 --> 01:48:08.770
Boardroom: Thank you so much.

856
01:48:09.600 --> 01:48:11.220
Boardroom: Next commenter, please.

857
01:48:12.790 --> 01:48:13.660
Boardroom: Go ahead.

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858
01:48:13.880 --> 01:48:37.130
Boardroom: Hi, my name is Audrey Kramer, and I am here on behalf of Cal Berkeley Democrats to voice our support for, the car-free telegraph item. I'm a resident of District 6, but I'm here to say that the telegraph being accessible would be good for all of us. I am on Telegraph almost every single day, even though I live all the way over there. Telegraph is currently not bike-friendly, I use my bicycle every day, and

859
01:48:37.130 --> 01:48:46.960
Boardroom: I try to bike on Telegraph all the time, and it is never successful for me, so I'm very excited, to see Car Free Telegraph flourish in any capacity. Thank you.

860
01:48:47.690 --> 01:48:49.599
Boardroom: Thank you so much for your comment.

861
01:48:50.630 --> 01:48:51.880
Boardroom: Next commenter?

862
01:48:53.520 --> 01:48:54.350
Boardroom: Go ahead.

863
01:48:55.120 --> 01:49:04.640
Boardroom: Hello. I'm here to voice my support for Council Item 17. I think that maintaining a balanced budget is especially important for cities.

864
01:49:04.870 --> 01:49:15.250
Boardroom: I would prefer, like, I think it'd be prudent to raise the tax by more than .5%, but obviously you need voter approval, so I understand why.

865
01:49:15.300 --> 01:49:27.159
Boardroom: tax increases might be limited. I'd also like to voice my support for item 22. I think that it's great that, what's it called? It remains very budget-conscious.

866
01:49:27.360 --> 01:49:30.280
Boardroom: And I think that's, yeah,

867
01:49:30.640 --> 01:49:42.020

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Boardroom: collecting information about, like, how we can manage the car infrastructure in the city is obviously a good thing. For the future, I think it's a great investment, and yeah, that's about all. Thank you.

868
01:49:42.710 --> 01:49:44.030
Boardroom: Thank you so much.

869
01:49:44.460 --> 01:49:45.939
Boardroom: Next commenter, please.

870
01:49:47.560 --> 01:49:48.450
Boardroom: Go ahead.

871
01:49:48.790 --> 01:50:08.289
Boardroom: What up, Council? Rebecca Mervish, speaking on behalf of Walk Bike Berkeley. Thank you for moving the car-free telegraph item to consent. It really speaks to the popularity and common sense associated with this project. As Councilmember Humbert mentioned, people have been advocating for a car-free telegraph for decades, so it's about time we move forward with funding for it.

872
01:50:08.290 --> 01:50:13.920
Boardroom: Even more pressing given the recent bicyclist fatality that would not have happened if cars were allowed on telegraph.

873
01:50:13.920 --> 01:50:28.410
Boardroom: And then I also just want to speak in a personal capacity, that this is the project that I am most excited about. This is the first thing that got me involved in Berkeley politics. Probably the first council meeting I went to was about, telegraph.

874
01:50:28.420 --> 01:50:42.719
Boardroom: And so, a special extra shout-out to Vice Mayor Luna Parra, who, is sort of my partner in crime in getting started, telegraph for people at UC Berkeley, and a shout-out to.

875
01:50:42.720 --> 01:50:48.529
Boardroom: our other teammates who got it started, and to, Councilmember,

876
01:50:48.530 --> 01:50:53.020
Boardroom: Roger Robinson, who also helped with this. Thank you. Thank you so much for your comment.

877

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01:50:55.700 --> 01:51:15.249
Boardroom: Go ahead. Hello, Council. My name is Spencer, and I'm a UC Berkeley student, one of the officers of Telegraph for People, and I want to second the support of my… that my fellow speakers mentioned for, Telegraph, the continuation of, support and monies for the, vision of Telegraph.

878
01:51:15.330 --> 01:51:27.190
Boardroom: And the continuation of the generation-on, process of, hopefully, pedestrianized and, bike-only, streets.

879
01:51:27.300 --> 01:51:42.719
Boardroom: And, I… I don't know if any of you went to the Holiday Market on Telegraph last month, but it was truly amazing to simply walk across the street freely and safely, and visit shops without worrying about cars. So, thank you for moving.

880
01:51:43.660 --> 01:51:45.380
Boardroom: Thank you so much for your comment.

881
01:51:48.520 --> 01:51:59.109
Boardroom: Go ahead. Good evening, City Council and Mayor. My name is Rusco Kayong-Young. I'm speaking as an individual. I'm a proud former Berkeley City Council staffer who worked with Lori to

882
01:51:59.110 --> 01:52:08.590
Boardroom: are now City Manager, Paul Butenhagen, who went on to the California State Senate to work in the State Capitol, and I've seen Councilmember Triggum, there, many times in Sacramento.

883
01:52:08.590 --> 01:52:15.359
Boardroom: I'm here to support, speak in support of the emergency item, and I recommend the Council add some language.

884
01:52:15.360 --> 01:52:34.449
Boardroom: I support abolishing ICE, and when they abolish ICE, which is the highest-funded law enforcement aid federal agency, we should emphasize, the importance of reallocating the funding into investing in our seniors, in our youth, people with disabilities, people receiving SNAP, food stamps, Medi-Cal, and Medicaid.

885
01:52:35.110 --> 01:52:46.270
Boardroom: Investing in our social services, creates a healthy community, and, also, just wanna, just wanna, thank the Council for having this item. Thank you.

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886
01:52:47.300 --> 01:52:48.589
Boardroom: Thank you for your comment.

887
01:52:51.800 --> 01:52:54.440
Boardroom: I think I got another minute. Okay, great.

888
01:52:55.170 --> 01:53:01.939
Boardroom: Two minutes. Thank you. Go ahead. So, I appreciate the sentiment of the urgency item, I really do.

889
01:53:02.510 --> 01:53:07.659
Boardroom: But I also come from a tradition that says words without actions turn to lies.

890
01:53:09.010 --> 01:53:15.760
Boardroom: And that if you really are worried about the depths of depravity, which we did see, which we are witnessing in this very moment.

891
01:53:17.030 --> 01:53:19.700
Boardroom: Then we need to see the actions

892
01:53:20.120 --> 01:53:26.199
Boardroom: A lot of words are spoken, but we need to see the actions. How will this Council protect us?

893
01:53:28.040 --> 01:53:37.270
Boardroom: I… they're talking about infiltrating our signal chats. They're… they're… and you, Council, are poised, as is your chief of police.

894
01:53:38.030 --> 01:53:42.989
Boardroom: To continue to gather data on your people.

895
01:53:43.510 --> 01:53:45.460
Boardroom: Data that you cannot protect!

896
01:53:45.720 --> 01:53:49.979
Boardroom: The chief lies to you constantly! Oh, we won't give it to him, oh, they might…

897

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01:53:50.190 --> 01:53:51.649
Boardroom: You can't protect it!

898
01:53:51.860 --> 01:53:53.880
Boardroom: It gets infiltrated all the time.

899
01:53:54.540 --> 01:54:04.459
Boardroom: Yeah, sure, Berkeley won't say, here's the data, but hey, you don't have control of it. So we say, if you can't protect it, do not collect it.

900
01:54:06.460 --> 01:54:08.790
Boardroom: Flock is dangerous to us.

901
01:54:10.090 --> 01:54:12.740
Boardroom: And we need your acknowledgement of that.

902
01:54:13.530 --> 01:54:19.619
Boardroom: And I gotta say, when you guys are poised to impose… you want tear gas against us now?

903
01:54:20.390 --> 01:54:24.690
Boardroom: The chief said, yes, that'll be for crowd control. She passes by it quickly.

904
01:54:24.810 --> 01:54:26.880
Boardroom: But at least she was honest about that.

905
01:54:27.480 --> 01:54:30.610
Boardroom: So what are… I don't understand where you guys are at.

906
01:54:31.440 --> 01:54:35.820
Boardroom: Will you work with us in this very dangerous time?

907
01:54:36.790 --> 01:54:41.050
Boardroom: How will you What will you do? Not what will you say.

908
01:54:41.550 --> 01:54:46.760
Boardroom: But where will you meet us to protect us? It is very scary.

909
01:54:47.330 --> 01:54:51.289

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Boardroom: We're looking around. The Super Bowl is coming. ICE is coming.

910
01:54:51.540 --> 01:54:56.370
Boardroom: I don't need you to protest, Brother Council Member, I need you to resist.

911
01:54:56.960 --> 01:54:58.860
Boardroom: I need you to lead that.

912
01:54:59.110 --> 01:55:01.170
Boardroom: Thank you. Thank you for your comments.

913
01:55:02.430 --> 01:55:03.120
Boardroom: Hmm.

914
01:55:11.990 --> 01:55:16.060
Boardroom: Sometimes it's tough to be last, because that was a hard act to follow.

915
01:55:16.660 --> 01:55:22.440
Boardroom: All right, and Cecilia, you're doing just such a… Fabulous job.

916
01:55:22.950 --> 01:55:27.059
Boardroom: Thank you. Okay, I want to thank you for honoring Barbara with Mecca.

917
01:55:27.620 --> 01:55:32.419
Boardroom: And… I want to acknowledge Mary Lou here.

918
01:55:33.350 --> 01:55:37.349
Boardroom: That's one of the items, number 11, I really support them.

919
01:55:37.750 --> 01:55:43.100
Boardroom: Because they are the hippie paradigm from waste… for waste not, want not.

920
01:55:43.670 --> 01:55:53.299
Boardroom: There's treasures to be taken care of and shared. Oh, and I have an extra minute. I keep forgetting to tell you, it's that gentleman in the back.

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921
01:55:53.410 --> 01:56:00.240
Boardroom: So kudos to Urban Ore, please support them, and thank them for this.

922
01:56:01.720 --> 01:56:11.279
Boardroom: Really hard work at creating a community hub for sharing resources and for taking care of the employees also.

923
01:56:11.400 --> 01:56:14.680
Boardroom: Alright, so… to number 7.

924
01:56:14.850 --> 01:56:24.699
Boardroom: I can vouch for the necessity and the capacity to have equitable community engagement. I worked for over a year with the Ecology Center and the

925
01:56:24.810 --> 01:56:34.470
Boardroom: Grant connected with the, City of Berkeley, and it was awesome. So please, let's support the Ecology Center and that number 7.

926
01:56:34.800 --> 01:56:46.199
Boardroom: Number 13, I need to breathe, and I really support whatever we can do to help ventilation, because I'm forever running around, opening up windows, doors, and getting into nothing but good trouble.

927
01:56:46.510 --> 01:56:48.360
Boardroom: Number 15.

928
01:56:48.650 --> 01:56:57.089
Boardroom: more parking management and less traffic congestion, please. Number 17, no more sales tax.

929
01:56:57.160 --> 01:57:13.519
Boardroom: There is more than enough money to be saved if we wouldn't waste it, and other people that have more money to share it. And number 22, I'm concerned about unintended consequences. I'm into safety, but we also need to have passageway

930
01:57:13.820 --> 01:57:18.499
Boardroom: for emergency vehicles, Thank you. Thank you so much.

931
01:57:19.340 --> 01:57:22.790

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Boardroom: Let's move to public comments online.

932
01:57:24.020 --> 01:57:30.829
Boardroom: Okay, we currently have 7 hands raised. We'll start with the first speaker, Whitney Sparks.

933
01:57:33.420 --> 01:57:35.230
Whitney Sparks: Hello, can you hear me?

934
01:57:35.320 --> 01:57:44.529
Whitney Sparks: Happy New Year! Thank you, Ms. Pritchett. I am right here behind you to say, if you're gonna have an ICE item and talk about abolishing ICE,

935
01:57:44.530 --> 01:58:08.890
Whitney Sparks: Cancel the flock contract. I have been away from meetings because they're extremely triggering with the institutionalized misogynoir that happens and the silencing and erasure of Black women's voices, but you've got to protect our community and our neighbors. Cancel the flock contract if you want to abolish ICE. You cannot collect data on us and not know where it goes and have it in the hands of law enforcements who kill and beat

936
01:58:09.060 --> 01:58:10.590
Whitney Sparks: and abuse…

937
01:58:10.590 --> 01:58:33.030
Whitney Sparks: people, citizens like me, when nobody cared, about, black neurodivergent people, mothers, when we were getting killed, that's when I was being silenced at, city council meetings, just like this. I, I haven't forgotten. You can't collect data on us and then say you want to abolish ICE. They're doing the exact same thing, it's the exact same pattern. Law enforcement, ICE, police, they're all the same, they're IOF.

938
01:58:34.100 --> 01:58:42.670
Whitney Sparks: if you don't want to have genocidal tactics, happen to our community here, I'm in District 7, I'm in Vice Mayor Lunapar's district, so I don't really care.

939
01:58:42.670 --> 01:58:47.130
Boardroom: For right now. Okay, next is Cheryl Davila, former council member.

940
01:58:50.880 --> 01:58:58.990

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Cheryl Davila, Former Councilmember, Founder CEMTF: I agree with the last two speakers. You can't have… abolish ICE without canceling FLOC. FLOC is…

941
01:58:59.130 --> 01:59:07.489
Cheryl Davila, Former Councilmember, Founder CEMTF: data is not owned by the City of Berkeley. They will not I listened to your rules.

942
01:59:08.070 --> 01:59:23.900
Cheryl Davila, Former Councilmember, Founder CEMTF: And they will do whatever they want to do, give the information to whomever. So you need to cancel, your contract with Flock. The IOF, the IGF, it's not real, aka Israel's.

943
01:59:24.090 --> 01:59:37.879
Cheryl Davila, Former Councilmember, Founder CEMTF: offensive, forces. It's not real genocidal forces. It's not real. Terrorist forces. They train ICE.

944
01:59:38.060 --> 01:59:53.920
Cheryl Davila, Former Councilmember, Founder CEMTF: We do not need ice, flock, any of that shit, because we're a sanctuary city, and you know they're gonna come for us. So you're not prepared, even though you said you were earlier. How are you preparing? I don't see anybody out on the street talking to…

945
01:59:53.920 --> 01:59:57.060
Boardroom: Your time is up, thank you. Next is Alex Knox.

946
02:00:02.680 --> 02:00:20.649
Alex Knox: Good evening, Alex Knox, Telegraph Business Improvement District. On item 15, I just, I want to say I respect the efforts by staff to address the critical financial issues, and it's unfortunate that the debt service on Center Street is just driving rate increases citywide. However, you know, I understand that,

947
02:00:20.900 --> 02:00:24.299
Alex Knox: You know, it's… it's a big issue for us, this,

948
02:00:24.470 --> 02:00:37.869
Alex Knox: the Telegraph Shannon Garage on the south side that bears what appears to be the brunt of the rate increases. And I just ask that, you know, there be careful scrutiny and transparency on the expenses side, as well as, of course, reviewing of the revenue side.

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949
02:00:37.870 --> 02:00:47.379
Alex Knox: Because, you know, services are not equitable and fair. We still have shameful conditions from long-term neglect at the Telegraph Channing Garage.

950
02:00:47.380 --> 02:00:53.069
Alex Knox: I also want to say that I appreciate the enthusiasm around item 22 and for improving the telegraph.

951
02:00:53.070 --> 02:01:06.679
Alex Knox: I strongly encourage that enthusiasm to translate to, you know, recognition of the unique challenges and complexity of implementing these changes, but regardless of how this work ultimately moves forward.

952
02:01:06.680 --> 02:01:07.070
Boardroom: Thank you.

953
02:01:07.070 --> 02:01:08.589
Alex Knox: We, we look forward to…

954
02:01:08.860 --> 02:01:12.710
Boardroom: Thank you, Alex. Okay, next is, Jennifer Korn.

955
02:01:17.300 --> 02:01:18.460
Jennifer Corn: Good evening.

956
02:01:18.760 --> 02:01:37.710
Jennifer Corn: My name is Jen Korn, I'm Vice President of the Berkeley School Board. I'm grateful for tonight's urgency resolution denouncing ICE's lawlessness and violence, and calling on our representatives in Washington to take decisive action to protect not only the people of Minnesota, but all of us and all of our neighbors.

957
02:01:37.710 --> 02:01:49.420
Jennifer Corn: I intend to bring a similar resolution to our school board in response to the devastating impacts we're seeing on children, families, and schools, including 600 children who've been detained by ICE,

958
02:01:49.420 --> 02:01:59.829
Jennifer Corn: Violent ICE actions on school campuses in the Twin Cities, and as a result, huge numbers of families that are keeping their children at home because they feel unsafe sending them to school.

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959
02:02:00.030 --> 02:02:03.700
Jennifer Corn: Thank you to count… to all of you for your partnership in this work.

960
02:02:05.450 --> 02:02:06.730
Boardroom: Thank you for your comment.

961
02:02:07.680 --> 02:02:13.580
Boardroom: Okay… Next is… John Lindsay Poland.

962
02:02:17.070 --> 02:02:22.390
John Lindsay-Poland: Good evening. I wanted to let you know that a few minutes ago.

963
02:02:22.460 --> 02:02:40.709
John Lindsay-Poland: the Alameda County Board of Supervisors followed in your footsteps and passed unanimously a resolution for keeping ice out of county-owned facilities. But, you know, the… in response to what others have said, that resolution… there's actually two resolutions at the county level.

964
02:02:40.710 --> 02:02:57.439
John Lindsay-Poland: And the other one includes a lot of different measures to protect people within the county. And so, in terms of concrete action, there are dozens of points in that resolution. I urge you to study it, and do what needs to be done in Berkeley, what the city, what corresponds to the city.

965
02:02:57.440 --> 02:03:03.619
John Lindsay-Poland: to actually protect people against ICE operations on many different levels, including getting rid of the flock contract.

966
02:03:03.760 --> 02:03:19.609
John Lindsay-Poland: Because there's many different things that the city can do besides urge federal representatives to vote to… against the ICE funding that's coming before the Senate this Friday, which is super important. But there are many things that are practical and local. Thanks.

967
02:03:19.610 --> 02:03:20.969
Boardroom: Thank you for your comment.

968

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02:03:22.130 --> 02:03:24.290
Boardroom: Next is Kelly Hammergren.

969
02:03:29.490 --> 02:03:36.029
kelly hammargren: Thank you, I appreciate the resolution, but, it's just words.

970
02:03:36.610 --> 02:03:50.510
kelly hammargren: Tom Holman, the one who's going to be in charge now, is the one who planned the family separations, so this doesn't mean that they're actually going to get any relief. My family's in Minnesota, we're texting.

971
02:03:50.820 --> 02:03:53.509
kelly hammargren: It makes me cry every time I read it.

972
02:03:54.220 --> 02:04:07.899
kelly hammargren: On number 15, the Go Berkeley, how much more does it cost us to increase the rates? I, you know, I just don't have confidence in this plan. I feel like we're…

973
02:04:07.930 --> 02:04:14.680
kelly hammargren: chasing the cost of operating the plan, and I feel like there needs to be more analysis.

974
02:04:14.950 --> 02:04:23.980
kelly hammargren: To follow up on 22, I think it's a great idea to make telegraph for people, but what makes Telegraph

975
02:04:25.600 --> 02:04:32.570
kelly hammargren: makes the people want to be there are… are all the businesses, and so I would like you to…

976
02:04:32.570 --> 02:04:32.920
Boardroom: Thank you.

977
02:04:33.370 --> 02:04:35.369
kelly hammargren: And look at the businesses.

978
02:04:35.370 --> 02:04:37.059
Boardroom: Ms. Thank you. Thank you.

979

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02:04:37.450 --> 02:04:41.480
Boardroom: Last hand raised is Alana Auerbach.

980
02:04:44.400 --> 02:04:57.919
Elana Auerbach: Hello again. I just want to encourage you that this, emergency item be the very beginning, the baby step. Yes, it needs to be done, and now we need tangible

981
02:04:58.050 --> 02:05:04.059
Elana Auerbach: Actions. How are we organizing? How do we know? What are the police going to be doing?

982
02:05:04.360 --> 02:05:20.580
Elana Auerbach: How are people being trained? Are there know your rights? What are the networks? All of this stuff… yes, there is a lot going on in Berkeley that I imagine some of you know about, and probably some of you don't have most of a clue of what's happening on the ground.

983
02:05:20.720 --> 02:05:38.739
Elana Auerbach: We need to coordinate. We need to be ready. You are our elected leaders. Words are empty without actions. A first action you can do is item 21, and, you know, adopt Blackbee's supplemental, and stop flock.

984
02:05:38.860 --> 02:05:48.780
Elana Auerbach: So start taking actions that actually protect us. Show us that you are leading from a place that you want to abolish ICE and not just words. Thank you.

985
02:05:48.780 --> 02:05:50.480
Boardroom: Thank you. Thank you for your comment.

986
02:05:51.060 --> 02:06:01.080
Boardroom: Okay, that's the last, public commenter for consent. Okay. Great. Thank you so much. Unless there are more comments from council members, I'll entertain a motion.

987
02:06:01.840 --> 02:06:02.830
Boardroom: So moved.

988
02:06:04.260 --> 02:06:21.780
Boardroom: And one quick comment, just wanted… I would be remiss in not thanking Mary Lou and Dan of Urban Ore, as well as all the workers of

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Urban Ore for their leadership and partnership, and very excited that this is on the consent calendar.

989
02:06:22.360 --> 02:06:23.230
Boardroom: Second.

990
02:06:25.780 --> 02:06:33.889
Boardroom: Okay. Should we call the roll? Yes, to adopt a consent calendar, including the urgency item that was added to the agenda, Councilmember Kisarwani.

991
02:06:34.310 --> 02:06:47.410
Boardroom: Yes. Taplin? Yes. Bartlett? Yes. Trey Gubb? Aye. O'Keefe? Yes. Blackaby? Yes. Vice Mayor Lunapara? Yes. Councilmember Humbert? Yes. Mayor Ishii?

992
02:06:47.900 --> 02:06:48.690
Adena Ishii: Yes.

993
02:06:49.090 --> 02:06:51.100
Boardroom: Okay, consent calendar is adopted.

994
02:06:51.370 --> 02:06:52.840
Boardroom: Thank you so much.

995
02:06:53.650 --> 02:06:55.500
Boardroom: Thank you, everyone, for coming out.

996
02:06:57.120 --> 02:07:02.540
Boardroom: Moving on to the action calendar, I think we should do…

997
02:07:02.780 --> 02:07:14.410
Boardroom: Item 18 and 19, and then do a quick break before we do item 21. So I'd like to open the public hearing for item 18. Is there, a staff presentation?

998
02:07:16.390 --> 02:07:20.189
Boardroom: There's no staff presentation, but we're happy… staff is here if there are questions.

999
02:07:20.460 --> 02:07:22.140
Boardroom: Okay, great, thank you.

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1000
02:07:22.370 --> 02:07:25.440
Boardroom: Does, Council have any questions for staff?

1001
02:07:28.880 --> 02:07:29.610
Boardroom: Okay.

1002
02:07:30.090 --> 02:07:32.210
Boardroom: Is there any public comment?

1003
02:07:32.530 --> 02:07:38.839
Boardroom: On item 18, implement residential preferential parking RPP program on the 1700 block of Cedar Street.

1004
02:07:41.190 --> 02:07:46.739
Boardroom: Seeing none in person, are there any online? No commenters on… online.

1005
02:07:48.030 --> 02:07:52.569
Boardroom: Okay, is there a motion to close the public hearing? I so move.

1006
02:07:52.570 --> 02:07:53.439
Adena Ishii: I'm moved.

1007
02:07:54.150 --> 02:07:55.000
Adena Ishii: Second.

1008
02:07:56.090 --> 02:08:00.199
Boardroom: Okay, moved and seconded to close the public hearing. Councilmember Kisarwani.

1009
02:08:00.970 --> 02:08:06.559
Boardroom: Yes. Kaplan? Yes. Bartlett? Yes. Traev? Aye. O'Keefe?

1010
02:08:06.800 --> 02:08:13.490
Boardroom: Yes. Blackaby? Yes. Vice Mayor Lunapara? Yes. Councilmember Humbert? Yes. And Mayor Ishii?

1011
02:08:13.720 --> 02:08:14.500
Adena Ishii: Yes.

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1012
02:08:14.880 --> 02:08:19.860
Boardroom: Okay, public hearing's closed. Thank you. Council, do you have any comments?

1013
02:08:23.840 --> 02:08:29.189
Boardroom: Councilmember O'Keefe? Doesn't work. Well, this is in District 5.

1014
02:08:29.450 --> 02:08:31.640
Boardroom: So, my comment is…

1015
02:08:31.890 --> 02:08:38.620
Boardroom: I received exactly one email about this, and it was in support. So, it's good, and I'll move to…

1016
02:08:39.430 --> 02:08:40.310
Boardroom: Approve it.

1017
02:08:41.420 --> 02:08:44.299
Boardroom: Great. Thank you, Councilmember. Councilmember Humbert?

1018
02:08:44.650 --> 02:09:03.430
Boardroom: Yeah, I want to thank Public Works staff for their efforts on this. It may seem like a small thing, but being responsive on quality of life issues like this can go a long way toward positive public perceptions of city government. It appears that the neighbors have followed the proper procedure to obtain residential permit parking in this area.

1019
02:09:03.560 --> 02:09:05.790
Boardroom: And so I'll vote yes. Thanks.

1020
02:09:07.350 --> 02:09:09.420
Boardroom: There's a motion, do we have a second?

1021
02:09:10.380 --> 02:09:11.100
Adena Ishii: second it.

1022
02:09:12.450 --> 02:09:21.610
Boardroom: Okay, can we call the roll? Okay. To approve the RPP program for the 1700 block of Cedar Street, Councilmember Kessarwani? Yes.

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1023
02:09:21.720 --> 02:09:32.139
Boardroom: Taplin? Yes. Bartlett? Yes. Trega? Aye. O'Keefe? Yes. Blackaby? Yes. Vice Mayor Lenopara? Yes. Councilmember Humbert? Yes. And Mayor Ishii?

1024
02:09:32.460 --> 02:09:33.200
Adena Ishii: Yes.

1025
02:09:33.740 --> 02:09:35.269
Boardroom: Okay, item is approved.

1026
02:09:36.940 --> 02:09:46.740
Boardroom: Great, thank you so much. Now I'll open the public hearing for item 19, Selected Marina Fee Increases. Is there a staff presentation for this item?

1027
02:09:47.160 --> 02:09:51.060
Boardroom: Again, there isn't, but staff are available for questions. Thank you so much.

1028
02:09:51.470 --> 02:09:54.120
Boardroom: Colleagues, are there any questions?

1029
02:09:55.470 --> 02:09:56.580
Boardroom: On this item.

1030
02:09:57.550 --> 02:09:59.250
Boardroom: Oh, Councilmember Trega?

1031
02:09:59.950 --> 02:10:02.020
Boardroom: No. Oh, okay.

1032
02:10:03.970 --> 02:10:10.029
Boardroom: Okay, seeing no questions, is there any public comment on item 19, selected marina fee increases?

1033
02:10:14.730 --> 02:10:16.839
Boardroom: You're good, it's okay, you don't have to run.

1034
02:10:17.130 --> 02:10:18.150

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Boardroom: I see you.

1035
02:10:27.650 --> 02:10:36.790
Boardroom: Go ahead. You guys are just so nutritious, I guess I had an extra burst of energy. I'm not familiar enough, but again, raising fees…

1036
02:10:37.300 --> 02:10:42.769
Boardroom: On such a… Popular place for people to congregate.

1037
02:10:43.030 --> 02:10:46.300
Boardroom: It's like… Please, let's not keep…

1038
02:10:47.900 --> 02:10:52.519
Boardroom: Hitting on the little people. I don't want to hit on anyone, by the way, but…

1039
02:10:53.150 --> 02:10:56.390
Boardroom: We need… I mean, we lost People's Park, we're not…

1040
02:10:56.650 --> 02:11:02.689
Boardroom: We need spaces to repose our soul, and I would prefer that we don't raise fees.

1041
02:11:02.980 --> 02:11:07.870
Boardroom: to just enjoy the quality of life. Unless, of course, I don't understand

1042
02:11:08.040 --> 02:11:10.559
Boardroom: But that's my public comment. Thank you.

1043
02:11:11.730 --> 02:11:12.930
Boardroom: Thank you, Maria.

1044
02:11:13.360 --> 02:11:15.640
Boardroom: Are there any other comments in person?

1045
02:11:17.070 --> 02:11:18.240
Boardroom: Any online?

1046
02:11:18.550 --> 02:11:20.999
Boardroom: No hands raised online.

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1047
02:11:21.250 --> 02:11:22.879
Boardroom: Okay, thank you.

1048
02:11:23.000 --> 02:11:25.299
Boardroom: Is there a motion to close the public hearing?

1049
02:11:25.500 --> 02:11:29.390
Boardroom: some of… Is there a second?

1050
02:11:30.190 --> 02:11:33.960
Boardroom: I'll second. Okay. Can we take the roll?

1051
02:11:34.230 --> 02:11:40.389
Boardroom: Okay, close the public hearing. Councilmember Kastarwani? Yes. Taplin? Yes. Bartlett?

1052
02:11:40.570 --> 02:11:49.670
Boardroom: Yes. Tragedy? Aye. O'Keefe? Yes. Blackbee? Yes. Vice Mayor Lunapara? Yes. Councilmember Humbert? Yes. Mayor Ishii?

1053
02:11:50.220 --> 02:11:51.090
Adena Ishii: Yes.

1054
02:11:51.670 --> 02:11:57.029
Boardroom: Okay, public hearing is closed. Thank you. Are there any comments from Council members?

1055
02:11:57.590 --> 02:11:58.589
Boardroom: On this item?

1056
02:12:00.700 --> 02:12:03.920
Boardroom: Okay. Seeing none, is there a motion?

1057
02:12:05.200 --> 02:12:06.420
Boardroom: Move to approve.

1058
02:12:07.710 --> 02:12:08.410
Boardroom: Second.

1059

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02:12:09.660 --> 02:12:19.650
Boardroom: Seconded by Councilmember Bartlett. Can I take the roll? Okay, to approve the selected marina fee increases, Councilmember Kesarwani?

1060
02:12:19.820 --> 02:12:20.690
Boardroom: Yes.

1061
02:12:20.800 --> 02:12:30.329
Boardroom: Taplin? Yes. Bartlett? Yes. Tregeb? Aye. O'Keefe? Yes. Blackaby? Yes. Vice Mayor Lunapara? Yes.

1062
02:12:30.470 --> 02:12:32.200
Boardroom: Councilmember Humbert? Yes.

1063
02:12:32.200 --> 02:12:33.270
Adena Ishii: Mayor Ishii.

1064
02:12:33.530 --> 02:12:34.270
Adena Ishii: Yes.

1065
02:12:34.730 --> 02:12:36.280
Boardroom: Okay, the item is approved.

1066
02:12:37.380 --> 02:12:43.490
Boardroom: Great, okay, thank you. Let's, take a 10-minute break and come back at 7.40.

1067
02:12:44.430 --> 02:12:45.880
Boardroom: Okay. Thank you.

1068
02:12:51.050 --> 02:12:53.990
Boardroom: Do we need to do a, roll call again? No.

1069
02:12:54.210 --> 02:12:54.920
Boardroom: Okay.

1070
02:12:55.490 --> 02:13:13.300
Boardroom: Okay, moving on to item 21, recession and replacement of the Police Equipment and Community Safety Ordinance. Councilmember Humbert, would you like to present your item? Yes, I would. Madam Acting Mayor. Since this is a complex item, and we have a supplemental from Councilmember

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1071
02:13:13.410 --> 02:13:26.399
Boardroom: And former PAB member Blackaby, I might ask a little lenience if I happen to go over time as I introduce my item, or I'm in the process of trying to have these versions meet in the middle.

1072
02:13:26.780 --> 02:13:36.139
Boardroom: I want to thank my co-author, Councilmember O'Keefe, for her collaboration on this item, as well as other members of the Public Safety Subcommittee for their review and input.

1073
02:13:36.820 --> 02:13:42.599
Boardroom: I also want to thank Chief Lewis and Arlo from BPD for their suggestions and partnership on this item.

1074
02:13:44.150 --> 02:14:03.630
Boardroom: I also want to thank our city clerk and clerk staff, who offered excellent suggestions to help clean up the language of the complicated item and ensure everything was procedurally sound. And finally, I want to thank the PAB, the Police Accountability Board, for their ongoing work, and for taking, the time to seriously review this item and offer their

1075
02:14:03.640 --> 02:14:06.040
Boardroom: Very significant suggestions.

1076
02:14:06.340 --> 02:14:16.770
Boardroom: The overall purpose of this new ordinance is simple. To bring out our local reporting requirements on police acquisition and use of military equipment.

1077
02:14:16.910 --> 02:14:19.980
Boardroom: Into line with what the state requires.

1078
02:14:20.200 --> 02:14:30.979
Boardroom: To eliminate duplication and consolidate the required reporting, and to streamline reporting requirements to focus on the most urgent aspects of military equipment use.

1079
02:14:31.880 --> 02:14:44.959
Boardroom: Between state-level reporting requirements, our existing use of force reporting, our existing military equipment policies, and the retention of reporting around certain types of military equipment deployment.

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1080
02:14:44.960 --> 02:14:53.790
Boardroom: I believe this replacement ordinance provides for sufficient disclosure and oversight by the Council and review by the Police Accountability Board.

1081
02:14:53.790 --> 02:14:57.120
Boardroom: And of course, I'm happy to answer any questions folks may have.

1082
02:14:57.340 --> 02:15:16.649
Boardroom: I also want to say that I appreciate the Police Accountability Board's attention to the item, again, and offering suggested changes. I'm somewhat wary of adopting some of those suggested changes, which I feel run counter to the purpose of this proposal, and would perpetuate duplicative or otherwise superfluous reporting.

1083
02:15:16.830 --> 02:15:21.889
Boardroom: This said, I know my colleague, Councilmember Blackaby, who served on the PAB,

1084
02:15:22.200 --> 02:15:38.999
Boardroom: himself, and as a member of the Council's Public Safety Subcommittee, has brought forward a supplemental that addresses some of the PAB's comments, and I would be eager to hear from him… I would be eager to hear him introduce his supplemental, and any further edits or suggestions he may have.

1085
02:15:39.220 --> 02:15:52.159
Boardroom: Although there were some items on the supplemental that I was a bit concerned about, I'm hopeful that we can square the circle here. And with the Chair's permission, I'd like to yield the floor to Councilmember Blackaby so he can present.

1086
02:15:54.490 --> 02:16:02.390
Boardroom: Great. Thank you, Councilmember. Councilmember Blackaby? Thanks, Madam Acting Mayor, and, thank you to Councilmember Humbert, Councilmember O'Keefe.

1087
02:16:02.550 --> 02:16:05.560
Boardroom: For their leadership in bringing this item forward.

1088
02:16:05.640 --> 02:16:18.979

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Boardroom: We share absolutely a common, goal, which is to streamline the reporting process and streamline the data collection process and make sure that we continue to provide enough transparency, around these issues for members of the community.

1089
02:16:18.980 --> 02:16:30.729
Boardroom: So, we also really appreciate the feedback we did get from the Police Accountability Board. And so with all that in mind, I submitted a supplemental, which I'll share here very briefly.

1090
02:16:30.770 --> 02:16:36.199
Boardroom: And at least highlight, the changes that we are proposing in our supplemental.

1091
02:16:36.280 --> 02:16:43.710
Boardroom: To, I think, kind of, again, find the right balance here. So let me share my screen.

1092
02:16:44.040 --> 02:16:48.729
Boardroom: Here's a summary of what we're proposing the supplemental.

1093
02:16:48.920 --> 02:17:02.740
Boardroom: One is that, the state made a number of findings in AB4081 directly about why this is so important, that we agree with, I think we all agree with, and I just… we wanted to incorporate that directly into our ordinance, which we've done in page 1.

1094
02:17:02.740 --> 02:17:11.109
Boardroom: We totally agree with the fact that we should be rescinding the old ordinance, we should streamline down to one annual report as opposed to the current two.

1095
02:17:11.110 --> 02:17:15.590
Boardroom: And I think what we did, sort of in the balance of the item.

1096
02:17:15.660 --> 02:17:30.440
Boardroom: Is to continue to follow what, was said in the statute in AB41, which is it does encourage local governments to implement additional requirements and standards that meet local requirements, and sort of what the local community expects.

1097
02:17:30.440 --> 02:17:37.940
Boardroom: And so, to that end, we added back some of the language around reporting on all deployments of military equipment.

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1098
02:17:37.969 --> 02:17:56.050
Boardroom: Not just in the context of the First Amendment activity, but all deployments. And we also wanted to maintain, the PAB's role in reviewing use policies, impact statements, and annual reports, but streamline the review period, to what we proposed as 60 days instead of 90.

1099
02:17:56.309 --> 02:18:07.369
Boardroom: So that's the balance of what's in our item. We have the red lines that's in the supplemental packet for people, and you can see the changes that we've made.

1100
02:18:07.500 --> 02:18:12.900
Boardroom: Subsequent to that, We've also had conversations with staff.

1101
02:18:13.120 --> 02:18:21.800
Boardroom: And I wanted to share, and Councilmember Humbert, don't know, you know, how many of these have been seen, but staff then also, I think, reviewed both

1102
02:18:22.040 --> 02:18:32.469
Boardroom: The main item, our supplemental item, had some additional feedback, again, I think in the spirit of trying to find a way that we could square this. So let me also share that feedback.

1103
02:18:34.889 --> 02:18:39.989
Boardroom: And then, just want to put all that on the table for our consideration, as we go forward here.

1104
02:18:40.500 --> 02:18:47.580
Boardroom: So the edits… That we got back.

1105
02:18:48.030 --> 02:18:56.799
Boardroom: Very specific. I'm sure, again, as all of us, and I'll let, you know, obviously the Chief can speak to this soon, but, you know.

1106
02:18:57.020 --> 02:19:08.489
Boardroom: recognizing there's some compromise here, and that… but I think some general understanding of what we put in the supplemental, but we're asking for consideration on these items, and there's 7.

1107
02:19:08.820 --> 02:19:17.129

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Boardroom: Again, we can bring this back during discussion later, but the first was, there's reference in our item

1108
02:19:17.230 --> 02:19:32.250
Boardroom: to pepper spray and pepper balls in their inclusion in the reporting requirements, and staff is observing that those items don't need to be included as additional items, because they are included in the current BPD Policy 300 in terms of reporting.

1109
02:19:32.250 --> 02:19:38.819
Boardroom: and also included… pepper balls included in State Law AB481. So, the need here.

1110
02:19:38.820 --> 02:19:45.720
Boardroom: they were observing was… didn't need to call them out specifically, they are already incorporated by reference. That was one edit.

1111
02:19:46.010 --> 02:19:50.879
Boardroom: Second was a timing, consideration here, which is…

1112
02:19:50.880 --> 02:20:06.320
Boardroom: Rather than requiring 15 days, say, at least 12 days prior to a public meeting, because it aligns with how the clerk currently agendizes meetings, and that would meet the current timeline, which, again, is a general practice, and why be different than the current practice?

1113
02:20:06.670 --> 02:20:23.380
Boardroom: Three, we had a clause about PAV's role in recommending and reviewing, police equipment. And rather than basically saying, rather than approving for compliance.

1114
02:20:23.420 --> 02:20:35.899
Boardroom: that the onus is on the PAB to deny for noncompliance. It's sort of an opt-out versus opt-in, which again feels… it's sort of in the spirit of the legislation, which is to say, if the PAB does not act.

1115
02:20:35.900 --> 02:20:48.319
Boardroom: it comes to City Council for approval, but if they see that there is a non-compliance with other standards, they can recommend denial of that request, which I think, again, is pretty clear on their role.

1116
02:20:48.350 --> 02:20:53.230

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Boardroom: Councilmember, sorry, sorry to interrupt, but do you mind making it bigger? Oh, I'm sorry, yeah, sure. Mayor Ishii?

1117
02:20:53.410 --> 02:21:05.259
Boardroom: Sorry. I was having a hard time. Yeah, Mayor was losing her eyesight. She was like, there we go, great. We also, upon reflection, this is an edit, and I'll put it on the table, maybe we get rid of this word.

1118
02:21:05.300 --> 02:21:19.340
Boardroom: only, because I think there might be other, reasons that the PAB might recommend denial, and I don't know if it needs to be only if it determines noncompliance with the standards and government code. Anyway, so that was an edit to your edit that I looked at.

1119
02:21:19.580 --> 02:21:29.230
Boardroom: 4 was… there's just a heading in our item that was longer, it's Police Accountability Board Review Required. We just call that Police Accountability Board Review.

1120
02:21:29.380 --> 02:21:32.040
Boardroom: Item 5…

1121
02:21:32.200 --> 02:21:47.569
Boardroom: was basically saying, I think this is a discussion we can have, is what's the right period of time for review? Currently, the technology, the, the technology ordinance, surveillance technology ordinance, requires a 30-day review period for PAB.

1122
02:21:47.680 --> 02:22:07.599
Boardroom: So the suggestion from staff is to bring all of these things into alignment, and I think we should just drill into how that 30 days works as we have the discussion, but again, give the PAB time for consideration before it comes to us, but not make it 90 days. The proposal here is 30 days, which lines it up with the surveillance technology ordinance.

1123
02:22:07.810 --> 02:22:22.400
Boardroom: Again, number 6 is, similar. It… that the annual report is submitted to Council either after the PAB review or 30 days, whichever comes first.

1124
02:22:22.950 --> 02:22:37.500

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Boardroom: And then Section 7, is a recommendation from staff to not, create a private right of action around violations that the City Council retains ultimate authority to approve or deny any equipment use.

1125
02:22:37.640 --> 02:22:40.149
Boardroom: So those were the seven…

1126
02:22:41.330 --> 02:22:57.139
Boardroom: there was Councilmember Humbert and Councilmember O'Keefe's initial draft, our supplemental, which redlined that draft, and these were some feedback and additional items for consideration from staff on our bedline. So I think that's what's in front of us tonight.

1127
02:22:57.280 --> 02:22:59.849
Boardroom: Thank you so much. Thank you. And may I respond?

1128
02:23:00.000 --> 02:23:06.769
Boardroom: Yes. Very quickly. There are a lot of moving parts here, and I've followed very closely, but I think

1129
02:23:06.890 --> 02:23:11.060
Boardroom: That, with the edits, I heard Councilmember Blackby enumerate just now.

1130
02:23:11.390 --> 02:23:16.179
Boardroom: I'm comfortable incorporating his supplemental as a friendly amendment.

1131
02:23:17.620 --> 02:23:34.299
Boardroom: But first, I'd like to check with our police chief and Arlo. Do you feel this supplemental, with the additional edits described by Councilmember Blackaby, would serve to meet the purpose of the proposed rescission? Are there any aspects of the supplemental you feel remain problematic?

1132
02:23:34.410 --> 02:23:37.980
Boardroom: No, I, I, I agree. It does me care. Okay. Thank you.

1133
02:23:38.360 --> 02:23:53.510
Boardroom: Now I need to turn to my, co-sponsor, Councilmember O'Keefe, to see if she's amenable to all of this. Yeah, I absolutely am, and I appreciate Councilmember Blackaby's edits, and I appreciate the feedback from the Chief. Thank you.

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1134
02:23:53.640 --> 02:24:00.339
Boardroom: That's all I have now. Thank you. Are there any, comments from Councilmembers? Or, sorry, questions?

1135
02:24:00.500 --> 02:24:01.240
Boardroom: First?

1136
02:24:05.470 --> 02:24:14.389
Boardroom: Councilmember Bartlett? Thank you, Madam Acting Mayor. And, and thank you for, Councilmember, Humbert and your work on the, the committee.

1137
02:24:14.540 --> 02:24:29.349
Boardroom: put this together, and thank you for your edits, Mr. Councilor Blackaby. And, well, I don't see, anyone from the PAB to ask. So, I mean, reading through it earlier and then looking at it now, it appears as if many of the changes,

1138
02:24:29.350 --> 02:24:35.540
Boardroom: Between the two of you, appear to be pretty, pretty reasonable, pretty common sense streamlining.

1139
02:24:35.550 --> 02:24:51.200
Boardroom: And, and making things align more easily, with the law, and just not be duplicative. And so, you know, I guess I'm wondering, was there a policy, sort of concept behind the narrowing of the reporting days?

1140
02:24:51.220 --> 02:24:52.909
Boardroom: From 90 to 30.

1141
02:24:54.940 --> 02:25:10.660
Boardroom: I'll say, and I'll offer, I think it's in the spirit of, A, consistency with what the current surveillance technology ordinance says, which is 30 days, rather than have some standards that are 90 and some that are 30 for fundamentally the same kind of review, either reviewing an annual report on police equipment.

1142
02:25:10.680 --> 02:25:26.800
Boardroom: you're, analyzing use reports on new police equipment, or you're looking, again, use… suggested uses for new surveillance technology, kind of putting that in a 30-day window. I will have some questions about how that 30-day use works in practice, but yeah, I think that was the idea.

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1143
02:25:27.170 --> 02:25:29.099
Boardroom: Thank you, this was my only question. Thank you.

1144
02:25:29.870 --> 02:25:38.069
Boardroom: Thank you, Councilmember. The parliamentarian system is not working, so I turned it off. So, if anyone has comments… yeah, Councilmember, or questions, Councilmember Trago.

1145
02:25:38.370 --> 02:25:44.220
Boardroom: Thank you, and, yeah, just, I…

1146
02:25:45.400 --> 02:25:53.420
Boardroom: I appreciate… I had an opportunity to discuss this without my… within my Brown Act circle with Councilmember Blackaby, but just…

1147
02:25:53.770 --> 02:25:56.780
Boardroom: For the record, just conforming.

1148
02:25:56.900 --> 02:26:00.470
Boardroom: The effective date,

1149
02:26:00.770 --> 02:26:17.610
Boardroom: upon… when it says it shall apply to the 2025 report and all subsequent reports, the 2025 report would be the report issued in 2026 this year, but looking back at 2025, correct?

1150
02:26:19.440 --> 02:26:25.010
Boardroom: Yeah, that's correct. Under the old system, we would be preparing both, local

1151
02:26:25.010 --> 02:26:44.940
Boardroom: ordinance report that would be due around March, with those very specific timeline, reporting requirements, and then we would also be reporting in June a very similar, but slightly different report. Under… if this passes this evening, that language would then direct us to report… prepare a single report under the new guidelines that would come around June.

1152
02:26:47.610 --> 02:26:48.700
Boardroom: Thank you.

1153

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02:26:49.340 --> 02:26:59.719
Boardroom: And then maybe one more question, the findings, that was taken directly out of, state law, correct?

1154
02:26:59.970 --> 02:27:02.620
Boardroom: Yeah, and I can show those real quick if you'd like to see them.

1155
02:27:07.590 --> 02:27:12.450
Boardroom: Yeah. Section C, the City adopts all the state's findings articulated in AB481.

1156
02:27:16.310 --> 02:27:18.680
Boardroom: Thank you, Councilmember. Mayor Ishii?

1157
02:27:20.540 --> 02:27:25.750
Adena Ishii: Yes, I'm just wondering if we can take a look at, the seventh one. I couldn't quite see that.

1158
02:27:27.250 --> 02:27:28.609
Boardroom: Yep, coming up.

1159
02:27:31.580 --> 02:27:32.239
Adena Ishii: to my hearing.

1160
02:27:41.640 --> 02:27:49.069
Boardroom: So it strikes, 2.100.070, so let me show you, if you want to see that language, let me pull that up.

1161
02:27:57.810 --> 02:28:01.960
Boardroom: Sorry for the fast scroll, here is… That's the clause.

1162
02:28:02.110 --> 02:28:06.519
Boardroom: That would, would be, this proposal to be to strike that language?

1163
02:28:19.180 --> 02:28:27.310
Adena Ishii: Thank you, and I'm… I just took a picture of it so I can review it a little closely, more closely, and, no worries, that's fine. And,

1164
02:28:27.720 --> 02:28:33.010

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Adena Ishii: I also have some questions about how this would look in practice for the 30 days.

1165
02:28:34.490 --> 02:28:50.909
Adena Ishii: because I think my primary concern is that what happens sometimes when we send things to PAB is that, 30 days should be enough for them to review it, but they may not get it or have a meeting, at the beginning of that 30-day window, and so I'm a little concerned about just

1166
02:28:50.910 --> 02:28:56.239
Adena Ishii: the… that, the timing. So I don't know if someone's there can speak to that.

1167
02:28:59.050 --> 02:29:01.099
Boardroom: I'm not sure if we have,

1168
02:29:01.400 --> 02:29:04.770
Boardroom: PAB or ODPA representative on the line?

1169
02:29:06.950 --> 02:29:07.680
Boardroom: Sorry?

1170
02:29:09.400 --> 02:29:12.770
Boardroom: Director… Yeah. Director Aguilar? Yeah.

1171
02:29:13.940 --> 02:29:16.330
Boardroom: Would you like to comment on this?

1172
02:29:22.950 --> 02:29:24.889
Boardroom: Oh yeah, he's hand-raised there.

1173
02:29:25.200 --> 02:29:31.480
Boardroom: Oh, and then Josh, I think, Chair Cayetano is the phone number ending in 453.

1174
02:29:31.830 --> 02:29:34.899
Boardroom: Can we promote them to panelists?

1175
02:29:43.240 --> 02:29:45.549
Boardroom: Okay. Okay. Chair Caetano?

1176

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02:29:45.550 --> 02:29:46.080
1650****453: Oops.

1177
02:29:46.690 --> 02:29:48.799
1650****453: Hi, Councilmembers. Can y'all hear me?

1178
02:29:49.610 --> 02:29:50.400
Boardroom: Yes.

1179
02:29:51.520 --> 02:30:02.719
1650****453: Great. First off, thank you, Councilmember Backelby, for your supplemental proposal and the edits. In terms of the 30-day period, I appreciate Mayor Ishii's comments. I think she is spot on.

1180
02:30:02.760 --> 02:30:05.490
Boardroom: We have had issues with.

1181
02:30:05.930 --> 02:30:07.739
1650****453: Some of the 30-day process.

1182
02:30:07.840 --> 02:30:14.660
1650****453: I think one of the issues is that the 30-day window.

1183
02:30:14.760 --> 02:30:21.159
1650****453: Right now, as it is currently implemented, starts when

1184
02:30:21.420 --> 02:30:24.010
1650****453: The proposal is emailed to us.

1185
02:30:24.170 --> 02:30:36.989
1650****453: And the expectation right now is that the Council will then hear it at a public meeting on the merits 30 days later. So, if the 30-day window was such that

1186
02:30:36.990 --> 02:30:46.729
1650****453: 30 days after the PAB were to review it, then, the department submitted it to the Rules and Agenda Committee, it would provide us with sufficient time.

1187
02:30:46.770 --> 02:31:06.550
1650****453: But it can't be the case that the Council hears it 30 days after we first see it. It has to be submitted after we have 30 days… the

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full 30 days to review it. And so, if that is made clear, I believe that 30 days is sufficient, and I think that that proposal should be implemented across both the STO ordinance

1188
02:31:06.550 --> 02:31:09.710
1650****453: And, the BMC 2.100 ordinance.

1189
02:31:09.710 --> 02:31:18.119
1650****453: But if that's not the expectation, that they do not have to wait until we review it to submit it to Rules and Agenda, then we need the 60 days. Thank you.

1190
02:31:20.210 --> 02:31:21.759
Boardroom: Thank you, Chair.

1191
02:31:22.000 --> 02:31:26.380
Boardroom: Mayor Ishii, is that… are those all your questions?

1192
02:31:26.610 --> 02:31:28.600
Adena Ishii: Yeah, those are my questions for now. Thank you.

1193
02:31:28.890 --> 02:31:29.930
Boardroom: Thank you so much.

1194
02:31:30.370 --> 02:31:32.340
Boardroom: Are there any other questions?

1195
02:31:34.620 --> 02:31:42.890
Boardroom: My… I had a, similar question to Mayor Ishii, but I am curious to hear from the city attorney on…

1196
02:31:42.990 --> 02:31:48.100
Boardroom: The remedies for violations of this ordinance.

1197
02:31:48.270 --> 02:31:49.920
Boardroom: If…

1198
02:31:50.090 --> 02:31:56.129
Boardroom: You have any, any thoughts on that, and, how it has affected the current iteration of the…

1199

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02:31:57.370 --> 02:31:58.479
Boardroom: Of the ordinance.

1200
02:32:00.070 --> 02:32:04.449
Boardroom: Are you speaking specifically of the private right of action? Yeah.

1201
02:32:05.190 --> 02:32:05.960
Boardroom: Correct.

1202
02:32:07.510 --> 02:32:14.240
Boardroom: I'm not sure that it has played out in a real scenario as of yet.

1203
02:32:19.700 --> 02:32:24.690
Boardroom: I believe it is. Is it in the, current version of the ordinance?

1204
02:32:26.100 --> 02:32:34.960
Boardroom: Let me go look. I know this was a request, but let me go look. Is it in the current… sorry, Arlo, go ahead. Yeah, it's in there. Similar languages. Okay.

1205
02:32:35.080 --> 02:32:38.359
Boardroom: Thank you. Okay, those are my questions.

1206
02:32:39.490 --> 02:32:41.620
Boardroom: Oh, Councilmember Trago.

1207
02:32:42.400 --> 02:32:56.179
Boardroom: Yeah, thank you. I wanted to go back to the 30 days and just try to understand, is there a standard definition of when it says 30, or 60 or 90 days, for that matter?

1208
02:32:56.370 --> 02:33:00.740
Boardroom: effective from when, so what is the trigger right now?

1209
02:33:02.730 --> 02:33:09.189
Boardroom: It would be delivery of the materials to, both the Chair of the board and the director of police accountability.

1210
02:33:10.030 --> 02:33:18.509

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Boardroom: So, as defined right now, and this might be a question for either Councilmember Blackaby or staff.

1211
02:33:19.180 --> 02:33:27.010
Boardroom: Is the expectation, if we go with 30, would it be within 30 days, the PAB needs

1212
02:33:28.450 --> 02:33:33.649
Boardroom: would have to make a recommendation and bring it to the Council.

1213
02:33:38.430 --> 02:33:42.720
Boardroom: Yeah, I think that's… I mean, that's the question I think we should talk through,

1214
02:33:42.930 --> 02:34:00.790
Boardroom: I think the suggestion from PAB is it should not be, you know, it should not be agendized… their suggestion should not be agendized to come to us before the 30… before they've had the 30-day window. So, 30 days, and then it could be taken to the agenda… go to the agenda process, I believe is their intent.

1215
02:34:01.030 --> 02:34:04.970
Boardroom: In terms of how it works now, kind of defer to the chief, but that's…

1216
02:34:05.140 --> 02:34:07.900
Boardroom: That's the ask, so not put it on a parallel path.

1217
02:34:08.270 --> 02:34:16.369
Boardroom: So that it's submitted to PAB, and then within 30 days of the submittal, it comes. I think they want the full 30 days before it goes through the agenda process.

1218
02:34:17.280 --> 02:34:23.740
Boardroom: So the PAB would have an opportunity within 30 days of receipt, to review…

1219
02:34:24.080 --> 02:34:27.650
Boardroom: And that would be the clock, so I'll, like.

1220
02:34:27.840 --> 02:34:32.189
Boardroom: let's say Pab looks at it on day 40,

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1221
02:34:33.740 --> 02:34:46.329
Boardroom: the clock would, stop at that point, but as long as they looked at it and made a recommendation on day 30, it could come to Council and be added to… through the agenda process.

1222
02:34:46.340 --> 02:34:54.639
Boardroom: Yeah, and I think it's… and I don't believe, again, defer… it's not that the clock ever stops, I think it's just a question of once the 30 days start, at what point?

1223
02:34:55.050 --> 02:35:05.530
Boardroom: Should BPD bring it to us and advance it to us? And should it be with the goal that it hits a council agenda 30 days later, in which case they would submit it after…

1224
02:35:06.020 --> 02:35:14.140
Boardroom: however many days at 10 or 15 to then start the agenda process? Or should they wait the full 30 days before it gets submitted to the agenda process? I think that's the…

1225
02:35:14.630 --> 02:35:17.289
Boardroom: That's a question that I think we can talk through.

1226
02:35:17.950 --> 02:35:20.920
Boardroom: Yeah, okay, I'll save the rest for comment.

1227
02:35:21.520 --> 02:35:22.730
Boardroom: Thank you so much.

1228
02:35:22.970 --> 02:35:28.620
Boardroom: If there are no more questions from the Council, let's go to public comment.

1229
02:35:29.220 --> 02:35:32.969
Boardroom: Can I ask how many people, would like to speak on this item?

1230
02:35:34.900 --> 02:35:37.139
Boardroom: How many, Zoom?

1231
02:35:37.250 --> 02:35:38.440
Boardroom: Comments, are there?

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1232
02:35:39.510 --> 02:35:40.520
Boardroom: Hand raised?

1233
02:35:41.310 --> 02:35:51.000
Boardroom: There's currently 4 hands raised on… Okay. But five. Okay, let's do, one-minute public comment each. And people can yield time up to, you know, as well, so…

1234
02:35:51.300 --> 02:35:56.080
Boardroom: Yes, if you would like to give public comment on this item, please, line up now.

1235
02:36:08.780 --> 02:36:09.570
Boardroom: Go ahead.

1236
02:36:09.700 --> 02:36:17.370
Boardroom: Hi. Well, I was shocked when I saw this on the agenda. Resend and replace the police equipment and community safety ordinance.

1237
02:36:17.630 --> 02:36:23.229
Boardroom: Consideration of less lethal deployment policies, use of control equipment.

1238
02:36:23.350 --> 02:36:35.000
Boardroom: But it turns out it's just about reporting, huh? Well, be generous. Give them 60 days. Your Police Accountability Board, they are volunteers, are they not?

1239
02:36:35.290 --> 02:36:47.310
Boardroom: Why not give them… give them 60 days? And, if you think it has to align with the surveillance tech ordinance, then revise that ordinance and, to 60 days as well.

1240
02:36:47.960 --> 02:36:55.050
Boardroom: And thank you, Commissioner… I mean, Councilmember Blackaby, for the supplemental. I like that better than the original. Thank you.

1241
02:36:56.280 --> 02:36:58.290
Boardroom: Thank you. Next speaker, please.

1242
02:37:04.390 --> 02:37:15.350

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Boardroom: Yeah, I just wanted to point out that, having reporting requirements having… That was… Reporting requirements actually…

1243
02:37:15.930 --> 02:37:18.790
Boardroom: Work and be fulfilled are two different things.

1244
02:37:19.530 --> 02:37:23.720
Boardroom: And as the last PAAB report, illustrated…

1245
02:37:25.520 --> 02:37:29.839
Boardroom: I don't have any confidence that they will be followed.

1246
02:37:32.200 --> 02:37:33.500
Boardroom: Thank you for your comment.

1247
02:37:41.200 --> 02:37:41.990
Boardroom: Go ahead.

1248
02:37:42.240 --> 02:37:46.409
Boardroom: Yeah, thanks. I guess I just… I just cannot imagine 30 days.

1249
02:37:46.750 --> 02:37:48.800
Boardroom: Nothing happens in 30 days.

1250
02:37:49.140 --> 02:37:50.889
Boardroom: This town doesn't move like that.

1251
02:37:51.710 --> 02:37:58.879
Boardroom: It just doesn't. By the time, you know, there's delays in information gathering, and delays in reports, and…

1252
02:37:59.020 --> 02:38:03.059
Boardroom: Delays and delays, and stonewall and foot-dragging.

1253
02:38:03.440 --> 02:38:04.990
Boardroom: 30 days, really?

1254
02:38:06.170 --> 02:38:09.060
Boardroom: You know, it just doesn't feel sincere.

1255

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02:38:09.930 --> 02:38:15.350
Boardroom: You know? Give the PAB what they need. They… they need some support from you guys.

1256
02:38:15.770 --> 02:38:23.060
Boardroom: So please, you know, give them the time they need to do the job, and let's encourage the chief to provide the information that they need to do the job.

1257
02:38:25.250 --> 02:38:26.150
Boardroom: Thank you.

1258
02:38:26.550 --> 02:38:33.890
Boardroom: Are there any other public commenters? Oh, sorry. I didn't see you, Maria. Go ahead. I know, I'm just so tight!

1259
02:38:34.480 --> 02:38:38.910
Boardroom: Is it just on this one item, or is it… the action.

1260
02:38:39.100 --> 02:38:44.269
Boardroom: It's just on this, on this item, which includes both council members' versions.

1261
02:38:44.570 --> 02:38:55.219
Boardroom: Of the recession and replacement. Yeah, but I'm wondering if, is it item 20 and 21, or just 21? It is just item 21. We finished item 20 already before the break. -Oh.

1262
02:38:57.350 --> 02:38:58.130
Boardroom: Okay.

1263
02:38:58.550 --> 02:39:01.439
Boardroom: So, I'm just con… alright, so I'm concerned.

1264
02:39:01.720 --> 02:39:05.210
Boardroom: Michaels, it's so easy to start a fight.

1265
02:39:05.390 --> 02:39:09.469
Boardroom: Start a war. It's a lot harder to stop it.

1266
02:39:09.660 --> 02:39:16.580

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Boardroom: And I'm a tool girl. I got tools. I got tools for the tools. And I'm tempted to use them when I've got them.

1267
02:39:16.710 --> 02:39:20.779
Boardroom: And I was out in Contra Costa County with Reese's.

1268
02:39:21.850 --> 02:39:31.869
Boardroom: And they started this Urban Shield program, just so eager to get more and bigger and better toys, and I almost killed.

1269
02:39:32.710 --> 02:39:34.650
Boardroom: So I'm just concerned.

1270
02:39:35.120 --> 02:39:53.339
Boardroom: It's not that we don't want to protect, because we do, but we also want to serve. So again, I'm an old hippie, I really want peace and harmony, so I'm concerned. I don't know what the logistics are, but I caution us, because once you've got them, it's hard to get rid of them. Thank you.

1271
02:39:53.980 --> 02:39:55.550
Boardroom: Thank you for your comment.

1272
02:39:56.460 --> 02:39:57.410
Boardroom: Come on up.

1273
02:40:02.060 --> 02:40:02.890
Boardroom: Go ahead.

1274
02:40:03.410 --> 02:40:05.859
Boardroom: I had to say something.

1275
02:40:07.170 --> 02:40:13.509
Boardroom: I've been a part of Berkeley Cop Hodge for 28 years now, and from what I've seen the police do.

1276
02:40:13.980 --> 02:40:15.590
Boardroom: I do not trust.

1277
02:40:16.220 --> 02:40:21.880
Boardroom: them… At all, through the years. It doesn't make sense.

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1278
02:40:22.390 --> 02:40:25.919
Boardroom: to let them slide on anything.

1279
02:40:26.540 --> 02:40:32.189
Boardroom: This shirt represents Rodney King, and the police at the time commented.

1280
02:40:32.360 --> 02:40:38.730
Boardroom: on their reports after they beat him, they said, nothing unusual happened during the arrest. Nothing unusual happened.

1281
02:40:38.940 --> 02:40:46.889
Boardroom: I was told of my first arrest in 1974 in Berkeley by the cop.

1282
02:40:47.170 --> 02:41:06.209
Boardroom: I was down on the ground, my adrenaline was full, and he said, relax, relax, sir, we're not gonna hurt you. I relaxed, they slammed my head into the ground. I don't trust the police at all. I think everything, every minute they spend writing a report means they're not on the street messing with people. Thank you. Thank you so much.

1283
02:41:07.140 --> 02:41:09.590
Boardroom: Can we go to, online comments?

1284
02:41:12.230 --> 02:41:16.379
Boardroom: Yes, we currently have, 7 hands raised.

1285
02:41:16.600 --> 02:41:17.480
Boardroom: Okay.

1286
02:41:18.130 --> 02:41:20.840
Boardroom: We have, John Lindsay Poland.

1287
02:41:23.570 --> 02:41:45.830
John Lindsay-Poland: Good evening, and I may ask for another minute, if it's possible. I am with the American Friends Service Committee, and we review AB481, the state law implementation of military equipment ordinances across the state. You know, the annual reports that are under AB481 that would also be required under this revision.

1288
02:41:45.830 --> 02:41:48.579
John Lindsay-Poland: Include requests for new equipment.

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1289
02:41:48.780 --> 02:42:00.549
John Lindsay-Poland: And under the state law, requests for new equipment, the clock starts when the proposed policy for that equipment is published on the agency's website.

1290
02:42:00.890 --> 02:42:10.850
John Lindsay-Poland: And that clock then requires the council to, review the item at least 30 days later.

1291
02:42:11.010 --> 02:42:26.149
John Lindsay-Poland: So if you're going to have the PAB review this, and that PAB review results in any adjustments to the proposed use policy for new types of equipment, then you're going to need at least 30 days from when the PAB reviews it.

1292
02:42:26.230 --> 02:42:36.960
John Lindsay-Poland: So, giving the PAB 30 days to review is really important, because these are very complex, policies and documents to review.

1293
02:42:36.980 --> 02:43:01.949
John Lindsay-Poland: I know that the BPD wants to start a new drone program, but new equipment applies to any new model of anything. So you could have a projectile launcher or a new type of assault rifle that comes under the item, that comes under the military equipment policy. If there's a new model, then that has to have a review by the council, again, at least 30 days

1294
02:43:01.950 --> 02:43:04.659
John Lindsay-Poland: After it is published by the agency.

1295
02:43:04.660 --> 02:43:25.859
John Lindsay-Poland: And so if PAB's review is going to have any meaning, then there needs to be a possibility that PAB's review will result in some changes to the proposed policy for that type of new item. So I urge you to expand this to 60 days for the PAB review to allow that margin for your review of the item.

1296
02:43:26.100 --> 02:43:27.079
John Lindsay-Poland: Thanks so much.

1297
02:43:28.480 --> 02:43:29.830
Boardroom: Thank you for your comment.

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1298
02:43:30.210 --> 02:43:34.859
Boardroom: Sorry, I, I realized, is Maria still here?

1299
02:43:36.130 --> 02:43:46.249
Boardroom: Okay, we did public comment on item 20 during the consent calendar comments. I misspoke and said that we did it before this item. Please continue. Thank you.

1300
02:43:46.670 --> 02:43:49.350
Boardroom: Okay, next speaker is Kelly Hammergren.

1301
02:43:53.450 --> 02:43:59.380
kelly hammargren: I also support a longer review period for the PAB.

1302
02:43:59.530 --> 02:44:07.510
kelly hammargren: Since I go through the agendas, every… every time they're published.

1303
02:44:07.940 --> 02:44:16.429
kelly hammargren: And attend the agenda committee meetings, and see how long the delay is, often when something comes from

1304
02:44:16.590 --> 02:44:19.150
kelly hammargren: One of our committees

1305
02:44:19.480 --> 02:44:27.139
kelly hammargren: one of our commissions, that it can be a very long time from when it leaves the commission to get

1306
02:44:27.680 --> 02:44:34.769
kelly hammargren: posted. And my concern is that even if the PAB hasn't time to review it.

1307
02:44:34.900 --> 02:44:40.970
kelly hammargren: Will it actually reach the agenda committee and get published with the agenda?

1308
02:44:41.810 --> 02:44:44.310
kelly hammargren: Before you consider it.

1309

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02:44:44.720 --> 02:44:49.939
kelly hammargren: And so, the longer… the longer period of time, the 60 days.

1310
02:44:50.090 --> 02:44:56.750
kelly hammargren: I believe is what is needed, and there also should be something that the PAB's response is.

1311
02:44:56.750 --> 02:44:59.160
Boardroom: Thank you, that's… that's your time. Thank you.

1312
02:44:59.830 --> 02:45:03.699
Boardroom: Next is… virtual meetings.

1313
02:45:06.680 --> 02:45:17.280
Virtual Meetings: Hi, my name is Wendy Opson with the Berkeley Friends Meeting, and we too would support the 60-day timeframe from the point

1314
02:45:18.740 --> 02:45:24.110
Virtual Meetings: Or… and if you phrase it as 30 days, that the 30 days.

1315
02:45:25.760 --> 02:45:29.620
Virtual Meetings: is for the PAB review.

1316
02:45:30.060 --> 02:45:41.820
Virtual Meetings: Prior to it being agendized for Council. This particular ordinance today is a good example. The PAB met last week on Wednesday.

1317
02:45:42.590 --> 02:45:45.670
Virtual Meetings: It was agendized before they could meet.

1318
02:45:45.850 --> 02:45:52.260
Virtual Meetings: And for you to consider it required a lot of last-minute

1319
02:45:52.540 --> 02:46:09.060
Virtual Meetings: shuffling and supplementals that didn't make the regular agenda packet, and by having a period of time that's required for the PAB before it's put on the agenda would allow for the.

1320
02:46:09.060 --> 02:46:09.480

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Boardroom: Thank you.

1321
02:46:09.480 --> 02:46:11.749
Virtual Meetings: orderly progression, usually…

1322
02:46:12.740 --> 02:46:15.380
Boardroom: Next is Barb Atwell.

1323
02:46:18.520 --> 02:46:35.269
Barb Atwell, she/her, Ohlone land (Berkeley): Yeah, hi, my name's Barb All. Well, thanks for taking my call. I'm a resident of Berkeley and a member of the Berkeley Friends Meeting. I just wanted to reiterate what Wendy was just saying, and the fact that we do support the 60-day review timeframe, and we've written a letter to the Council

1324
02:46:35.270 --> 02:46:59.649
Barb Atwell, she/her, Ohlone land (Berkeley): to make sure that we… you know that we oppose the whole Council agenda. Item number 21 as drafted, but support the adoption of the recommendations of the PAB on military equipment use, oversight, transparency, and accountability, and we support the Council adoption of the revised police equipment and community safety policy. Thanks for your time and for your efforts.

1325
02:47:00.860 --> 02:47:01.629
Boardroom: Thank you.

1326
02:47:02.450 --> 02:47:07.270
Boardroom: Next is a phone number ending in 453.

1327
02:47:15.930 --> 02:47:20.269
1650****453: Hi, everyone. Josh Cayetano, Chair of the Berkeley Police Accountability Board.

1328
02:47:20.340 --> 02:47:31.410
1650****453: You know, we need transparency and oversight of the acquisition, use, and deployment of military equipment on Berkeley streets now more than ever. TAB supports Councilmember Blackaby's supplemental proposal.

1329
02:47:31.410 --> 02:47:42.039
1650****453: Including most of the proposed edits, which would make the city's processes more efficient without losing the MC 2.100's critical oversight and transparency planning, thanks to Councilmember for working with us.

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1330
02:47:42.040 --> 02:47:51.479
1650****453: In terms of the 30-day review period, I would just note that, you know, a 30-day is the minimum amount that is needed for us to review.

1331
02:47:51.480 --> 02:48:00.910
1650****453: You know, the department does not have to submit it after 30 days. They could continue to collaborate with us if we had, questions for them.

1332
02:48:00.910 --> 02:48:16.180
1650****453: And, you know, that is what we ask of the department, not to just, like, stick so strongly, or, like, so close with that 30-day period that we can't collaborate with them, that we can't make informed recommendations to Council. So I do think, for purposes of the ordinance, 30 days is sufficient.

1333
02:48:16.180 --> 02:48:29.100
1650****453: But if you want collaboration between us and the department to provide informed recommendations, then we would need 60 days, or 30 days if it's okay with us, and, you know, that additional time to talk with the department. Thank you.

1334
02:48:29.460 --> 02:48:30.040
Boardroom: Okay.

1335
02:48:30.630 --> 02:48:32.179
Boardroom: Thank you, Chair.

1336
02:48:32.590 --> 02:48:35.130
Boardroom: Next is Nathan Meisel.

1337
02:48:40.130 --> 02:48:55.299
Nathan Mizell (he/him): Hello, Acting Mayor and Council. This is Nathan Meisel. As you'll know, I was on the PAB for several years, and a long time ago, I was the chair for the subcommittee that considered the original proposal for

1338
02:48:55.610 --> 02:49:03.849
Nathan Mizell (he/him): the acquisition of controlled equipment. You know, I'll just state briefly, I'm in support of the supplemental from Customer Blackaby.

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1339
02:49:04.060 --> 02:49:08.480
Nathan Mizell (he/him): I've been critical at times of this Council on its actions, and…

1340
02:49:08.960 --> 02:49:20.689
Nathan Mizell (he/him): rewriting a lot of the work that's been done over the last several years on police accountability and police oversight, but I want to really appreciate the supplemental, you know, bringing in the important points that the PAB has pointed out.

1341
02:49:20.870 --> 02:49:31.090
Nathan Mizell (he/him): And ultimately, if this council wants the PAB to have time to actually give input and meaningful changes, and do the job, the community voted it.

1342
02:49:31.270 --> 02:49:32.290
Nathan Mizell (he/him): to do?

1343
02:49:32.460 --> 02:49:38.180
Nathan Mizell (he/him): then it needs to give it more time, and to at least honor the proposal brought by the council member.

1344
02:49:38.340 --> 02:49:44.369
Nathan Mizell (he/him): and actually allow it to have meaningful work in this process. If the council doesn't want meaningful work, it should just say so.

1345
02:49:44.750 --> 02:49:47.899
Boardroom: Nathan, thank you so much. Next is Ilana.

1346
02:49:50.310 --> 02:50:09.240
Elana: Hi there. So I want to just echo what everyone's saying. This is an opportunity for you to take action, and not only have words like your emergency item at the beginning of the meeting. Take action and show that you support the Police Accountability Board. You want oversight of our BPD.

1347
02:50:09.240 --> 02:50:10.829
Elana: Because we all do!

1348
02:50:10.830 --> 02:50:15.360
Elana: We all do. We certainly do. So please, give them the time.

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1349
02:50:15.490 --> 02:50:32.140
Elana: Push it back to 60 days. Let them collaborate. Show this is an opportunity for you to take action, to show that you are with the community, and you are with police oversight, and you are with the Police Accountability Board, so please do so.

1350
02:50:32.830 --> 02:50:36.620
Elana: Please vote for the supplemental, and make it 60 days. Thank you.

1351
02:50:38.310 --> 02:50:39.240
Boardroom: Thank you. Thank you.

1352
02:50:39.920 --> 02:50:44.809
Boardroom: Last speaker is Cheryl Davil, a former council member.

1353
02:50:48.040 --> 02:50:56.620
Cheryl Davila, Former Councilmember, Founder CEMTF: Yeah, I'll have to echo what everyone said about the 60 days. You know, Berkeley doesn't do anything in 30 days. And…

1354
02:50:57.270 --> 02:51:06.970
Cheryl Davila, Former Councilmember, Founder CEMTF: you need to set them up for success, the Police Accountability Board, and the only way you can do that is to extend the time.

1355
02:51:08.660 --> 02:51:18.989
Cheryl Davila, Former Councilmember, Founder CEMTF: You've already made all these changes to all these different things to hinder them, and we need to make sure that they're successful, and that things are transparent.

1356
02:51:19.640 --> 02:51:27.050
Cheryl Davila, Former Councilmember, Founder CEMTF: And, really, they don't need any more tools, and they need to report them.

1357
02:51:27.220 --> 02:51:31.879
Cheryl Davila, Former Councilmember, Founder CEMTF: So I… I'm actually… think that they should…

1358
02:51:32.390 --> 02:51:37.449
Cheryl Davila, Former Councilmember, Founder CEMTF: reported in March and in June, because…

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1359
02:51:39.700 --> 02:51:50.080
Cheryl Davila, Former Councilmember, Founder CEMTF: I think we need to hear more about what they're doing, and have an opportunity to ask questions two times, and not just once a year.

1360
02:51:50.250 --> 02:51:52.260
Cheryl Davila, Former Councilmember, Founder CEMTF: They can do…

1361
02:51:54.280 --> 02:51:57.430
Boardroom: Okay, that's it for online public comments.

1362
02:51:57.580 --> 02:52:06.509
Boardroom: Thank you. I want to hand it off to the City Clerk who has some minor technical issues with the items proposed that he would like to raise.

1363
02:52:06.970 --> 02:52:19.490
Boardroom: Yes, thank you, Vice Mayor. There's just a few, quick things that would be good to include in the motion. The first one is that in Section 080…

1364
02:52:19.630 --> 02:52:26.790
Boardroom: It has paragraphs 1 and 2, those should be paragraphs A and B.

1365
02:52:27.220 --> 02:52:33.559
Boardroom: For consistent, Codification format, and then…

1366
02:52:34.180 --> 02:52:43.660
Boardroom: The severability section is numbered 010, I think that's supposed to be 100, 2.100.100.

1367
02:52:44.320 --> 02:52:50.190
Boardroom: And then lastly is the, the effective date?

1368
02:52:50.340 --> 02:53:08.229
Boardroom: you know, per their charter, an ordinance is effective 30 days after final adoption, so the ordinance would be effective 30 days after the second reading, per the charter and the elections code. So just those 3 quick, minor technical edits.

1369
02:53:08.780 --> 02:53:10.560
Boardroom: Okay, thank you very much.

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1370
02:53:11.000 --> 02:53:19.710
Boardroom: Thank you, Mr. Clerk. Councilmembers, do you have any comments? I turned the parliamentarian back on to see if it will behave.

1371
02:53:19.950 --> 02:53:21.369
Boardroom: Councilmember Blackaby?

1372
02:53:22.780 --> 02:53:30.420
Boardroom: just to dig into this, the timing point really quickly, and I want to re-read and see if this gets us any closer, I want to re-read…

1373
02:53:30.560 --> 02:53:41.099
Boardroom: the proposed language here, these edits, both 5 and 6. Failure by the PAB to make its recommendation on a proposal within 30 days of submission

1374
02:53:41.280 --> 02:53:45.980
Boardroom: shall then, basically, enable city staff to proceed to the City Council for approval.

1375
02:53:46.160 --> 02:53:58.160
Boardroom: And similarly, on number 6, after review by the PAB, or 30 days, whichever comes first, then the Police Department shall submit the annual report to City Council. So, my reading of this language, and

1376
02:53:58.350 --> 02:54:03.210
Boardroom: Curious, again, feedback of staff is that… This then says.

1377
02:54:03.540 --> 02:54:09.430
Boardroom: Nothing comes to us or to our agenda process until that 30 days runs out.

1378
02:54:09.610 --> 02:54:12.809
Boardroom: At which point, then, it would be submitted. Is that…

1379
02:54:12.980 --> 02:54:17.160
Boardroom: A fairy, is that how you read it? Is that how you would interpret it, or how would you interpret that?

1380
02:54:18.420 --> 02:54:32.300

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Boardroom: No, I would interpret that to say that it would not come before Council to make a finding on or to approve or accept the either purchase of new equipment or the acceptance of the annual report, unless 30 days had passed.

1381
02:54:32.450 --> 02:54:34.619
Boardroom: for the PAB to have review of that item.

1382
02:54:34.720 --> 02:54:47.730
Boardroom: And happy to make some comments on why and how that aligns, if it pleases Council. And so, I think about all the things and all the places that we have PAB review, the valuable PAB review, on the process that we have.

1383
02:54:47.730 --> 02:54:56.570
Boardroom: For example, the charter allows them, within 30 days of us implementing a policy, any policy or operational plan, to, make review of that.

1384
02:54:56.630 --> 02:55:19.480
Boardroom: Surveillance technology ordinance also envisions and expects us to give 30 days of review time to the PAB to go through that process. Our, reporting process is through the city process, which is city attorney review, review through the budget processes and, and, city manager's review processes are also set on a 30-day cycle. The specifics of what they're reviewing as

1385
02:55:19.480 --> 02:55:22.429
Boardroom: Part of this military equipment ordinance.

1386
02:55:22.430 --> 02:55:25.870
Boardroom: Is, primarily the reporting of an annual report.

1387
02:55:26.150 --> 02:55:33.109
Boardroom: Much of the data that is reported in that annual report is available in near real time on our Transparency Hub.

1388
02:55:33.140 --> 02:55:42.699
Boardroom: The equipment is clearly identified. It's late… we have already gone through an approval process, so the PAB knows exactly what equipment that we have in use in our department.

1389
02:55:42.700 --> 02:55:57.820

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Boardroom: So if there was a specific tool they were interested in digging into, if there was a policy around one of those pieces of equipment, nothing precludes them at any point in time during the year initiating a process in that, or preparing for that in advance of, receiving the annual report from us.

1390
02:55:57.820 --> 02:56:13.180
Boardroom: Further, the, what I had heard, the chair of the PAB share at least two times tonight was that, there are many times when they can achieve a 30-day review process, but there are times when he would like to step into a collaboration process around that.

1391
02:56:13.180 --> 02:56:21.780
Boardroom: All we're asking for is a timeline that matches what all of our… many of our other timelines are for review with them. Council also has the ability to

1392
02:56:21.990 --> 02:56:31.550
Boardroom: hear from the PAB, with a communication saying, can you push it to a later meeting? We have the ability to pull back an item and not bring it if there's collaboration or effort happening around that.

1393
02:56:32.090 --> 02:56:38.659
Boardroom: I will also, just kind of reiterate, this is an annual report about uses that happened a year prior.

1394
02:56:38.810 --> 02:56:48.009
Boardroom: And so, nothing would preclude us from, Council from receiving the annual report as required by state law, but then directing us

1395
02:56:48.220 --> 02:57:02.070
Boardroom: to move into a collaborative process with the PAB to explore alternatives to equipment, or changing the use policy around equipment, or doing any of that other work, which would affect our actual current use. We're talking about accepting a report that already occurred.

1396
02:57:04.510 --> 02:57:05.480
Boardroom: Thank you.

1397
02:57:06.300 --> 02:57:09.070
Boardroom: Councilmember Blackaby? Okay, thanks.

1398
02:57:09.470 --> 02:57:13.509
Boardroom: Councilmember… Bartlett, and then Tracob.

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1399
02:57:14.540 --> 02:57:19.989
Boardroom: Thank you. So, okay, so it looks back, you're saying, right?

1400
02:57:20.210 --> 02:57:25.090
Boardroom: Okay, I guess I'm curious, I served in this commission a long time ago, it was a different form.

1401
02:57:25.190 --> 02:57:26.410
Boardroom: Is… so…

1402
02:57:27.300 --> 02:57:39.270
Boardroom: You know, I mean, this body, of course, has been, somewhat, I guess, disappointed with the PAB this last year, we can be honest here, with their work output. So I'm wondering.

1403
02:57:39.750 --> 02:57:44.880
Boardroom: Like, is this, is this, is this amount of work… Feasible.

1404
02:57:45.470 --> 02:57:46.699
Boardroom: For this commission?

1405
02:57:47.290 --> 02:57:48.690
Boardroom: This is a real question here.

1406
02:57:48.860 --> 02:57:50.349
Boardroom: Or is the staff?

1407
02:57:50.800 --> 02:57:57.590
Boardroom: Doing much of the work, and then the appointed members are sort of approving and commenting the way we do.

1408
02:57:59.260 --> 02:58:07.829
Boardroom: Is this a question for the chair of the… Anybody who… anyone from the commission here, or… Yeah, the chair of the commission is online.

1409
02:58:08.270 --> 02:58:11.930
Boardroom: If we can… He's, like…

1410
02:58:12.030 --> 02:58:13.569

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Boardroom: You should be able to unmute.

1411
02:58:14.130 --> 02:58:14.810
Boardroom: Okay.

1412
02:58:15.900 --> 02:58:18.120
Boardroom: That goes to the question I'm asking here.

1413
02:58:20.390 --> 02:58:24.380
Boardroom: Chair Cayetano, do you have an answer to Councilmember Bartlett's question?

1414
02:58:24.550 --> 02:58:26.139
Boardroom: If the Commission is able.

1415
02:58:26.140 --> 02:58:26.629
1650****453: Yeah.

1416
02:58:26.630 --> 02:58:27.189
Boardroom: This one could…

1417
02:58:27.870 --> 02:58:33.549
1650****453: Hi, yes, Councilmember. Yes, we have the ability to review it. We have been understaffed, severely.

1418
02:58:33.560 --> 02:58:47.410
1650****453: And we would appreciate more nominations, but, we are asking to… we asked to review it last year, and, we're asking to continue that review. And as the Chief pointed out, it's based on a report. The report, you know.

1419
02:58:47.410 --> 02:58:53.930
1650****453: It doesn't require more than reviewing that report, so we would have the ability to do that and provide you with an informed recommendation.

1420
02:58:56.140 --> 02:59:03.750
Boardroom: Okay, so, alright, so, alright, so you feel that the appointed members can actually do the work?

1421
02:59:04.070 --> 02:59:08.040
Boardroom: As opposed to, the city staff are appointed to the commission.

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1422
02:59:08.320 --> 02:59:13.189
Boardroom: That we usually… that we usually have, right? To do the… to the brunt of the work.

1423
02:59:13.350 --> 02:59:18.560
Boardroom: You can do this, you say, if you're fully appointed.

1424
02:59:18.690 --> 02:59:20.389
Boardroom: Is this what I just heard?

1425
02:59:21.750 --> 02:59:25.250
1650****453: But being fully appointed would definitely help.

1426
02:59:26.010 --> 02:59:26.900
1650****453: But yes.

1427
02:59:28.180 --> 02:59:32.589
1650****453: Okay. I'm just trying… I just, look, I'm just asking because I just want to just make sure that…

1428
02:59:32.590 --> 02:59:48.470
Boardroom: You know, we do have the alignment of timelines and the predictability and ease, but I also don't want to set you up to fail and, you know, have you unable to fulfill your voter-mandated, duties.

1429
02:59:49.210 --> 02:59:52.369
Boardroom: And I'm… It's been tough.

1430
02:59:53.590 --> 02:59:54.630
Boardroom: It's been tough.

1431
02:59:56.290 --> 02:59:57.340
Boardroom: Okay, thank you.

1432
02:59:57.340 --> 02:59:59.450
1650****453: Yeah, I appreciate that.

1433
02:59:59.620 --> 03:00:04.300
1650****453: Sorry, I don't think that wasn't a question, but I'm happy to say something else if the Council pleases, but…

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1434
03:00:05.000 --> 03:00:11.319
Boardroom: Thank you so much, Chair. We're gonna go to Councilmember Tragib, then Mayor Ishii, and then Councilmember O'Keefe.

1435
03:00:12.150 --> 03:00:20.800
Boardroom: Thank you so much, for at the outset, I just wanted to thank Council Member Blackaby,

1436
03:00:20.910 --> 03:00:27.050
Boardroom: For the supplemental, I,

1437
03:00:28.010 --> 03:00:47.270
Boardroom: definitely, support the… the main thread on it, and I, just needed more time to review it, and, you know, it had to get into the supplemental two packets, so, that's, I think the primary reason it doesn't include my name as a co-sponsor, but I,

1438
03:00:47.270 --> 03:00:53.669
Boardroom: Really support the effort to, get to,

1439
03:00:53.750 --> 03:00:59.020
Boardroom: A win-win here, and that is what a negotiation looks like.

1440
03:00:59.180 --> 03:01:18.049
Boardroom: So my, remaining, question is really on the 30 days, and, Councilmember Blackaby, would it be possible for you to pull up the numbers 6 and 7 right now? The, the edits, right? Okay, yep.

1441
03:01:18.210 --> 03:01:20.220
Boardroom: Yeah, the edits.

1442
03:01:26.390 --> 03:01:32.110
Boardroom: Oh, sorry, and then, actually, it's 5 and 6.

1443
03:01:32.680 --> 03:01:37.379
Boardroom: So, I first wanted to just underst… because I think…

1444
03:01:38.510 --> 03:01:45.679
Boardroom: 6 says whichever comes first, and 5 says within 30 days, and…

1445

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03:01:46.030 --> 03:01:50.539
Boardroom: I was curious if the intent is to,

1446
03:01:50.950 --> 03:02:10.449
Boardroom: for there to be consistency, but, let me… let me ask the question that, well, this is the edge case that I've been thinking about, and I wanted to see how this would work operationally, and I appreciate the Chief's comments that has,

1447
03:02:10.910 --> 03:02:17.130
Boardroom: partially answered my question, but let's say the Commission gets a report

1448
03:02:17.490 --> 03:02:24.539
Boardroom: The same day, or maybe the day after, they have a regularly scheduled meeting.

1449
03:02:24.750 --> 03:02:28.810
Boardroom: And so, I believe they meet monthly, is that correct?

1450
03:02:29.710 --> 03:02:35.340
Boardroom: Oh, is it twice? Okay, it's twice a month, so maybe that actually,

1451
03:02:35.510 --> 03:02:40.509
Boardroom: Gives me more warm fuzzies, that 30 days, maybe…

1452
03:02:40.730 --> 03:02:58.350
Boardroom: appropriate, as long as we are very clear in the language that it's not 30 days for the entire series of actions up to getting to the Council. This is just the 30 days for the Commission to provide its input.

1453
03:02:58.660 --> 03:03:00.009
Boardroom: I,

1454
03:03:01.140 --> 03:03:13.470
Boardroom: And then, yeah, I just wanted to make sure that the language in 5 and 6 are consistent with each other, and that everyone understands what this means in practice.

1455
03:03:18.310 --> 03:03:20.890
Boardroom: Thank you. Are those your comments for now?

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1456
03:03:21.670 --> 03:03:28.939
Boardroom: Yeah, maybe, this is a question for… Councilmember Blackaby,

1457
03:03:29.970 --> 03:03:36.000
Boardroom: review by the Police Accountability Board, or 30 days, whichever comes first.

1458
03:03:36.780 --> 03:03:40.450
Boardroom: How are you envisioning this play out?

1459
03:03:43.830 --> 03:03:55.710
Boardroom: it's similar to the previous… so, just to be clear, so O50D3 is about… PAB's review

1460
03:03:55.890 --> 03:04:00.169
Boardroom: Of any acquisition and use of police equipment.

1461
03:04:01.250 --> 03:04:07.470
Boardroom: 060B4… Is review of the annual report.

1462
03:04:08.210 --> 03:04:11.680
Boardroom: So they're both on a 30-day timeline.

1463
03:04:11.960 --> 03:04:19.930
Boardroom: And they both say, That there's a 30-day window to do the review, after which point, whether…

1464
03:04:20.300 --> 03:04:25.370
Boardroom: staff has heard feedback from PAB or not, they can then Proceed.

1465
03:04:26.200 --> 03:04:30.229
Boardroom: But… My read of the item is one of them has to do with the…

1466
03:04:30.830 --> 03:04:34.740
Boardroom: Report… the… sorry, the, use…

1467
03:04:34.960 --> 03:04:39.579
Boardroom: reports on the… so, the report. 060 is about the report, the annual report.

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1468
03:04:39.740 --> 03:04:56.249
Boardroom: And O50 is about the acquisition and use of police equipment, and potential new acquisition of different kinds of police equipment. So this says, 6 says, it, like, let's say the PAB provides its feedback

1469
03:04:57.000 --> 03:05:06.179
Boardroom: Within 15 days at that point, and they make it clear there will not be more feedback forthcoming within that 30-day window.

1470
03:05:06.360 --> 03:05:08.890
Boardroom: the item can be sent to Council.

1471
03:05:09.000 --> 03:05:09.920
Boardroom: Okay.

1472
03:05:10.340 --> 03:05:21.000
Boardroom: Okay, I am, I am clear I did, admittedly have misgivings about reducing,

1473
03:05:21.510 --> 03:05:40.379
Boardroom: 60 days to, 30, but I also understand the point, to be consistent with other 30 days, parameters. The fact that this is a look back, it's not, this is a report on what happened in the preceding year.

1474
03:05:40.560 --> 03:05:45.270
Boardroom: and in particular that, I… I've…

1475
03:05:45.360 --> 03:05:59.559
Boardroom: yes, this is new information for me. I was not aware that the PAP meets on a twice-a-month cadence, and that definitely feels like, I can live with 40 days, and,

1476
03:05:59.570 --> 03:06:13.419
Boardroom: If… if that… if… if this language is what can get the entire Council to get to a yes, I certainly support that, and again, appreciate Councilmember Blackbelly's work.

1477
03:06:14.360 --> 03:06:15.739
Boardroom: Thank you, Councilmember.

1478
03:06:16.010 --> 03:06:21.559

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Boardroom: Mayor Ishii, and then Councilmember O'Keefe, and then, I have some comments as well.

1479
03:06:23.400 --> 03:06:38.359
Adena Ishii: Yes, I'm gonna ask another question, because I think it's just hard for me to read and listen, and so I just want to make sure I'm understanding, is this 30 days before it's submitted to Agenda and Rules, or is it just 30 days…

1480
03:06:39.350 --> 03:06:46.589
Adena Ishii: like… Actually… Yeah, it must be 30 days before agenda rules, is that right?

1481
03:06:49.990 --> 03:06:51.720
Boardroom: Is that a question for.

1482
03:06:51.720 --> 03:06:52.590
Adena Ishii: submitted.

1483
03:06:52.590 --> 03:06:55.180
Boardroom: For staff, or for Councilmember Blackby?

1484
03:06:56.820 --> 03:06:57.460
Adena Ishii: staff.

1485
03:06:58.270 --> 03:07:05.389
Adena Ishii: So it's… so it would be submitted 30 days… Before agenda enrolls.

1486
03:07:05.830 --> 03:07:09.360
Adena Ishii: before it's submitted to Agenda and Rules to PAB.

1487
03:07:11.790 --> 03:07:23.450
Boardroom: No, typically, the way our work processes, work is that, because of the length of time when, we, upload an item, and then it comes to agenda and Rules, and then it finally makes it to Council.

1488
03:07:23.510 --> 03:07:40.439
Boardroom: That's the time period with which PAB could be doing its review processes, and then weighing in to provide an item that's either included as a SUP2, or as in within the original item, if they can finish their review. Like, that's the fact of us not having to wait

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1489
03:07:40.730 --> 03:07:51.910
Boardroom: For additional processes that then stretches out an approval process of an annual report, upwards of 60-plus days, because we're waiting to hear back of 30 days, and then artificially.

1490
03:07:51.910 --> 03:08:00.850
Boardroom: having a review note or a complete sign-off from the PAB, then have to sit for another 30 days before it can get to Council.

1491
03:08:00.850 --> 03:08:04.940
Boardroom: Because of having to hold before we get into the cycle of reporting.

1492
03:08:08.880 --> 03:08:09.780
Boardroom: Thank you.

1493
03:08:10.890 --> 03:08:19.759
Adena Ishii: Okay, I, alright, I need to… sorry, I need to chew on that, because… but I do just want to make some comments as well, so…

1494
03:08:19.810 --> 03:08:29.729
Adena Ishii: I wanna start by saying I agree with the intent of the proposal to consolidate BPD reporting into one annual report, and appreciate the importance of avoiding

1495
03:08:29.730 --> 03:08:46.410
Adena Ishii: added burden and redundancy in reporting. I just want to remind folks, like, that's what this item was created for in the first place, was because there are some things that are redundant in our reporting, and so we're trying to streamline that. So, I want to say I absolutely agree with that. I think that makes a lot of sense.

1496
03:08:46.460 --> 03:09:05.750
Adena Ishii: And I also think it's important that we retain the categories of equipment, which are not explicit or included in AB481, as well as retaining the requirements to include geographic location. I know from having conversations with the chief that geographic locations are already part of the transparency Hub.

1497
03:09:05.750 --> 03:09:18.750
Adena Ishii: However, I think it makes sense to be explicit in the Berkeley Municipal Code, because it allows the city to analyze frequency, disproportionality, and other interactions between BPD and the community. I think it's just important to be explicit.

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1498
03:09:18.750 --> 03:09:29.769
Adena Ishii: So I'm gonna chew on this 30 days piece. It's… from what I'm hearing from the chair, it sounds like 30 days could be sufficient, it's just…

1499
03:09:30.120 --> 03:09:36.569
Adena Ishii: I want to make sure I understand the timing and how it works, so I'm going to let other council members comment. Thank you.

1500
03:09:36.950 --> 03:09:37.860
Boardroom: Thank you, Mayor.

1501
03:09:38.370 --> 03:09:39.580
Boardroom: Councilmember O'Keefe?

1502
03:09:41.840 --> 03:09:44.049
Boardroom: Thank you, Vice Mayor.

1503
03:09:44.560 --> 03:09:54.559
Boardroom: I really want to highlight something, that the Chief said, and I think a number of other members here have said, but it's really important, and I just don't want us to lose sight of it.

1504
03:09:54.720 --> 03:09:56.539
Boardroom: Which is this report.

1505
03:09:56.730 --> 03:10:11.909
Boardroom: is not only is it looking backwards, so there's not exactly new information contained in it, but it's looking backwards at information that has been put on the Transparency Hub in almost real time. Not literally real time, but, like.

1506
03:10:12.610 --> 03:10:15.999
Boardroom: a day. So this is not…

1507
03:10:16.780 --> 03:10:23.499
Boardroom: we're talking about, and this seems to be, I think, the only issue that's really being debated right now, is the amount of notice, and…

1508
03:10:23.730 --> 03:10:34.029

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Boardroom: it just shouldn't be that big a task to review something that has… that is not containing any new information. And I just… I really don't want us to lose sight of that, because we're really getting into this…

1509
03:10:34.270 --> 03:10:39.359
Boardroom: You know, these… these really detailed conversations about the timeline and what it looks like, and…

1510
03:10:39.680 --> 03:10:46.610
Boardroom: that's fine, and we should understand it, and we should, however people want to vote on that, it's fine, I'm open to whatever, but I just…

1511
03:10:46.950 --> 03:10:49.650
Boardroom: Let's just not forget that it's…

1512
03:10:50.450 --> 03:10:59.929
Boardroom: There's no scenario where some big, huge revelation is gonna be put forth that's gonna take a lot of analysis. It's information that is out there.

1513
03:11:00.040 --> 03:11:11.029
Boardroom: And I actually, while I'm saying this, I really want to make a plug for the Transparency Hub. There's been a… I'm in a lot of conversations about different things regarding, police accountability and…

1514
03:11:11.280 --> 03:11:27.589
Boardroom: you know, it's a very important thing, and we're doing an excellent job. Arlo is doing an excellent job. We have the police accountability… the transparency of guys right here. And it's, it's really… it's a wonderful tool. It's very, very important to me that the police are held accountable, and

1515
03:11:27.940 --> 03:11:29.410
Boardroom: Have to,

1516
03:11:29.690 --> 03:11:48.570
Boardroom: be incredibly transparent about their use of force. That is, you know, it's… I take that very seriously, but we have this amazing tool already, and let's just not lose sight of it, and let's just remember that that's part of the universe that we're working in when we're debating how many days of notice we have to give the PAB.

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1517
03:11:49.850 --> 03:12:01.870
Boardroom: Thank you, Councilmember. I have some comments, and then I'll pass it over to Councilmember Blackaby. I… I want to talk about the 30 days, but there's two other pieces that I also want to mention.

1518
03:12:02.550 --> 03:12:07.420
Boardroom: I'm concerned about removing the pepper spray?

1519
03:12:07.620 --> 03:12:20.750
Boardroom: portion of the item as our current resolution requires stricting reporting requirements, which is… which is good, meaning we wouldn't need it, but there is an item going through the process right now to change that, and so I just want to make sure that

1520
03:12:20.980 --> 03:12:23.239
Boardroom: That, that that is,

1521
03:12:24.140 --> 03:12:30.780
Boardroom: The pepper spray is gonna stay in the conversation with this item, as we potentially change that resolution.

1522
03:12:32.870 --> 03:12:50.419
Boardroom: I also am… I don't really understand the need to remove the private right of action piece if it is restricted as it is currently, and if it hasn't necessarily been used. So I would like to have a further conversation about that.

1523
03:12:51.060 --> 03:12:55.869
Boardroom: And then finally, about the 30 days, I have a couple different comments to make.

1524
03:12:56.110 --> 03:13:01.970
Boardroom: First, I think that when… Although it… The uses of…

1525
03:13:02.060 --> 03:13:20.750
Boardroom: the equipment is automatically populated into the transparency Hub. It's a pretty different, when we're trying to analyze patterns, it is pretty different to see it all laid out, and I think that, also given that the PAB is a volunteer body, and is understaffed.

1526
03:13:20.980 --> 03:13:27.790
Boardroom: that… For them to individually be looking at each time that a, that the equipment is used.

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1527
03:13:28.200 --> 03:13:35.430
Boardroom: That is, is separate from… Approving the, the, the report altogether.

1528
03:13:37.990 --> 03:13:50.479
Boardroom: Also, when the report, from my understanding, and either the chair or staff can correct me if I'm wrong, there is more information added, into the…

1529
03:13:51.060 --> 03:13:56.329
Boardroom: report than there is on the Transparency Hub. There's… the standard is…

1530
03:13:56.610 --> 03:14:06.939
Boardroom: That the use of the equipment is necessary because there is no reasonable alternative that can achieve the same objective of officer and civilian safety. And…

1531
03:14:07.840 --> 03:14:17.789
Boardroom: we need to be able… or the PAB needs to be able to, rely on the narratives of the department, which is new information, by the time that they get the report.

1532
03:14:17.980 --> 03:14:21.159
Boardroom: So, those are a couple of comments I wanted to make. I wanted to thank…

1533
03:14:21.330 --> 03:14:24.970
Boardroom: Councilmember, Humbert and Councilmember Blackaby.

1534
03:14:25.240 --> 03:14:37.759
Boardroom: for their items, I… support Councilmember Blackaby's changes, with these… small comments.

1535
03:14:38.750 --> 03:14:41.160
Boardroom: Thank you. Go ahead, Councilmember Blackaby.

1536
03:14:41.270 --> 03:14:53.080
Boardroom: Thanks. This is maybe one more question for the clerk, just put the clerk on the spot. Just again, to think about the process for all of us on the 30 days. So, item is submitted, sort of.

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1537
03:14:53.250 --> 03:15:09.260
Boardroom: the department has the item, submits it to the PAB, and then also, at some point, starts the agenda process for Council. When PAB considers and reviews and potentially writes up a, you know, a response.

1538
03:15:09.430 --> 03:15:23.899
Boardroom: as long as they meet a timing for SEP2 or whatever, it can still be seen, heard along the side. I just want to think about how this works when it comes to us, because, like, ideally then, we have the report, if the PAB's already met in the 30-day window, there's a way of

1539
03:15:24.030 --> 03:15:37.520
Boardroom: squaring those and bringing those together at the end when it comes to us. Is that right? And that's basically done through a SUP2? Can they file it in that way, or… I guess there's potentially even an earlier part of the process they could put it into the stream.

1540
03:15:37.810 --> 03:15:39.740
Boardroom: Yes, there's,

1541
03:15:40.280 --> 03:15:50.189
Boardroom: there's 3 deadlines for when a communication would… and there's 3 different places a communication, like a letter to the council, could be published.

1542
03:15:50.530 --> 03:15:57.250
Boardroom: you know, if it's submitted, you know, basically the day of the Agenda and Rules Committee, it could go in the agenda packet.

1543
03:15:57.310 --> 03:16:14.559
Boardroom: And then there's the SUP1 deadline, which is 7 days before the meeting. That, that packet goes out 5 days before the meeting. And then there's the SUP2 deadline, which is noon, the day prior to the meeting. That gets published, that afternoon prior to the meeting, so…

1544
03:16:14.560 --> 03:16:26.690
Boardroom: There are those opportunities along the way, and then those, yeah, so those supplemental communication packets are, of course, available to the public and the council, so it's all…

1545
03:16:26.730 --> 03:16:36.559
Boardroom: published on the record. Okay. I think it's just, refreshing our… as we're thinking through the process, just making sure, because then if they hit one of those on-ramps, then it's…

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1546
03:16:36.640 --> 03:16:40.510
Boardroom: Basically comes into the flow at the same time before it comes to us.

1547
03:16:40.630 --> 03:16:48.250
Boardroom: Right. And we can have a discussion both about the report and the feedback we've received about the report, and then that's how we would hear it in that way. Okay, thank you.

1548
03:16:50.660 --> 03:17:08.980
Boardroom: Thank you, Councilmember. I also wanted to mention, I forgot that, Council also meets twice a month, but we also have large portions of the year where we're not meeting, and so I want to make sure that we're giving the PAB this, similar leeway that we would have, so that they do actually have the chance to meet

1549
03:17:08.980 --> 03:17:13.500
Boardroom: And agendize before we hear something,

1550
03:17:14.420 --> 03:17:34.230
Boardroom: Yeah, because if in a… for example, if in one month they only meet once, and it's two days before our council meeting, that makes it really difficult for them to submit, materials that they need, so maybe we can carve out, and make sure that there is a regular meeting of the PAB scheduled, within that time, within a reasonable time before the council meeting.

1551
03:17:35.450 --> 03:17:37.489
Boardroom: Are there any other comments?

1552
03:17:39.980 --> 03:17:43.619
Boardroom: Councilmember Traeger? Yeah, thank you.

1553
03:17:44.150 --> 03:17:54.740
Boardroom: I wanted to also… I was remiss in not thanking Council Members Humbert and O'Keefe for just thinking through,

1554
03:17:55.990 --> 03:18:00.269
Boardroom: how I… How do we,

1555
03:18:00.390 --> 03:18:07.340
Boardroom: Take advantage of existing state law, and make sure that,

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1556
03:18:08.070 --> 03:18:19.349
Boardroom: the oversight that we are exercising as a council, that all of it adds value, and that, you know, reduces duplication, so,

1557
03:18:19.730 --> 03:18:28.989
Boardroom: I wanted to just say that I echo, Councilmember O'Keefe's points about the incredible value of the transparency hub.

1558
03:18:29.310 --> 03:18:48.809
Boardroom: Again, I, appreciate and will be voting in support of, Councilmember Blackaby's, supplemental, subject to… well, or as incorporated into the main motion now with, additional conforming changes by the clerk as…

1559
03:18:48.890 --> 03:18:50.860
Boardroom: As discussed.

1560
03:18:51.390 --> 03:18:59.760
Boardroom: I… I want to end on just… I… I wish to echo, Vice Mayor Luna Parras.

1561
03:19:00.000 --> 03:19:05.470
Boardroom: points, 40 days is…

1562
03:19:05.660 --> 03:19:19.639
Boardroom: actually not a lot of time, and I definitely want to make sure and, you know, have, have confidence that, through a collaborative process.

1563
03:19:19.820 --> 03:19:28.570
Boardroom: this is doable, but that the PAB actually has, enough information,

1564
03:19:28.570 --> 03:19:39.869
Boardroom: You know, provided to them prior to such time when they are having regular meetings, not, say, during, the winter recess time, to make sure that

1565
03:19:39.880 --> 03:19:52.119
Boardroom: They do have the capacity to provide, the review that they need, so… and we can get, quality information back to the Council. Thank you.

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1566
03:19:53.070 --> 03:20:00.630
Boardroom: Councilmember, I do want to clarify that there's no motion on the table, so, we don't… Would like to make a motion.

1567
03:20:01.040 --> 03:20:07.650
Boardroom: Okay. First, we're gonna go to Councilmember Taplin, and then Councilmember Bartlett, and then Councilmember Humbert.

1568
03:20:07.970 --> 03:20:09.490
Boardroom: Thank you,

1569
03:20:09.910 --> 03:20:20.750
Boardroom: along, those lines, I was… because we do have two recess periods, but it's my understanding that our recess periods are… are a factor into the timing of… of…

1570
03:20:20.940 --> 03:20:24.910
Boardroom: of critical things. So I was wondering if someone could speak to that.

1571
03:20:27.660 --> 03:20:44.820
Boardroom: Well, as it relates to this specific report, which is delivered in June, that's neither Council recess or PAB recess time, typical recess times. They work on a very similar recess schedule that the council does. They take a short recess in, in the fall, and then also a recess around winter. And I don't think they take a spring recess.

1572
03:20:45.980 --> 03:20:54.240
Boardroom: Thank you. Yes, and so, to the extent that our… that this can be… Timed… together, That's chore.

1573
03:20:54.580 --> 03:20:55.980
Boardroom: Greater benefit, thank you.

1574
03:20:58.000 --> 03:21:00.209
Boardroom: Thank you, Councilmember. Councilmember Bartlett?

1575
03:21:00.610 --> 03:21:02.370
Boardroom: Thank you, Madam Acting Mayor.

1576
03:21:02.690 --> 03:21:13.550

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Boardroom: It's not Vice Mayor tonight. Right? Yeah. The acting mayor. Okay, so that was, that was my question, too. So, I guess in terms of our, our…

1577
03:21:13.750 --> 03:21:26.159
Boardroom: our particular, you know, government business day, or business week, right, or business calendar, it still aligns because they're also on break, and this report is due in the month of June.

1578
03:21:26.360 --> 03:21:29.810
Boardroom: And it looks back to the prior year. So the… there…

1579
03:21:29.890 --> 03:21:41.949
Boardroom: they can structure this time accordingly. And I wonder, you know, I guess just, because at this point, I'm persuaded that the 30 days is doable, particularly with them fully staffed.

1580
03:21:41.950 --> 03:21:50.539
Boardroom: And I do hope that they are, incorporating, exploring the incorporation of certain tools to help them, do this work faster. We all know they're out there.

1581
03:21:50.560 --> 03:22:00.989
Boardroom: And, you know, while there's no policy guidance guiding its use in the city, we do know that, it can be used for the benefit of processes like this.

1582
03:22:01.300 --> 03:22:02.990
Boardroom: More on that tomorrow.

1583
03:22:04.400 --> 03:22:11.999
Boardroom: Thank you, Councilmember. Councilmember Humbert? Yeah, I'd like to make the motion, the main motion to,

1584
03:22:12.600 --> 03:22:18.970
Boardroom: for the item that Councilmember, O'Keefe and I have brought,

1585
03:22:19.090 --> 03:22:32.140
Boardroom: and incorporate the, the supplemental, brought by Councilmember Blackaby, and with the edits that he made that we've seen on the screen.

1586
03:22:35.440 --> 03:22:52.169

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Boardroom: Thank you. Just to clarify, that… does that mean that that's the… a motion to approve Councilmember Blackaby's item with the changes? Because he built off of… Yes, I suppose it is, yeah. I think that's… yeah, you can look at it that way. Sure.

1587
03:22:53.380 --> 03:22:57.000
Boardroom: With the clerk's comments added, as well. Okay, thank you.

1588
03:22:57.710 --> 03:22:58.530
Boardroom: Second.

1589
03:22:59.670 --> 03:23:01.810
Boardroom: Thank you.

1590
03:23:03.400 --> 03:23:10.519
Boardroom: I… and I… just to make it very, very clear, because I think I'm still a little confused,

1591
03:23:11.160 --> 03:23:17.840
Boardroom: the… does the… Police department have to submit the…

1592
03:23:18.470 --> 03:23:24.690
Boardroom: the item 30 days before the council meeting where it is going to be heard, or 30…

1593
03:23:25.790 --> 03:23:28.209
Boardroom: Is that, is that the right timeline?

1594
03:23:28.510 --> 03:23:29.830
Boardroom: We're hearing from staff.

1595
03:23:30.300 --> 03:23:37.939
Boardroom: The proposal, and how they're reading our language, and how they will interpret it as it exists, is it will not come to us

1596
03:23:38.130 --> 03:23:39.439
Boardroom: at a meeting.

1597
03:23:40.040 --> 03:23:46.599
Boardroom: In less than 30 days. But they may come to the agenda process to start the process before the 30 days.

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1598
03:23:46.700 --> 03:23:49.009
Boardroom: Okay, thank you.

1599
03:23:49.160 --> 03:23:57.890
Boardroom: Right. How do we feel about a friendly amendment to 45 days, so that we can give the PAB enough time to agendize it?

1600
03:23:59.210 --> 03:24:07.690
Boardroom: It gives them just a little bit more time. But we're hearing from them that the current process for the other, reporting periods are not sufficient.

1601
03:24:12.100 --> 03:24:18.100
Boardroom: And have caused conflicts in the past, and so in attempts to… To minimize those.

1602
03:24:18.310 --> 03:24:23.499
Boardroom: just… Do they not have a regular schedule of…

1603
03:24:24.340 --> 03:24:28.750
Boardroom: Like a regular calendar of when they're… Agendized.

1604
03:24:30.450 --> 03:24:31.259
Boardroom: They do.

1605
03:24:31.760 --> 03:24:40.190
Boardroom: So… I'm just trying to understand in what scenario It would take… longer than…

1606
03:24:40.330 --> 03:24:42.329
Boardroom: What's proposed for them to agendaize it?

1607
03:24:44.500 --> 03:24:51.649
Boardroom: There's been some issues with getting… from what I understand, there's been issues with getting the,

1608
03:24:52.060 --> 03:24:55.690
Boardroom: the PAB members the information within that time.

1609
03:24:55.790 --> 03:25:04.750

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Boardroom: Due to low staffing at ODPA, as well as, as, from my understanding of how commissions

1610
03:25:04.930 --> 03:25:19.979
Boardroom: work. The chair meets with staff two weeks before the meeting to agendize to figure out what's gonna be on the agenda, and then the agenda is solidified one week before the meeting. And I'm not sure how urgent items work, I don't think that…

1611
03:25:20.270 --> 03:25:27.190
Boardroom: commissions are allowed to accept urgent items, but the PAB might be different. But if they're agendizing

1612
03:25:27.650 --> 03:25:34.700
Boardroom: a meeting to discuss a previously… submitted report that's… already posted…

1613
03:25:40.410 --> 03:25:41.810
Boardroom: Can we,

1614
03:25:42.030 --> 03:25:50.179
Boardroom: I think that the chair of the PAB might have an example of how this might work, if we can,

1615
03:25:50.830 --> 03:25:58.350
Boardroom: if I can ask him to provide one, of how this has been an issue, just in getting them to actually hear it in time.

1616
03:26:05.700 --> 03:26:08.040
Boardroom: Is, he should be able to… he's unmuted.

1617
03:26:08.940 --> 03:26:10.520
Boardroom: Go ahead, Chair.

1618
03:26:14.910 --> 03:26:25.659
1650****453: Hi. So, if the department submits it to us, on… the 27th of May.

1619
03:26:25.840 --> 03:26:28.800
1650****453: And our sec- and our first meeting in June.

1620
03:26:29.390 --> 03:26:33.920

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1650****453: is not until the second week of June, so we'll just do the…

1621
03:26:34.330 --> 03:26:52.129
1650****453: what, the 12th of June? Technically, under the current proposal, the Council would be able to consider and vote on it the 27th of June. And for that to happen, it would go to Rules and Agenda, I believe, what, 10 days before that?

1622
03:26:52.350 --> 03:27:07.090
1650****453: So we would really only have the ability, based on our calendar, and our biweekly meetings, to consider it at one meeting. And in that meeting, we would not only see the report for the first time.

1623
03:27:07.280 --> 03:27:14.930
1650****453: Try to make, you know… usually we would filter that out to a subcommittee, have the subcommittee at the next meeting, bring it back.

1624
03:27:14.940 --> 03:27:30.110
1650****453: to the second weekly… to the second bi-monthly meeting, and then, from that, approve a letter for Council. So the 45 days that Councilmember Novara would actually make a material difference, based on the current process that… that… based on that example that I'm providing there.

1625
03:27:32.040 --> 03:27:35.090
Boardroom: Thank you, Chair. I think, I…

1626
03:27:35.200 --> 03:27:38.479
Boardroom: I'm not sure, are you, you still wanting to speak?

1627
03:27:39.080 --> 03:27:45.400
Boardroom: I don't know if this is… if the parliamentarian is… Oh, I'm sorry, Chair. Thank you. I meant, the council members.

1628
03:27:46.580 --> 03:27:49.590
Boardroom: Are your hands raised on the parliamentarian?

1629
03:27:49.890 --> 03:28:01.140
Boardroom: Yes, I'm numbered. Oh, I guess I'm number one, but I would support the 45 days based on, this, operating experience.

1630
03:28:01.910 --> 03:28:11.370

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Boardroom: Thank you. I think if we want our commissions to be collaborative with this, I think that this would be a good compromise.

1631
03:28:11.480 --> 03:28:12.880
Boardroom: Mayor Ishii?

1632
03:28:14.380 --> 03:28:27.250
Adena Ishii: Yeah, I want to make a comment, about that. I think the 45 days makes sense because, of this example that Chair Cayetano just gave. I think it's… it's helpful to understand, just, like.

1633
03:28:27.250 --> 03:28:46.449
Adena Ishii: how it can be calendared out. And I hear what the Chief and Councilmember O'Keefe said about that information being on the Transparency Hub, but I think there really is a difference that's important to be made here between, like, what is available versus what has actually been submitted to them for review.

1634
03:28:46.450 --> 03:28:49.259
Adena Ishii: And I think with that logic that

1635
03:28:49.260 --> 03:29:10.420
Adena Ishii: I mean, they should be checking it all the time and in preparation for the report, and that's not an expectation that we've set for them. So, you know, I would support the 45 days, but I think that… I'm hoping we can come to an agreement on a number, because I think the reality here is we do want to be able to have that collaboration,

1636
03:29:10.420 --> 03:29:16.349
Adena Ishii: And I… and I understand, that… I understand that the chief is… what the Chief is saying about

1637
03:29:16.650 --> 03:29:22.409
Adena Ishii: you know, having that opportunity throughout, but I want to make sure we…

1638
03:29:22.680 --> 03:29:25.550
Adena Ishii: We, we build that in, the time in.

1639
03:29:27.880 --> 03:29:30.470
Boardroom: Thank you, Mayor. Councilmember Humbert?

1640
03:29:30.620 --> 03:29:36.720

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Boardroom: Yeah, I guess I have a question for the Chief. Is… can you work with 45 days?

1641
03:29:38.320 --> 03:29:59.429
Boardroom: Well, a couple things. One is, and I'm not an expert on how materials can come to the PAB board, but we submit those materials to the chair and to the DPA with a request for it to go to all PAB board members, which 30 days for them to review and then participate in a meeting would… our experience is that that has given them adequate time, and in fact, Chash.

1642
03:29:59.430 --> 03:30:04.739
Boardroom: Chair Cayetano has shared that, that in plenty of times that he's able to look at that and say, that's fine.

1643
03:30:04.740 --> 03:30:14.489
Boardroom: The challenge I have with 45 days is not that 45 days is hard, it's that every time there's a different reporting period for different pieces of material and different annual reports.

1644
03:30:14.490 --> 03:30:38.690
Boardroom: It puts an additional burden on staff to make sure we're tracking all those instances. The 30-day time period aligns with the way we submit other materials to, to the PAB for review. That doesn't mean that we don't try to get things to them as soon as possible. In fact, often with the controlled equipment ordinance over the last several years, I'm typically broadcasting to the director. I expect to have this report done on this day.

1645
03:30:38.690 --> 03:30:42.440
Boardroom: Reminding you this is coming. And as we get a run-up to that.

1646
03:30:42.440 --> 03:30:47.410
Boardroom: Being mindful of the calendar. And certainly, as we're looking to land the date.

1647
03:30:47.410 --> 03:31:03.709
Boardroom: that we're coming in June. Nothing requires us to pick a certain date in June, or even to necessarily come in June. That's just when our annual cycle has been. Certainly, we'll be looking at the calendar, and I'm happy to look at the calendar and communicate early with the PAB about, when we anticipate landing that report, and ensuring that they have

1648
03:31:03.710 --> 03:31:07.679

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Boardroom: A meeting timed out. I mean, I'm happy to hear from them about,

1649
03:31:07.680 --> 03:31:11.979
Boardroom: Deliver it closer to a meeting, or farther from a meeting, so that they can have

1650
03:31:11.980 --> 03:31:31.409
Boardroom: adequate reporting time. Those are just hard things to work into an ordinance, and for us to make sure we're hitting deadlines and timelines. And what I'm asking for is to reduce the, burden of having a lot of varied, time reporting, connecting it to agenda rules, or connecting it to SECSUP2 and things like that. Just make it more challenging on our end.

1651
03:31:32.710 --> 03:31:35.119
Boardroom: Thank you. Thank you, Councilmember Trigo.

1652
03:31:36.710 --> 03:31:47.779
Boardroom: Yeah, thank you, Chief. And I, I hear you on the administrative burden. I am wondering,

1653
03:31:48.810 --> 03:31:50.630
Boardroom: I mean, there are…

1654
03:31:53.960 --> 03:32:08.079
Boardroom: maybe this is a conversation that, needs to be agendized in the future around trying to make everything consistent to 45 days, and I get that that is not what is before us tonight.

1655
03:32:08.180 --> 03:32:11.239
Boardroom: In those broad terms.

1656
03:32:11.380 --> 03:32:14.340
Boardroom: I'm wondering, like, I…

1657
03:32:14.710 --> 03:32:18.409
Boardroom: I would support anything that can be done,

1658
03:32:18.630 --> 03:32:26.080
Boardroom: Outside of a council decision with a date to look at a cycle that brings it

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1659
03:32:26.180 --> 03:32:31.310
Boardroom: back, or brings it to the PAB at a time when they're meeting,

1660
03:32:31.440 --> 03:32:39.950
Boardroom: You know, not around, a recess, and, frankly, not around council recess either.

1661
03:32:40.350 --> 03:32:50.679
Boardroom: I, I did have a question. I believe the previous language said,

1662
03:32:50.900 --> 03:32:58.519
Boardroom: 60 slash 90 days, because I think the number was different than the letter. But…

1663
03:32:58.970 --> 03:33:07.479
Boardroom: But then it said, or 30 days if there is a, A grant directed,

1664
03:33:07.980 --> 03:33:10.039
Boardroom: timeline, so I'm…

1665
03:33:10.340 --> 03:33:19.109
Boardroom: I'm wondering if, a less elegant compromise, but still a compromise, could be to go with 45 days.

1666
03:33:19.160 --> 03:33:31.649
Boardroom: or 30 days, you know, keeping the… retaining the 30 days for the strict, grant-directed timeline, and, this… this is probably a question for the Chief.

1667
03:33:36.610 --> 03:33:59.620
Boardroom: I agree that, especially with grants, we need a shorter window to be able to, operate. Sometimes we hear about grants at the last minute. I would refer back to what I said earlier about the challenges around a 40-day timeline, and especially if within an ordinance, we have varying timelines, based on the action that we're taking, it just, it creates more, administrative work for us to track those things.

1668
03:34:01.830 --> 03:34:02.670
Boardroom: Okay.

1669
03:34:05.120 --> 03:34:19.709

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Boardroom: I'm going to try and substitute motion just for discussion, and that would be to change Part 5, proposal within, 45 days, and then,

1670
03:34:20.070 --> 03:34:32.479
Boardroom: We keep the text around 30 days in instances where the proposal is subject to a time-sensitive grant application, and everything else would be the same as the main motion, if there's a second.

1671
03:34:36.150 --> 03:34:37.589
Boardroom: Who was the second or what?

1672
03:34:38.510 --> 03:34:45.920
Boardroom: Thank you, Councilmember. Councilmember Taplin? Yes, thank you. I just want to make sure I'm understanding… So…

1673
03:34:46.230 --> 03:34:52.000
Boardroom: They would be meeting to discuss a report submitted the previous year, the year prior?

1674
03:34:53.780 --> 03:35:08.839
Boardroom: That's correct. They are looking at a report of, uses over the year prior, and then, are, have an opportunity to make a recommendation to Council about whether we should continue to use the material, the equipment, or change how we use it.

1675
03:35:09.730 --> 03:35:15.870
Boardroom: And what triggers them to… Meet to discuss that. Is that…

1676
03:35:16.930 --> 03:35:21.149
Boardroom: On… completely on their end, or is that responsive to something on our end, or…

1677
03:35:24.940 --> 03:35:28.230
Boardroom: Like, could they do it sooner? Could they do it later? I'm trying to understand, like.

1678
03:35:28.750 --> 03:35:33.450
Boardroom: What, like, what is the time constraint for them to initiate

1679
03:35:34.140 --> 03:35:45.620
Boardroom: that review? They could initiate a review of equipment or policy at any point in time pursuant to the Charter, but their review of this report, begins when we submit the report to them.

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1680
03:35:45.980 --> 03:35:47.520
Boardroom: I see, I see.

1681
03:35:52.790 --> 03:35:54.190
Boardroom: Yeah, I…

1682
03:35:57.080 --> 03:36:06.489
Boardroom: I, I really don't want to have a scenario where we have, like, okay, this report is 30 days, this report's 45 days, this report's 90 days, right?

1683
03:36:06.780 --> 03:36:10.650
Boardroom: I think that's inefficient, and…

1684
03:36:11.480 --> 03:36:18.499
Boardroom: if we are gonna talk about how to have consistent, uniform timelines, I would like for that discussion

1685
03:36:19.060 --> 03:36:26.190
Boardroom: To be grounded in, operational clarity and… and efficiency.

1686
03:36:28.150 --> 03:36:31.570
Boardroom: And it's still not… it's still not quite clear to me

1687
03:36:32.360 --> 03:36:40.480
Boardroom: What the extra time would allow them to do, though they don't already have… The ability to do…

1688
03:36:43.810 --> 03:36:45.059
Boardroom: Thank you, Councilmember.

1689
03:36:45.660 --> 03:36:50.729
Boardroom: I… can I offer a quick…

1690
03:36:51.070 --> 03:36:57.009
Boardroom: From the amendment to the motion, and, I'm… I'm open to this

1691
03:36:57.410 --> 03:37:07.890

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Boardroom: not being accepted, I think I just want to understand it better. Adding back the right of private action as restricted in the current,

1692
03:37:08.430 --> 03:37:19.809
Boardroom: In the current ordinance, because there's no way… there's no other form of remedy, if this is not followed other than that very small private right of action.

1693
03:37:21.190 --> 03:37:23.279
Boardroom: The main motion, or the subsequent motion

1694
03:37:23.490 --> 03:37:26.019
Boardroom: To the substitute motion. This is a substitute.

1695
03:37:28.110 --> 03:37:40.050
Boardroom: I will accept that for the purpose of discussion, I anticipate someone may well sever out that provision before we vote. That's okay, I think I want to just…

1696
03:37:40.230 --> 03:37:44.350
Boardroom: hear that argument also. I want to kind of talk through that as well.

1697
03:37:45.630 --> 03:37:47.380
Boardroom: The seconder acceptable?

1698
03:37:47.540 --> 03:37:51.319
Boardroom: Councilmember, do you accept the friendly amendment?

1699
03:37:52.850 --> 03:38:11.629
Boardroom: Well, so, for discussion, yes, but I typically, when it comes to, you know, rights of action, and city attorney might want to comment on this as well, you know, this body, is the one that creates fines and fees and creates, you know, legal…

1700
03:38:12.570 --> 03:38:14.699
Boardroom: legal moments of jeopardy.

1701
03:38:14.900 --> 03:38:23.419
Boardroom: for, for people in the fur… for our city, our staffers, our people in the community. I don't… I don't know that appointed, appointed,

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1702
03:38:23.880 --> 03:38:27.550
Boardroom: Upon civilians, necessarily have that charge.

1703
03:38:32.330 --> 03:38:35.089
Boardroom: Thank you, Councilmember. I guess, the current…

1704
03:38:35.630 --> 03:38:52.430
Boardroom: The way that it's currently written states that if the alleged violation is substantiated and cured, then a notice has to be posted. So, the primary reason for having, a private right of action is curing the issue and not necessarily

1705
03:38:52.580 --> 03:38:58.500
Boardroom: Holding up the city in, in bigger, a bigger violation, since,

1706
03:38:58.630 --> 03:39:11.200
Boardroom: the prevailing complainant may only collect from the city reasonable attorney's fees in an amount not to exceed $15,000, if they are obligated to pay such fees. Again, something that hasn't happened, since we've had this.

1707
03:39:12.560 --> 03:39:16.049
Boardroom: And then to go back, if it's only $15,000, that's nominal.

1708
03:39:16.470 --> 03:39:19.010
Boardroom: And does not really accomplish the task.

1709
03:39:20.950 --> 03:39:25.630
Boardroom: If the goal is curing the issue, not necessarily the financial…

1710
03:39:26.170 --> 03:39:36.269
Boardroom: Yes, I guess, so, city attorney, I mean, I was just… not to go back and forth here, but, I mean, when you get into these, you know, the government's role as,

1711
03:39:36.620 --> 03:39:40.969
Boardroom: What's the standard, you know, the… where our rules are,

1712
03:39:41.270 --> 03:39:52.010
Boardroom: come from a good place, or a bad place, or a… Arbitrary and capricious. Arbitrary and capricious, right? If that standard still

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exists, I mean, this gets… this sounds… already sounds to me kind of weird. That's only $15,000.

1713
03:39:52.530 --> 03:39:54.780
Boardroom: That seems like it's not meant to do anything.

1714
03:39:58.740 --> 03:40:02.149
Boardroom: I think the origin of the $15,000 is that…

1715
03:40:02.300 --> 03:40:05.310
Boardroom: Verbage is taken out of the,

1716
03:40:06.470 --> 03:40:11.130
Boardroom: The other ordinance, the… yeah, the, STO.

1717
03:40:11.580 --> 03:40:15.880
Boardroom: So… This sounds silly.

1718
03:40:17.120 --> 03:40:19.889
Boardroom: Okay, that's fine, I'll retract that.

1719
03:40:23.810 --> 03:40:26.300
Boardroom: Are there any… oh, Councilmember Trago?

1720
03:40:26.980 --> 03:40:36.199
Boardroom: Yeah, thank you. So if you can pull up the language again, 5 and 6, I think in my substitute, I…

1721
03:40:36.460 --> 03:40:42.290
Boardroom: Inadvertently neglected to make a conforming Sub change.

1722
03:40:43.310 --> 03:40:53.500
Boardroom: to Part 6, which would also say, after review by the Police Accountability Board.

1723
03:40:53.630 --> 03:40:58.570
Boardroom: Or 45 days. Change 30 to 45 days, whichever comes first.

1724
03:41:00.440 --> 03:41:04.619
Boardroom: Thank you, Councilmember. Seeing no more comments from Council.

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1725
03:41:05.410 --> 03:41:05.780
Adena Ishii: Sorry.

1726
03:41:05.780 --> 03:41:08.119
Boardroom: Sorry, sorry, Mayor, I… go ahead.

1727
03:41:08.480 --> 03:41:10.689
Adena Ishii: That's okay, I just, I just put my hands up.

1728
03:41:10.720 --> 03:41:30.170
Adena Ishii: I just want to give one last push for 45 days, because I recognize, Chief, that this creates an additional burden, and having to track a different time frame can be really complicated, and I think that our hope here, and the reason why I'm supporting 45 days, is to allow for more collaboration and conversation, and

1729
03:41:30.280 --> 03:41:31.670
Adena Ishii: Given that…

1730
03:41:31.790 --> 03:41:51.459
Adena Ishii: part of the issue is staffing, and the fact that we know that we're going to continue having issues with our budget, and staffing may continue to be an issue for a while. I do really want to give this time. And I think, like, you know, as we are trying to reduce other administrative burdens, I'm hoping that

1731
03:41:51.480 --> 03:42:06.999
Adena Ishii: that by doing that, by having one fewer report, that, this 45 days really is… is us trying to… to meet in the middle of making these changes, and… and also still keeping up with our… with our values and supporting the work that the PAP's doing, so…

1732
03:42:07.000 --> 03:42:12.959
Adena Ishii: I want to thank you all, I really appreciate the discussion, and… and really thank our,

1733
03:42:13.260 --> 03:42:17.970
Adena Ishii: our… our Vice Mayor for… for holding a great meeting today, so thank you.

1734
03:42:18.790 --> 03:42:26.159

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Boardroom: Thank you. Could we call the roll on the substantive motion? Okay, on the substitute motion…

1735
03:42:26.170 --> 03:42:44.429
Boardroom: Can we, can you just restate the motion? Just repeat the motion, thank you. Which is, it's the same as the main motion, except, it changes the 30 days to 45 days in these two sections here, D3 and B4.

1736
03:42:44.560 --> 03:42:48.009
Boardroom: 050d3 and 060B4.

1737
03:42:48.430 --> 03:42:50.080
Boardroom: And there was…

1738
03:42:50.420 --> 03:43:02.460
Boardroom: A second element to it where we would revert back to the old language in 5 or 30 days in instances where the proposal is subject to a time-sensitive grant application.

1739
03:43:05.150 --> 03:43:06.030
Boardroom: Okay.

1740
03:43:09.170 --> 03:43:14.250
Boardroom: Okay. On the substitute motion, Councilmember Kesarwani? No.

1741
03:43:14.410 --> 03:43:19.919
Boardroom: Taplin? No. Bartlett? Yes. Tregeb? Aye. O'Keefe? Yes.

1742
03:43:20.180 --> 03:43:21.919
Boardroom: Blackity. Pass.

1743
03:43:22.680 --> 03:43:24.230
Boardroom: Luna Parra? Yes.

1744
03:43:24.940 --> 03:43:25.920
Boardroom: Humbert?

1745
03:43:26.360 --> 03:43:27.270
Boardroom: Pass.

1746
03:43:28.680 --> 03:43:30.180

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Boardroom: Mayor Ishii?

1747
03:43:30.470 --> 03:43:31.280
Adena Ishii: Yes.

1748
03:43:32.740 --> 03:43:36.600
Boardroom: And… Councilmember Blackaby? Yes.

1749
03:43:37.220 --> 03:43:39.630
Boardroom: And Councilmember Humbert? Yes.

1750
03:43:39.990 --> 03:43:41.610
Boardroom: Okay, motion carries.

1751
03:43:41.760 --> 03:43:43.200
Boardroom: Thank you so much.

1752
03:43:43.490 --> 03:43:46.519
Boardroom: That is our…

1753
03:43:46.830 --> 03:43:53.430
Boardroom: Final action item for the night. Thank you for the discussion, thank you so much for being here, thank you,

1754
03:43:53.680 --> 03:43:58.419
Boardroom: to the PAB's representative for being here as well, for… to Chair Cayetano.

1755
03:43:59.090 --> 03:44:03.459
Boardroom: Councilmember Blackbee, will you send me the edits you have on the screen? I will. Thanks.

1756
03:44:03.980 --> 03:44:11.179
Boardroom: We just have public comment, on items not listed on the agenda, one last time.

1757
03:44:11.910 --> 03:44:13.719
Boardroom: You'll have one minute.

1758
03:44:14.240 --> 03:44:23.560

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Boardroom: Thank you. Just for items not listed on the agenda, in terms of process, I guess I have to say that you all just spent a lot of time debating something that's really small.

1759
03:44:24.200 --> 03:44:27.569
Boardroom: And if that's an indicator, what if the PAB

1760
03:44:28.020 --> 03:44:41.900
Boardroom: actually didn't just rubber stamp a report, but actually wanted more information. And then they would send it back to the police, and then the police would drag their feet, as they do. I'm coming back to you to tell you.

1761
03:44:42.270 --> 03:44:46.030
Boardroom: Seven months ago, I filed a complaint with the PAB.

1762
03:44:46.630 --> 03:44:50.459
Boardroom: Why… no… There… it's not just a work slowdown.

1763
03:44:50.760 --> 03:45:01.260
Boardroom: It is that the chief is not cooperating with requests for information. That… so if you standardize all these timelines, it's just… it's just mindless.

1764
03:45:01.400 --> 03:45:04.909
Boardroom: It's not, it's not… it's not,

1765
03:45:05.330 --> 03:45:08.730
Boardroom: It's not responsive to the needs of the people, yeah.

1766
03:45:09.110 --> 03:45:12.869
Boardroom: A $100 million operation should be able to track a deadline?

1767
03:45:13.690 --> 03:45:21.569
Boardroom: I just don't understand why we defer to the Chief constantly and require nothing of her. Thank you. Thank you for your comment.

1768
03:45:24.420 --> 03:45:25.559
Boardroom: Go ahead, Carol.

1769
03:45:26.200 --> 03:45:30.880
Boardroom: So, I, know that you're going to be bringing forward a joint

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1770
03:45:31.090 --> 03:45:39.460
Boardroom: Item regarding, the… an eviction moratorium in Minneapolis from the… the Rent Board and the Council.

1771
03:45:39.460 --> 03:45:43.670
Boardroom: I want to say, to add to that, there was a,

1772
03:45:43.670 --> 03:46:03.730
Boardroom: meeting of the National Low-Income Housing Coalition today, that there were two presentations, the first, a dismal one about how, disparate impact is going to be eliminated in housing discrimination by the Trump administration, and the second of which was expressly on the Minneapolis issues.

1773
03:46:03.800 --> 03:46:17.230
Boardroom: With housing, while you are working with a council member, you might… if you go back to that recording or contact their office, you might be able to receive some additional information and resources.

1774
03:46:17.230 --> 03:46:30.010
Boardroom: and a sense of how the community is addressing those issues. There are, three times as much housing, application… applications for rental assistance. Thank you. Thank you. Thank you, Carol.

1775
03:46:30.440 --> 03:46:33.139
Boardroom: Do we have any, raised hands online?

1776
03:46:34.200 --> 03:46:40.300
Boardroom: Yes, and again, this is for public comments on items that are not on the agenda.

1777
03:46:40.580 --> 03:46:45.070
Boardroom: We have, hand-raised John and Lindsay Poland.

1778
03:46:47.140 --> 03:46:51.660
John Lindsay-Poland: Good evening. Yeah, I just have to respond to comments that

1779
03:46:51.910 --> 03:47:01.850
John Lindsay-Poland: military equipment reports are only backward-looking. They are not only backward-looking. Any request for a… I'm so sorry, but that was on our agenda.

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1780
03:47:01.850 --> 03:47:12.149
John Lindsay-Poland: The one other thing that I want to say then is that, I, I find the chief's comment that, that these are, burdens

1781
03:47:12.170 --> 03:47:22.760
John Lindsay-Poland: for the department to be disingenuous, because the 45 days is for the PAB, it's not for the department. It's a calendar that the PAB has to track, not the department.

1782
03:47:23.920 --> 03:47:24.880
John Lindsay-Poland: Thank you.

1783
03:47:25.320 --> 03:47:26.059
Boardroom: Thank you.

1784
03:47:27.330 --> 03:47:35.550
Boardroom: And… Phone number ending in 453. I think this is the… PAB Chair.

1785
03:47:36.970 --> 03:47:40.470
Boardroom: Mr. Cayetano, did you want to give non-agenda public comments?

1786
03:47:43.140 --> 03:47:45.529
1650****453: Sorry, I don't have a comment, but thank you, Councilmembers.

1787
03:47:46.690 --> 03:47:47.690
Boardroom: Thank you. Thank you.

1788
03:47:48.180 --> 03:47:53.860
Boardroom: Last is, phone number ending in 211.

1789
03:47:54.430 --> 03:47:56.460
Boardroom: For non-agenda public comment.

1790
03:48:00.130 --> 03:48:03.379
1510****211: I call tonight in memory of the great Berkeley Greece chief.

1791
03:48:03.540 --> 03:48:10.200

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1510****211: Dash Butler, he was a great man, and Berkeley always had one of the best police in the police department in the country.

1792
03:48:10.370 --> 03:48:19.660
1510****211: My comment is always about the monastery and the… The unbelievable Burberry's… And brutality!

1793
03:48:20.010 --> 03:48:26.720
1510****211: this man doing across the country, I don't see anymore, I live 62 years, I'm 85 years old.

1794
03:48:26.900 --> 03:48:32.280
1510****211: You never see that anywhere, anywhere in the… anywhere in the world. What is worse, I'll be very quick.

1795
03:48:32.520 --> 03:48:42.759
1510****211: He has access to the nuclear football. It's written bottom, in a briefcase, carried by a Navy man behind… almost behind him. He has to be within 12 feet from him.

1796
03:48:42.880 --> 03:48:43.840
1510****211: When?

1797
03:48:43.980 --> 03:48:56.849
1510****211: He pushed that button. We are into the middle of World War III. If it happens, 98% of humans on Earth will die within minutes or hours. 2% will die painfully.

1798
03:48:56.970 --> 03:49:04.569
1510****211: within days. And by the way, you know, I'm a nuclear engineer, so I know the field very well. Thank you, all the great, people.

1799
03:49:04.570 --> 03:49:05.080
TELEPHONE_USER: and,

1800
03:49:05.080 --> 03:49:06.130
Boardroom: Thank you.

1801
03:49:07.990 --> 03:49:08.840
Boardroom: Okay.

1802

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03:49:09.620 --> 03:49:13.110
Boardroom: Thank you so much. Is there a motion to adjourn the meeting? So moved.

1803
03:49:15.730 --> 03:49:17.040
Boardroom: I'll second.

1804
03:49:18.310 --> 03:49:29.389
Boardroom: Okay. Can we take the roll? Okay, to adjourn the meeting, Councilmember Kisarwani? Yes. Taplin? Yes. Bartlett? Yes. Traeb? Aye. O'Keefe? Yes.

1805
03:49:29.500 --> 03:49:33.389
Boardroom: Blackaby? Yes. Vice Mayor Lunapara? Yes.

1806
03:49:34.670 --> 03:49:35.860
Boardroom: Councilmember Humbert?

1807
03:49:36.380 --> 03:49:38.090
Boardroom: is… absent.

1808
03:49:38.510 --> 03:49:40.359
Boardroom: And Mayor Ishii.

1809
03:49:40.910 --> 03:49:42.170
Adena Ishii: Guess.

1810
03:49:42.610 --> 03:49:45.679
Boardroom: Okay, we are adjourned. Good night, get some sleep.

1811
03:49:45.910 --> 03:49:49.149
Adena Ishii: Thank you. Thank you, Madam Acting Mayor.

1812
03:49:49.560 --> 03:49:51.159
Boardroom: Thank you so much.

1813
03:49:51.160 --> 03:49:52.340
Adena Ishii: Bye, everyone!

1814
03:49:58.810 --> 03:49:59.500
Boardroom: Understood.

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